Kirby School District

2024-2025 Parent/Student Handbook



"Home of the Trojans"

www.kirbytrojans.net

Pike Palmer, Superintendent

Jason Burns, High School Principal

Dolores Cowart, Elementary Principal

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2024-2025 Student/Parent Handbook

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STUDENT-PARENT HANDBOOK
2024-2025 Edition

PREFACE

This handbook is intended for use by students, parents, and staff of the Kirby School District. Its purpose is to set forth the standards of behavior and the limits on behavior established by law and the Board of Education's policies and to provide you with information concerning the management of the schools.

It is impossible to list in this handbook all of the rules and guidelines. Therefore, the contents of this handbook should not be construed to limit or to deny your rights and responsibilities on your own campus as a member of the student body or as a citizen; neither should it be construed as limiting nor denying the administration the right and responsibility to develop such necessary rules and regulations that are consistent with federal and state laws and Board of Education policies and regulations. A student who is well informed concerning his or her rights and responsibilities and the standards of behavior expected should not require disciplinary action. Each student is responsible for his or her own conduct at all times.

This handbook is available digitally to all students, parents, and staff through the school website. Additionally, upon the request of an interested party, the Kirby School District will make this handbook available as a printed document at no cost.

District Policies and Procedures

Definitions

"In loco parentis" means relating to the responsibility to undertake the care and control of another person in the absence of:

1. Supervision by the person's parent or legal guardian; and
2. Formal legal approval.

4.1—RESIDENCE REQUIREMENTS Definitions:

"Reside" means to be physically present and to maintain a permanent place of abode for an average of no fewer than four (4) calendar days and nights per week for a primary purpose other than school attendance.

"Resident" means a student whose parents, guardians, persons having lawful control of the student or persons standing in loco parentis reside in the school district.

"Residential address" means the physical location where the student's parents, legal guardians, persons having lawful control of the student or persons standing in loco parentis reside. A student may use the residential address of a parent, legal guardian, person having lawful control of the student or person standing in loco parentis only if the student resides at the same residential address and if the guardianship or other legal authority is not granted solely for educational needs or school attendance purposes.

The schools of the District shall be open and free through the completion of the secondary program to all persons between the ages of five (5) and twenty one (21) years whose parents, legal guardians, persons having lawful control of the student, or person standing in loco parentis reside within the District and to all persons between those ages who have been legally transferred to the District for educational purposes.

Any person eighteen (18) years of age or older may establish a residence separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis for school attendance purposes.

In order for a person under the age of eighteen (18) years to establish a residence for the purpose of attending the District's schools separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis, the student is required to reside in the District for a primary purpose other than that of school attendance, however, a student whose parents move the student into another district or previously enrolled in the district who is placed under the legal guardianship of a non custodial parent living outside the district by a custodial parent on active military duty may continue to attend district schools. A foster child who was previously enrolled in a District school and who has had a change in placement to a residence outside the District, may continue to remain enrolled in his/her current school unless the presiding court rules otherwise.

Under instances prescribed in A.C.A. § 6-18-203, a child or ward of an employee of the district or of the education co-op to which the district belongs may enroll in the district even though the employee

and the employee's child or ward reside outside the district.

Children whose parent or legal guardian relocates within the state due to a mobilization, deployment, or available military housing while on active duty in or serving in the reserve component of a branch of the United States Armed Forces or National Guard may continue attending school in the school district the children were attending prior to the relocation or attend school in the school district where the children have relocated. A child may complete all remaining school years at the enrolled school district regardless of mobilization, deployment, or military status of the parent or guardian.

4.2—ENTRANCE REQUIREMENTS

To enroll in a school in the District, the child must:

A. Be a resident of the District as defined in District policy (4.1—RESIDENCE REQUIREMENTS);

B. Meet the criteria outlined in Policy:

4.40—HOMELESS STUDENTS; or

4.52—STUDENTS WHO ARE FOSTER CHILDREN;

C .Be accepted as a transfer student under the provisions of policy 4.4; or

D. Participate under a school choice option and submit the required paperwork as required by the choice option under Policy 4.5.

A student may enter kindergarten if the student:

•Meets one of the requirements for school attendance of A through D above; and

•Falls under one of the following:

- Will attain the age of five (5) on or before August 1 of the year in which the student is seeking initial enrollment; or
- Has been enrolled in a state-accredited or state-approved kindergarten program in another state for at least sixty (60) days and:

  Will become five (5) years old during the year in which the student is enrolled in kindergarten; and

  Submits a written request for enrollment to the District; or
- Was enrolled in a state-accredited or state-approved kindergarten program in another state or in a kindergarten program equivalent in another country and:

  Becomes a resident of this state as a direct result of active military orders or a court-ordered change of custody;

  Will become five (5) years of age during the year in which the student is enrolled in kindergarten; and

Submits a written request for enrollment to the District.

Any child who will be six (6) years of age on or before October 1 of the school year of enrollment and who has not completed a state-accredited kindergarten program shall be evaluated by the district and may be placed in the first grade if the results of the evaluation justify placement in the first grade and the child's parent or legal guardian agrees with placement in the first grade; otherwise the child shall be placed in kindergarten.

Any child may enter first grade in a District school if the child attains the age of six (6) years during the school year in which the child is seeking enrollment and the child has successfully completed a kindergarten program in a public school in Arkansas.

Any child who has been enrolled in the first grade in a state-accredited or state-approved elementary school in another state for a period of at least sixty (60) days, who will become age six (6) years during the school year in which he/she is enrolled in grade one (1), and who meets the basic residency requirements for school attendance may be enrolled in the first grade.

Students who move into the District from an accredited school shall be assigned to the same grade as they were attending in their previous school (mid-year transfers) or as they would have been assigned in their previous school. Private school students shall be evaluated by the District to determine their appropriate grade placement.

Home school students enrolling or re-enrolling as a public school student shall be placed in accordance with policy 4.6—HOME SCHOOLING.

The district shall make no attempt to ascertain the immigration status, legal or illegal, of any student or his/her parent or legal guardian present for enrollment.

Prior to the child's admission to a District school:

1. The parent, legal guardian, person having lawful control of the student or person standing in loco parentis shall furnish the child's social security number, or if they request, the district will assign the child a nine (9) digit number designated by theDivision of Elementary and Secondary education.

2. The parent, legal guardian, person having lawful control of the student or person standing in loco parentis shall provide the district with one (1) of the following documents indicating the child's age:

a. Birth certificate;

b. Statement by the local registrar or county recorder certifying the child's date of birth;

c. Attested baptismal certificate;

d. Passport;

e. Affidavit of the date and place of birth by the child's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis;

f. United States military identification; or

g. Previous school records.

3. The parent, legal guardian, person having lawful control of the student or person standing in loco parentis shall indicate on school registration forms whether the child has been expelled from school in any other school district or is a party to an expulsion proceeding. Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.

4. In accordance with Policy 4.57—IMMUNIZATIONS, the child shall be age appropriately immunized or have an exemption issued by the Arkansas Department of Health.

Uniformed Services Member's Children

For the purposes of this policy,

"Activated reserve components" means members of the reserve component of the uniformed services who have received a notice of intent to deploy or mobilize under Title 10 of the United States Code, Title 32 of the United States Code, or state mobilization to active duty.

"Active duty" means full-time duty status in the active, uniformed services of the United States, including without limitation members of The National Guard and Reserve on active duty orders under 10 U.S.C.chapters 1209 and 1211 or 42 U.S.C. § 204.

"Deployment" means a period of time extending from six (6) months before a member of the uniformed services' departure from their home station on military orders through six (6) months after return to his or her home station.

"Dual status military technician" means a federal civilian employee who is:

a. Employed under 5 U.S.C. § 3101 or 32 U.S.C. § 709(b);
b. Required as a condition of his or her employment to maintain membership in the Selected Reserve; and
c. Assigned to a civilian position as a technician in the organizing, administering, instructing, or training of the Selected Reserve or in the maintenance and repair of supplies or equipment issued to the Selected Reserve of the United States Armed Forces.

"Eligible child" means the children of:

- Active duty members of the uniformed services;
- Members of the active and activated reserve components of the uniformed services;
- Members or veterans of the uniformed services who are severely injured and medically discharged or retired for a period of one (1) year after medical discharge or retirement;
- Members of the uniformed services who die on active duty or as a result of injuries sustained on active duty for a period of one (1) year after death;
- Dual status military technicians; and
- Traditional members of the National Guard and reserve components of the armed forces who are relocating to the state for employment or to serve as a member of an Arkansas-based reserve

component unit.

"Traditional member of the National Guard or federal reserves" means an active member of the Selected Reserve subject to mobilization and deployment for which he or she attends monthly and annual training periods.

“Transition” means the:

- Formal and physical process of transitioning from public school to public school; or
- Period of time in which a student moves from a sending district to a receiving district.

“Uniformed services”[4] means the United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, United States Coast Guard, the National Oceanic and Atmospheric Administration Commissioned Officer Corps, the United States Commissioned Corps of the Public Health Services, and the state and federal reserve components of each of these bodies.

“Veteran” means an individual who served in the uniformed services and who was discharged or released from the uniformed services under conditions other than dishonorable.

The superintendent shall designate an individual as the District’s military education coordinator, who shall serve as the primary point of contact for an eligible child and for the eligible child’s parent, legal guardian, person having lawful control of the eligible child, or person standing in loco parentis. The individual the superintendent designates as the District’s military education coordinator shall have specialized knowledge regarding the educational needs of children of military families and the obstacles that children of military families face in obtaining an education.[5]
An eligible child as defined in this policy shall:

1. Be allowed to continue his/her enrollment at the grade level commensurate with his/her grade level he/she was in at the time of transition from his/her previous school, regardless of age;
2. Be eligible for enrollment in the next highest grade level, regardless of age if the student has satisfactorily completed the prerequisite grade level in his/her previous school;
3. Enter the District's school on the validated level from his/her previous accredited school when transferring into the District after the start of the school year;
4. Be enrolled in courses and programs the same as or similar to the ones the student was enrolled in his/her previous school to the extent that space is available. This does not 1. prohibit the District from performing subsequent evaluations to ensure appropriate placement and continued enrollment of the student in the courses/and/or programs
5. Be provided services comparable to those the student with disabilities received in his/her previous school based on his/her previous Individualized Education Program (IEP). This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;
6. Make reasonable accommodations and modifications to address the needs of an incoming student with disabilities, subject to an existing 504 or Title II Plan, necessary to provide the student with equal access to education. This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;

7. Be enrolled by an individual who has been given the special power of attorney for the student's guardianship. The individual shall have the power to take all other actions requiring parental participation and/or consent;
8. Be eligible to continue attending District schools if he/she has been placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty.

Following the receipt of advanced notice of the enrollment of an eligible student from a military family, the District shall treat the notice as a provisional enrollment and provide the student with materials regarding:

a. Academic courses;
b. Electives;
c. Sports; and
d. Other relevant information regarding the public school.

In the event that official copies of an eligible child's education records are not available at the time the eligible child is transferring, then the District shall:

o Pre-register and place an eligible child based on the eligible child's unofficial education records pending receipt of the eligible child's official records; and
o Request the eligible child's official education records from the sending district.

To facilitate a smooth transition between the student's previous coursework and the curriculum best suited to ensure educational success in the student's new school, the District may enroll an inbound transitioning eligible student in digital coursework, if available, at the request of the military family.

International Exchange Students

"Host family" means the individual or family with whom an international exchange student is placed by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq..

"International exchange student" means a student who is placed with a host family by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq.

Before an international exchange student may attend a District school , the District requires all international student exchange visitor placement organizations that are placing international exchange students within the District to:

- Be certified by the Council on Standards for International Educational Travel;

- Provide documented proof of the international exchange student's English proficiency; and

- Notify the District at least three (3) weeks before the beginning of the academic semester the international exchange student plans to enroll in the District.

The District shall admit for enrollment and attendance an international exchange student who has been placed with a host family who resides within the District boundaries. The international exchange student shall attend the school in the District based on the attendance zone where the host family resides.6

Upon an international exchange student's arrival, the international exchange student may be required to submit to quarantine to prevent the spread of infectious diseases as may be necessary, which shall not exceed seven (7) days unless otherwise recommended by the Arkansas Department of Health or the Centers for Disease Control and Prevention.

International exchange students are expected to follow the District handbook and student code of conduct as the District has the authority to expel a student for violations of the school district's written student discipline policies or if the international exchange student presents a danger to the District's students or employees.

Statewide assessment results achieved by an international exchange student enrolled in the District shall be included in the District's results on the statewide assessments.7 The District shall provide English-language services to international exchange students as necessary.

4.3—COMPULSORY ATTENDANCE REQUIREMENTS

Every parent, legal guardian, person having lawful control of the child or person standing in loco parentis of any child age five (5) through seventeen (17) years on or before August 1 of that year who resides, as defined by policy (4.1—RESIDENCE REQUIREMENTS), within the District shall enroll the child and ensure the attendance of the child at a District school with the following exceptions:

1. The child is enrolled in private or parochial school.

2. The child is being homeschooled and the conditions of policy (4.6—HOMESCHOOLING) have been met.

3. The child will not be age six (6) on or before August 1 of that particular school year and the parent, legal guardian, person having lawful control of the child or person standing in loco parentis of the child elects not to have him/her attend kindergarten. A kindergarten waiver form prescribed by regulation of the Division of Elementary and Secondary Education must be signed and on file with the District administrative office. 4. The child has received a high school diploma or its equivalent as determined by the State Board of Education.

5. The child is age sixteen (16) or above and is enrolled in a post-secondary vocational-technical institution, a community college, or a two-year or four-year institution of higher education. 6. The child is age sixteen (16) or seventeen (17) and has met the requirements to enroll in an adult

education program as defined by A.C.A. § 6-18-201 (b).

4.4—STUDENT TRANSFERS

Transfer applications received by the District shall be placed on the Board's next meeting agenda.1 At least five (5) days before the meeting where the transfer application appears on the agenda, the superintendent shall notify the Board regarding:

- All transfer applications received since the last meeting; and
- The superintendent's recommendation concerning each transfer application.

Each transfer application shall be considered individually and receive a separate vote by the Board. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to a student who submits a transfer application shall be given at least five (5) minutes to present the student's case for a transfer to the Board.

The District may reject a non resident's application for admission if its acceptance would necessitate the addition of staff or classrooms, exceed the capacity of a program, class, grade level, or school building, or cause the District to provide educational services not currently provided in the affected school. The District shall reject applications that would cause it to be out of compliance with applicable laws and regulations regarding desegregation.

If the superintendent intends to recommend the Board deny the transfer application, the superintendent shall provide a written explanation of the reasons for the recommendation to the Board and the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student who submitted a transfer application that was rejected may appeal the decision of the Board to the State Board of Education.

Any student transferring from a school accredited by the Division of Elementary and Secondary Education (DESE) to a school in this district shall be placed into the same grade the student would have been in had the student remained at the former school. Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities.

Any student transferring from homeschool or a school that is not accredited by the DESE to a District school shall be evaluated by District staff to determine the student's appropriate grade placement. A student transferring from homeschool will be placed in accordance with Policy 4.6-HOME SCHOOLING

Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.[3]

Except as otherwise required or permitted by law, the responsibility for transportation of any nonresident student admitted to a school in this District shall be borne by the student or the student's parents. The District and the resident district may enter into a written agreement with the student or student's parents to provide transportation to or from the District, or both.

4.5 - SCHOOL CHOICE Standard School Choice Definition

Standard School Choice

Exemption

The District is under an enforceable desegregation court order/court-approved desegregation plan[1] that explicitly limits the transfer of students between school districts and has submitted the appropriate documentation to the Division of Elementary and Secondary Education (DESE).[2] As a result of the desegregation order/desegregation plan[1], the District is exempt from the provisions of the Public School Choice Act of 2015 (Standard School Choice) and the Arkansas Opportunity Public School Choice Act (Opportunity School Choice). The District shall notify the superintendent of each of its geographically contiguous school districts of its exemption.[3] The exemption prohibits the District from accepting any school choice applications from students wishing to transfer into or out of the District through standard School Choice or Opportunity School Choice.[4]

Definition

"Sibling" means each of two (2) or more children having a parent in common by blood, adoption, marriage, or foster care.

Transfers into the District

Capacity Determination and Public Pronouncement

The Board of Directors will annually adopt a resolution containing the capacity standards for the District. The resolution will contain the acceptance determination criteria identified by academic program, class, grade level, and individual school. The school is not obligated to add any teachers, other staff, or classrooms to accommodate choice applications. The District may only deny a Standard School Choice application if the District has a lack of capacity by the District having reached ninety percent (90%) of the maximum student population in a program, class, grade level, or school building authorized by the Standards or other State/Federal law.[5]

The District shall advertise in appropriate broadcast media and either print media or on the Internet to inform students and parents in adjoining districts of the range of possible openings available under the School Choice program. The public pronouncements shall state the application deadline and the requirements and procedures for participation in the program. Such pronouncements shall be made in the spring, but in no case later than March 1.

Application Process

The student's parent shall submit a school choice application on a form approved by ADE to this District and the student's resident district. Except for students who have a parent or guardian who is an active-duty member of the military and who are transferring under Uniformed Service Member

Dependent School Choice, the transfer application must be postmarked, emailed, or hand delivered on or before May 1 of the year preceding the fall semester the applicant would begin school in the District. The District shall date and time stamp all applications the District receives as both the resident and nonresident district as they are received in the District's central office. Except for applications from students who are transferring under Uniformed Service Member Dependent School Choice, applications postmarked, emailed, or hand delivered on or after May 2 will not be accepted. Statutorily, preference is required to be given to siblings of students who are already enrolled in the District. Therefore, siblings whose applications fit the capacity standards approved by the Board of Directors may be approved ahead of an otherwise qualified non-sibling applicant who submitted an earlier application as identified by the application's date and time stamp.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, no earlier than January 1 of each year, the Superintendent will consider all properly submitted applications for School Choice. By July 1, the Superintendent shall notify the parent and the student's resident district, in writing, of the decision to accept or reject the application.

Accepted Applications

Applications which fit within the District's stated capacity standards shall be provisionally accepted, in writing, with the notification letter stating a reasonable timeline by which the student shall enroll in the District by taking the steps detailed in the letter, including submission of all required documents. If the student fails to enroll within the stated timeline, or if all necessary steps to complete the enrollment are not taken, or examination of the documentation indicates the applicant does not meet the District's stated capacity standards, the acceptance shall be null and void.[7]

A student, whose application has been accepted and who has enrolled in the District, is eligible to continue enrollment until completing his/her secondary education. Continued enrollment is conditioned upon the student meeting applicable statutory and District policy requirements. Any student who has been accepted under choice and who fails to initially enroll under the timelines and provisions provided in this policy; chooses to return to his/her resident district; or enrolls in a home school or private school voids the transfer and must reapply if, in the future, the student seeks another school choice transfer. A subsequent transfer application will be subject to the capacity standards applicable to the year in which the application is considered by the District.

A present or future sibling of a student who continues enrollment in this District may enroll in the District by submitting a Standard School Choice application. Applications of siblings of presently enrolled choice students are subject to the provisions of this policy including the capacity standards applicable to the year in which the sibling's application is considered by the District. A sibling who enrolls in the District through Standard School Choice is eligible to remain in the District until completing his/her secondary education.

Students whose applications have been accepted and who have enrolled in the district shall not be discriminated against on the basis of gender, national origin, race, ethnicity, religion, or disability.

Rejected Applications

The District may reject an application for a transfer into the District under Standard School Choice due to a lack of capacity. However, the decision to accept or reject an application may not be based on the

student's previous academic achievement, athletic or other extracurricular ability, English proficiency level, or previous disciplinary proceedings other than a current expulsion.

An application may be provisionally rejected if it is for an opening that was included in the District's capacity resolution, but was provisionally filled by an earlier applicant. If the provisionally approved applicant subsequently does not enroll in the District, the provisionally rejected applicant could be provisionally approved and would have to meet the acceptance requirements to be eligible to enroll in the District.

Rejection of applications shall be in writing and shall state the reason(s) for the rejection. Unless the student's application was rejected due to the application not being timely received by both the resident and nonresident districts, a student whose application was rejected may request a hearing before the State Board of Education to reconsider the application which must be done, in writing to the State Board within ten (10) days of receiving the rejection letter from the District.

Transfers Out of the District

All Standard School Choice applications for transfers out of the District shall be granted.

Facilities Distress School Choice Applications

There are a few exceptions from the provisions of the rest of this policy that govern choice transfers triggered by facilities distress. Any student attending a school district that has been identified as being in facilities distress may transfer under the provisions of this policy, but with the following four (4) differences:

- The receiving district cannot be in facilities distress;
- The transfer is only available for the duration of the time the student's resident district remains in facilities distress;
- The student is not required to meet the May 1 application deadline; and
- The student's resident district is responsible for the cost of transporting the student to this District's school

Opportunity School Choice

Transfers into the District

For the purposes of this section of the policy, a "lack of capacity" is defined as when the receiving school has reached the maximum student-to-teacher ratio allowed under federal or state law, the DESE Rules for the Standards for Accreditation, or other applicable rules. There is a lack of capacity if, as of the date of the application for Opportunity School Choice, ninety-five percent (95%) or more of the seats at the grade level at the nonresident school are filled.

Unless there is a lack of capacity at the District's school or the transfer conflicts with the provisions of a federal desegregation order applicable to the District, a student may transfer from the student's assigned school to another school in the District[10] or from the student's resident district into the District if:

- Either:
    - The student's resident district has been classified by the state board as in need of Level 5

— intensive support; or
    - The student's assigned school has a rating of "F"; and
- Except for students who are transferring under Uniformed Service Member Dependents School Choice, the student's parent, guardian, or the student if the student is over eighteen (18) years of age has submitted an application of the student's request to transfer by no earlier than January 1 and no later than May 1 of the school year before the school year the student intends to transfer to both the sending and receiving school districts.

Except for students who are transferring under Uniformed Service Members Dependent School Choice or seeking to transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, and the student's resident district whether the Opportunity School Choice application has been accepted or rejected by no later than July 1 of the school year the student is seeking to enroll. If the student is seeking a transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, whether the Opportunity School Choice application has been accepted or rejected within fifteen (15) days from receipt of the student's application. The notification shall be sent via First-Class Mail to the address on the application.

If the application is accepted, the notification letter shall state the deadline by which the student must enroll in the receiving school or the transfer will be null and void. If the District rejects the application, the District shall state in the notification letter the specific reasons for the rejection. Unless the student's application was rejected due to the application not being timely received by both the resident and nonresident districts, a parent or guardian, or the student if the student is over eighteen (18) years of age, may appeal the District's decision to deny the application to the State Board of Education. The appeal must be in writing to the State Board of Education via hand delivery or certified mail, return receipt requested, no later than ten (10) calendar days, excluding weekends and legal holidays, after the notice of rejection was received from the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, a student's transfer under Opportunity School choice is effective at the beginning of the next school year and the student's enrollment is irrevocable for the duration of the school year and is renewable until the student completes high school or is beyond the legal age of enrollment. This provision for continuing eligibility under Opportunity Choice does not negate the student's right to apply for transfer to a district other than the student's assigned school or resident district under the Standard School Choice provisions of this policy.

The District may, but is not obligated to provide transportation to and from the transferring district.

Transfers out of, or within, the District[110]

If a District school receives a rating of "F" or the District has been classified by the State Board as in need of Level 5 Intensive Support, the District shall timely notify the parents, guardians, or students, if the student is over eighteen (18) years of age, as soon as practicable after the school or district designation is made of all the options available under Opportunity School Choice. The District shall offer the parent or guardian, or the student if the student is over eighteen (18) years of age, an opportunity to submit an

application to enroll the student in:

1. A school district that has not been classified by the State Board as in need of Level 5 Intensive Support; or
2. If there is more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school within the District that is nearest to the student's legal residence that does not have a rating of "F"; or
3. If there is not more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school that does not have a rating of "F" within a School district that has not been classified by the State Board as in need of Level 5 Intensive Support. Additionally, the District shall request public service announcements to be made over the broadcast media and in the print media at such times and in such a manner as to inform parents or guardians of students in adjoining districts of the availability of the program, the application deadline, and the requirements and procedure for nonresident students to participate in the program.

Uniformed Service Member Dependent School Choice

"Uniformed service member" means an active or reserve component member of the:

- United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, or United States Coast Guard;
- National Oceanic and Atmospheric Administration Commissioned Officer Corps; or
- United States Commissioned Corps of the Public Health Service.
- "Uniformed service veteran" means a former uniformed service member who has been discharged under conditions other than dishonorable.

A student shall be eligible for school choice under Uniformed Service Member Dependent School Choice if the student is a dependent of a:

o Uniformed service member in full-time active-duty status;

o Surviving spouse of a uniformed service member;

o Reserve component uniformed service member during the period six (6) months before until six (6) months after a Title 10, Title 32, or state active duty mobilization and service; or

o Uniformed service veteran who is returning to civilian status at the conclusion of the uniformed service veteran's active duty status.

A student's parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student shall submit a school choice application by mail, e-mail, or in person to the student's nonresident district and resident district. The application shall be accompanied by:

a.A copy of the identification card of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis that qualifies the student under this section; and

b.A copy of the official orders, assignment notification, or notice of mobilization of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis.

The application deadline required under Standard School Choice and Opportunity School Choice shall not apply to uniformed service member dependents.

The superintendent of the nonresident district shall notify the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis of the student in writing whether the student's application has been accepted or rejected within fifteen (15) days of the nonresident district's receipt of the application. A student's transfer under the Uniformed Services Member Dependent School Choice is effective immediately upon the nonresident district's written notification of an acceptance.

A student shall be permitted only one (1) school transfer per academic year. The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to a student shall be responsible for transportation of the student.

Unsafe School Choice Program

Any student that becomes the victim of a violent criminal offense while in or on the grounds of a District school or who is attending a school classified by ADESE as a persistently dangerous public school shall be allowed to attend a safe public school within the District.

4.6—HOMESCHOOLING

Enrollment in Home School

Parents or legal guardians desiring to provide a home school for their children shall give written notice to the Superintendent of their intent to homeschool. The notice shall be given:

1. At the beginning of each school year, but no later than August 15;

2. Five (5) school calendar days prior to withdrawing the child (provided the student is not currently under disciplinary action for violation of any written school policy, including, but not limited to, excessive absences) and at the beginning of each school year thereafter; or

3. Within thirty (30) calendar days of the parent or legal guardian establishing residency within the district during the school year.

Written notice of the parent or legal guardian's intent to homeschool shall be delivered to the Superintendent through any of the following methods:

- Electronically, including without limitation by;
- Use of the Division of Elementary and Secondary Education's (DESE) online system;
- Email; or
- Facsimile;

• By mail; or

• In person.

The notice shall include:

a. The name, sex, date of birth, grade level, and the name and address of the school last attended, if any;

b. The mailing address and telephone number of the home school;

c. The name of the parent or legal guardian providing the home school;

d. Indicate if the home-schooled student intends to participate in extracurricular activities during the school year;

e. A statement of whether the home-schooled student plans to seek a high school equivalency diploma during the current school year;

f. A statement that the parent or legal guardian agrees that the parent or legal guardian is responsible for the education of their children during the time the parents or legal guardians choose to homeschool; and

g. A signature of the parent or legal guardian.

To aid the District in providing a free and appropriate public education to students in need of special education services, the parents or legal guardians homeschooling their children shall provide information that might indicate the need for special education services.

A student who has been temporarily issued items, resources, supplies, materials, or other property belonging to the District is eligible for enrollment in a home school during the school year after:

- The items, resources, supplies, materials, or other property belonging to the District have been returned to the District;
- The items, resources, supplies, materials, or other property belonging to the District have been paid for; or
- The semester has ended.

The superintendent or the board of directors may waive the required five (5) school day waiting period for a student's enrollment in home school during a semester if the superintendent or the board of directors is satisfied with the return of temporarily issued items, resources, supplies, materials, or other District property .

Enrollment or Re-Enrollment in Public School

A homeschooled student who wishes to enroll or re-enroll in a District school shall submit:

• A transcript listing all courses taken and semester grades from the home school;

• Score of at least the thirtieth percentile on a nationally recognized norm-referenced assessment taken in the past year; and

• A portfolio of indicators of the home-schooled student's academic progress, including without limitation:

o Curricula used in the home school; o Tests taken and lessons completed by the home-schooled student; and o Other indicators of the home-schooled student's academic progress.

If a homeschooled student is unable to provide a nationally recognized norm-referenced score, the District may either assess the student using a nationally recognized norm-referenced assessment or waive the requirement for a nationally recognized norm-referenced assessment score.

A homeschooled student who enrolls or re-enrolls in the District will be placed at a grade level and academic course level equivalent to or higher than the home-schooled student's grade level and academic course level in the home school:

1. As indicated by the documentation submitted by the home-schooled student; 2. By mutual agreement between the public school and the homeschooled student's parent or legal guardian; or 3. If the home-schooled student fails to provide the documentation required by this policy, with the

exception of the nationally recognized norm-referenced assessment score, the District may have sole authority to determine the home-schooled student's grade placement and course credits. The District will determine the homeschooled student’s grade placement and course credits in the same manner the District uses when determining grade placement and course credits for students enrolling or re-enrolling in the District who attended another public or private school. The District shall afford a home-schooled student who enrolls or re-enrolls in a public school the same rights and privileges enjoyed by the District’s other students. The District shall not deny a homeschooled student who enrolls or re- enrolls in the District any of the following on the basis of the student having attended a homeschool:

a. Award of course credits earned in the home school; b. Placement in the proper grade level and promotion to the next grade level; c. Participation in any academic or extracurricular activity; d. Membership in school-sponsored clubs, associations, or organizations; e. A diploma or graduation, so long as the student has enrolled or re-enrolled in the District to attend classes for at least the nine (9) months immediately prior to graduation; or f. Scholarships.

4.7—ABSENCES

If any student’s Individual Education Program (IEP) or a 504 Plan conflicts with this policy, the requirements of the student’s IEP or 504 Plan take precedence.

Education is more than the grades students receive in their courses. Important as that is, students’ regular attendance at school, whether in person or digitally, is essential to their social and cultural development and helps prepare them to accept responsibilities they will face as an adult. Interactions with other students and participation in the instruction within the classroom enriches the learning environment and promotes a continuity of instruction which results in higher student achievement.

Absences for students enrolled in synchronous digital courses shall be determined in the same manner as for District students attending courses in person.

Excused Absences

Excused absences are those where the student was on official school business or when the absence was due to one of the following reasons:

1. The student’s illness or when attendance could jeopardize the health of other students. A maximum of six (6) such days are allowed per semester unless the condition(s) causing such absences is of a chronic or recurring nature, is medically documented, and approved by the principal.[1]
2. Death or serious illness in their immediate family;[2]
3. Observance of recognized holidays observed by the student's faith;
4. Attendance at an appointment with a government agency;
5. Attendance at a medical appointment;
6. Exceptional circumstances with prior approval of the principal;
7. Participation in FFA, FHA, or 4-H sanctioned activity;
8. Participation in the election poll workers program for high school students.
9. Absences granted to allow a student to visit his/her parent or legal guardian who is a member of the military and been called to active duty, is on leave from active duty, or has returned from deployment to a combat zone or combat support posting. The number of additional excused absences shall be at the discretion of the superintendent or designee.
10. Absences granted, at the Superintendent's discretion, to seventeen (17) year-old students who join the Arkansas National Guard while in eleventh grade to complete basic combat training between grades eleven (11) and (12).
11. Absences for students excluded from school by the Arkansas Department of Health during a disease outbreak because the student has an immunization waiver or whose immunizations are not up to date.
12. Absences due to conditions related to pregnancy or parenting, including without limitation:
    •Labor, delivery, and recovery;
    •Prenatal and postnatal medical appointments and other medically necessary, pregnancy-related absences;
    •The illness or medical appointment of a child belonging to a parent who is enrolled at a District school;
    •A legal appointment related to pregnancy or parenting, including without limitation:
    oAdoption;
    oCustody; and
    oVisitation;
    •A reasonable amount of time to accommodate a lactating student’s need to express breast milk or to breastfeed the student’s child on the District’s campus; and
    •At least ten (10) school days of absences for both a parenting mother and a parenting father after the birth of a child.6

Students who serve as pages for a member of the General Assembly shall be considered on instructional assignment and shall not be considered absent from school for the day the student is serving as a page. Up to one (1) time during each scheduled election, a student shall not be considered absent from school for the time the student accompanies the student's parent when the parent is exercising the parent’s right to vote in a scheduled election.

In order for the absence to be considered excused, the student must:

a. Bring a written statement to the principal or designee upon the student's return to school from the student's parent, legal guardian, or treating physician stating the reason for the student's absence;
b. If the student is attending the District's courses digitally, upload a written statement from the student's parent, legal guardian, or treating physician stating the reason for the student's absence through the District's digital course management platform for review by the principal or designee.
c. Provide documentation as proof of a student's participation in an activity or program scheduled and approved by the 4-H program that is provided by a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program.

A written statement presented or uploaded for an absence having occurred more than five (5) school days prior to its presentation or upload will not be accepted.

Unexcused Absences

Absences that are not defined above do not have an accompanying note from the parent, or legal guardian, person having lawful control of the student, the student's treating physician, or a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program person standing in loco parentis, or have an accompanying note that is not presented or uploaded within the timeline required by this policy, shall be considered as unexcused absences. Students with (8) unexcused absences in a course in a semester may not receive credit for that course. At the discretion of the principal after consultation with persons having knowledge of the circumstances of unexcused absences, the student may be denied promotion or graduation. Excessive absences shall not be a reason for expulsion or dismissal of a student.

When a student has multiple unexcused absences, his/her parents, legal guardians, persons with lawful control of the student, or persons standing in loco parentis shall be notified[6]. Notification shall be by telephone by the end of the school day in which such absence occurred or by regular mail with a return address sent no later than the following school day.

Whenever a student exceeds (8) unexcused absences in a semester, the District shall notify the prosecuting authority and the parent, legal guardian, person having lawful control of the student, or persons standing in loco parentis shall be subject to a civil penalty as prescribed by law.

It is the Arkansas General Assembly's intention that students having excessive absences be given assistance in obtaining credit for their courses. Therefore, at any time prior to when a student exceeds the number of unexcused absences permitted by this policy, the student, or his/her parent, legal guardian, person with lawful control of the student, or person standing in loco parentis may petition the school or district's administration for special arrangements to address the student's unexcused absences. If formal arrangements are granted, they shall be formalized into a written agreement which will include the conditions of the agreement and the consequences for failing to fulfill the agreement's requirements. The agreement shall be signed by the student, the student's parent,; legal guardian,; person having lawful control of the student; or person standing in loco parentis, and the school or district administrator or

designee.

Students who attend in-school suspension shall not be counted absent for those days.

Days missed due to out-of-school suspension or expulsion shall be unexcused absences. “Reward days” that students do not qualify for will be unexcused if they miss, unless they bring a doctor note.

The District shall notify the Department of Finance and Administration whenever a student fourteen (14) years of age or older is no longer in school. The Department of Finance and Administration is required to suspend the former student’s operator’s license unless he/she meets certain requirements specified in the statute.

4.8—MAKE-UP WORK

Students who miss school due to an excused absence shall be allowed to make up the work they missed during their absence under the following rules.

1. Students are responsible for asking the teachers of the classes they missed what assignments they need to make up.

2. Teachers are responsible for providing the missed assignments when asked by a returning student.

3. Students are required to ask for their assignments on their first day back at school or their first class day after their return.

4. Make-up tests are to be rescheduled at the discretion of the teacher.

5. Students shall have one class day to make up their work for each class day they are absent for full credit.

6. Make-up work which is not turned in within the make-up schedule for that assignment will be left up to the individual teacher. This could result in no credit for the assignment.

7. Students are responsible for turning in their make-up work without the teacher having to ask for it.

8. Students who are absent on the day their make-up work is due must turn in their work the day they return to school whether or not the class for which the work is due meets the day of their return.

9. As required/permitted by the student’s Individual Education Program or 504 Plan.

Work may not be made up for credit for unexcused absences **unless** the unexcused absences are part of a signed agreement as permitted by policy 4.7—ABSENCES.[5]

Work for students serving an out-of-school suspension or expulsion shall be in accordance with the District’s programs, measures, or alternative means and methods to continue student engagement and access to education during the student’s period of suspension or expulsion. OSS students’ work will be due on the day they return to school. There will be no extensions for OSS work.

In lieu of the timeline above, assignments for students who are excluded from school by the Arkansas Department of Health during a disease outbreak are to be made up as set forth in Policy

4.57—IMMUNIZATIONS.

In addition to the make-up work process above, at the conclusion of a pregnancy-related or parenting-related period of absence, a student may choose from various options to make up missed work, including without limitation:

a.Retaking a semester at the District school where the student is enrolled;

b.Participating in an online course credit recovery program;

c.Being granted six (6) weeks to continue at the same pace and finish the semester at a later date, provided that the student may:

•Complete the student's coursework within the current school year; or

•Attend previously scheduled summer school classes made available by the District Where the student is enrolled; and

d.Receiving home-based instruction services.

4.10—CLOSED CAMPUS

All schools in the Kirby School District shall operate closed campuses. Students are required to stay on campus from their arrival until dismissal at the end of the regular school day unless given permission to leave the campus by a school official. Students must sign out in the office upon their departure.

4.11—EQUAL EDUCATIONAL OPPORTUNITY

No student in the Kirby School District shall be excluded from participation in, or denied the benefits of, or subjected to discrimination under any educational program or activity sponsored by the District on the basis of any protected classification under the law. The District has a limited open forum granting equal access to the Boy Scouts of America and other youth groups.

Inquiries on non-discrimination may be directed to Pike Palmer, who may be reached at 870-398-4212.

Any person may report sex discrimination, including sex-based harassment, to the Title IX Coordinator in person or by using the mailing address, telephone number, or email address provided above. A report may be made at any time, including during non-business hours, and may be on the individual's own behalf or on behalf of another individual who is the person alleged to be the victim of conduct that could constitute sex discrimination or sex-based harassment.

For further information on notice of non-discrimination or to file a complaint, visit http://wdcrobcolp01.ed.gov/CFAPPS/OCR/contactus.cfm; for the address and phone number of the office that serves your area, or call 1-800-421-3481.

4.12—STUDENT ORGANIZATIONS/EQUAL ACCESS

Non-curriculum-related secondary school student organizations wishing to conduct meetings on school premises during non instructional time shall not be denied equal access on the basis of the religious, political, philosophical, or other content of the speech at such meetings. Such meetings must meet the following criteria.

1. The meeting is to be voluntary and student initiated;

2. There is no sponsorship of the meeting by the school, the government, or its agents or employees;

3. The meeting must occur during non instructional time;

4. Employees or agents of the school are present at religious meetings only in a non participatory capacity;

5. The meeting does not materially and substantially interfere with the orderly conduct of educational activities within the school; and

6. Non-school persons may not direct, conduct, control, or regularly attend activities of student groups.

All meetings held on school premises must be scheduled and approved by the principal. The school, its agents, and employees retain the authority to maintain order and discipline, to protect the wellbeing of students and faculty, and to assure that attendance of students at meetings is voluntary.

Fraternities, sororities, and secret societies are forbidden in the District's schools. Membership to student organizations shall not be by a vote of the organization's members, nor be restricted by the student's race, religion, sex, national origin, or other arbitrary criteria. Hazing, as defined by law, is forbidden in connection with initiation into, or affiliation with, any student organization, extracurricular activity or sport program. Students who are convicted of participation in hazing or the failure to report hazing shall be expelled.

4.13—PRIVACY OF STUDENTS' RECORDS/ DIRECTORY INFORMATION

Except when a court order regarding a student has been presented to the district to the contrary, all students' education records are available for inspection and copying by the parent of his/her student who is under the age of eighteen (18). At the age of eighteen (18), the right to inspect and copy a student's records transfers to the student. A student's parent or the student, if over the age of 18, requesting to review the student's education records will be allowed to do so within no more than forty five (45) days of the request. The district forwards education records, including disciplinary records, to schools that have requested them and in which the student seeks or intends to enroll, or is already enrolled so long as the disclosure is for purposes related to the student's enrollment or transfer.

The district shall receive written permission before releasing education records to any agency or individual not authorized by law to receive and/or view the education records without prior parental permission. The District shall maintain a record of requests by such agencies or individuals for access to, and each disclosure of personally identifiable information ("PII") from the education records of each student. Disclosure of education records is authorized by law to school officials with legitimate educational interests. A personal record kept by a school staff member is not considered an education

record if it meets the following tests.

• it is in the sole possession of the individual who made it;

• it is used only as a personal memory aid; and

• information contained in it has never been revealed or made available to any other person, except the maker's temporary substitute. For the purposes of this policy a school official is a person employed by the school as an administrator, supervisor, instructor, or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the school board; a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.

For the purposes of this policy a school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility, contracted duty, or duty of elected office. In addition to releasing PII to school officials without permission, the District may disclose PII from the education records of students in foster care placement to the student's caseworker or to the caseworker's representative without getting prior consent of the parent (or the student if the student is over eighteen (18)). For the District to release the student's PII without getting permission:

• The student must be in foster care;

• The individual to whom the PII will be released must have legal access to the student's case plan; and

• The Arkansas Department of Human Services, or a sub-agency of the Department, must be legally responsible for the care and protection of the student. The District discloses PII from an education record to appropriate parties, including parents, in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals. The superintendent or designee shall determine who will have access to and the responsibility for disclosing information in emergency situations.

When deciding whether to release PII in a health or safety emergency, the District may take into account the totality of the circumstances pertaining to a threat to the health or safety of a student or other individuals. If the District determines that there is an articulable and significant threat to the health or safety of a student or other individuals, it may disclose information from education records to any person whose knowledge of the information is necessary to protect the health or safety of the student or other individuals.

For purposes of this policy, the Kirby School District does not distinguish between a custodial and noncustodial parent, or a non-parent, such as a person acting in loco parentis or a foster parent with respect to gaining access to a student's records. Unless a court order restricting such access has been presented to the district to the contrary, the fact of a person's status as a parent or guardian, alone, enables that parent or guardian to review and copy his child's records.

If there exists a court order which directs that a parent not have access to a student or his records, the parent, guardian, person acting in loco parentis, or an agent of the Department of Human Services must present a file-marked copy of such order to the building principal and the superintendent. The school

will make good-faith efforts to act in accordance with such court order, but the failure to do so does not impose legal liability upon the school. The actual responsibility for enforcement of such court orders rests with the parents or guardians, their attorneys and the court which issued the order.

A parent or guardian does not have the right to remove any material from a student's records, but such parent or guardian may challenge the accuracy of a record. The right to challenge the accuracy of a record does not include the right to dispute a grade, disciplinary rulings, disability placements, or other such determinations, which must be done only through the appropriate teacher and/or administrator, the decision of whom is final. A challenge to the accuracy of material contained in a student's file must be initiated with the building principal, with an appeal available to the Superintendent or his designee. The challenge shall clearly identify the part of the student's record the parent wants changed and specify why he/she believes it is inaccurate or misleading. If the school determines not to amend the record as requested, the school will notify the requesting parent or student of the decision and inform them of their right to a hearing regarding the request for amending the record. The parent or eligible student will be provided information regarding the hearing procedure when notified of the right to a hearing.

Unless the parent or guardian of a student (or student, if above the age of eighteen [18]) objects, "directory information" about a student may be made available to the public, military recruiters, post-secondary educational institutions, prospective employers of those students, as well as school publications such as annual yearbooks and graduation announcements. "Directory information" includes, but is not limited to, a student's name, address, telephone number, electronic mail address, photograph, date and place of birth, dates of attendance, his/her placement on the honor roll (or the receipt of other types of honors), as well as his/her participation in school clubs and extracurricular activities, among others. If the student participates in inherently public activities (for example, basketball, football, or other interscholastic activities), the publication of such information will be beyond the control of the District. "Directory information" also includes a student identification (ID) number, user ID, or other unique personal identifier used by a student for purposes of accessing or communicating in electronic systems and a student ID number or other unique personal identifier that is displayed on a student's ID badge, provided the ID cannot be used to gain access to education records except when used in conjunction with one or more factors that authenticate the user's identity, such as a personal identification number (PIN), password or other factor known or possessed only by the authorized user.

A student's name and photograph will only be displayed on the district or school's web page(s) after receiving the written permission from the student's parent or student if over the age of 18.

The form for objecting to making directory information available is located in the back of the student handbook and must be completed and signed by the parent or age-eligible student and filed with the building principal's office no later than ten (10) school days after the beginning of each school year or the date the student is enrolled for school. Failure to file an objection by that time is considered a specific grant of permission. The district is required to continue to honor any signed-opt out form for any student no longer in attendance at the district.

The right to opt out of the disclosure of directory information under Family Educational Rights and Privacy Act (FERPA) does not prevent the District from disclosing or requiring a student to disclose the student's name, identifier, or institutional email address in a class in which the student is enrolled.

Parents and students over the age of 18 who believe the district has failed to comply with the

requirements for the lawful release of student records may file a complaint with the U.S. Department of Education at Family Policy Compliance Office, U.S. Department of Education, 400 Maryland Avenue, Washington, DC 20202

The District shall ensure that all contracts that disclose or make available student personally identifiable information to vendors, including school service contract providers, school service on-demand providers, and other third parties, including without limitation subcontractors of contract providers, include express provisions that safeguard the privacy and security of student personally identifiable information that meet the requirements under A.C.A. § 6-18-2601 et seq. The District shall maintain a list of the school service contract providers that the District contracts with for school services that include or make available student personally identifiable information. The list shall be updated at least once at the beginning of each semester and provided to parents upon request.

4.14—STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE

Student Media

All student media that are supported financially by the school or by use of school facilities, or are produced in conjunction with a class shall be considered school-sponsored media. School-sponsored media does not provide a forum for public expression. Student media, as well as the content of student expression in school-sponsored activities, shall be subject to the editorial review of the District's administration, whose actions shall be reasonably related to legitimate pedagogical concerns and adhere to the following limitations.:

1. Advertising may be accepted for media that does not condone or promote products that are inappropriate for the age and maturity of the audience or that endorses such things as tobacco, alcohol, or drugs.
2. Media may be regulated to prohibit communications determined by the appropriate teacher, student media advisor, and/or administrator, to be ungrammatical,; poorly written,; inadequately researched,; biased or prejudiced,; vulgar or profane,; or unsuitable for immature audiences.
3. Media may be regulated to prohibit the dissemination of material that may reasonably be perceived to advocate drug or alcohol use,; irresponsible sex,; or conduct that is otherwise inconsistent with the shared values of a civilized social order,; or to associate the school with any position other than neutrality on matters of political controversy.
4. Prohibited media includes those that:
    a. Are obscene as to minors;
    b. Are libelous or slanderous, including material containing defamatory falsehoods about public figures or governmental officials, and made with knowledge of their falsity or a reckless disregard of the truth;
    c. Constitute an unwarranted invasion of privacy as defined by state law,;
    d. Suggest or urge the commission of unlawful acts on the school premises;
    e. Suggest or urge the violation of lawful school regulations;
    f. Attacks ethnic, religious, or racial groups.; or
    g. Harass, threaten, or intimidate a student.

Student Media on School Web Pages

Student media displayed on school web pages shall follow the same guidelines as listed above; and shall also:

1. Not contain any non-educational advertisements.
2. Adhere to the restrictions regarding use of Directory Information as prescribed in Policy 4.13 including not using a student's photograph when associated with the student's name unless written permission has been received from the student's parent or student if over the age of 18;
3. State that the views expressed are not necessarily those of the School Board or the employees of the district.

Student Distribution of Non-school Literature, Publications, and Materials

A student or group of students who distribute ten (10) or fewer copies of the same non-school literature, publications, or materials (hereinafter "non-school materials"), shall do so in a time, place, and manner that does not cause a substantial disruption of the orderly education environment. A student or group of students wishing to distribute more than ten (10) copies of non-school materials [1] shall have school authorities[2] review their non-school materials at least three (3) school days[3] in advance of their desired time of dissemination. School authorities shall review the non-school materials, prior to their distribution and will bar from distribution those non-school materials that are obscene, libelous, pervasively indecent, or advertise unlawful products or services. Material may also be barred from distribution if there is evidence that reasonably supports a forecast that a substantial disruption of the orderly operation of the school or educational environment will likely result from the distribution.[4] Concerns related to any denial of distribution by the principal shall be heard by the superintendent, whose decision shall be final.

The school principal or designee shall establish reasonable regulations governing the time, place, and manner of student distribution of non-school materials.

The regulations shall:

1. Be narrowly drawn to promote orderly administration of school activities by preventing disruption and may not be designed to stifle expression;
2. Be uniformly applied to all forms of non-school materials;
3. Allow no interference with classes or school activities;
4. Specify times, places, and manner where distribution may and may not occur[5]; and
5. Not inhibit a person's right to accept or reject any literature distributed in accordance with the regulations.[6]
6. Students shall be responsible for the removal of excess literature that is left at the distribution point for more than ___ days.[7]

The Superintendent, along with the student media advisors[8], shall develop administrative regulations for the implementation of this policy. The regulations shall include definitions of terms and timelines for the review of materials.

4.15—CONTACT WITH STUDENTS WHILE AT SCHOOL

Contact by Parents

Parents wishing to speak to their children during the school day shall register first with the appropriate school office.

Contact by Non-Custodial Parents:

If there is any question concerning the legal custody of the student, the custodial parent shall present documentation to the principal or the principal's designee establishing the parent's custody of the student. It shall be the responsibility of the custodial parent to make any court ordered "no contact" or other restrictions regarding the non- custodial parent known to the principal by presenting a copy of a file-marked court order. Without such a court order on file, the school will release the child to either of his/her parents. Non-custodial parents who file with the principal a date- stamped copy of current court orders granting visitation may eat lunch, volunteer in their child's classroom, or otherwise have contact with their child during school hours and the prior approval of the school's principal. Such contact is subject to the limitations outlined in Policy 4.16, Policy 6.5, and any other policies that may apply.

Arkansas law provides that, in order to avoid continuing child custody controversies from involving school personnel and to avoid disruption to the educational atmosphere in the District's schools, the transfer of a child between his/her custodial parent and noncustodial parent, when both parents are present, shall not take place on the school's property on normal school days during normal hours of school operation. The custodial or noncustodial parent may send to/drop off the student at school to be sent to/picked up by the other parent on predetermined days in accordance with any court order provided by the custodial parent or by a signed agreement between both the custodial and non-custodial parents that was witnessed by the student's building principal. Unless a valid no-contact order has been filed with the student's principal or the principal's designee, district employees shall not become involved in disputes concerning whether or not that parent was supposed to pick up the student on any given day.

Contact by Law Enforcement, Social Services, or by Court Order

State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes against Children Division of the Division of Arkansas State Police, may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Except as provided below, other questioning of students by non- school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, or other person having lawful control by court order, or person acting in loco parentis identified on student enrollment forms. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes against Children Division of the Division of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

Contact by Professional Licensure Standards Board Investigators

Investigators for the Professional Licensure Standards Board may meet with students during the school day to carry out the investigation of an ethics complaint.

4.16—STUDENT VISITORS

The board strongly believes that the purpose of school is for learning. Social visitors, generally, disrupt the classroom and interfere with learning that should be taking place. Therefore, visiting with students at school is strongly discouraged unless approved by the principal and scheduled in advance. This includes visits made by former students, friends, and/or relatives of teachers or students. Any visitation to the classroom shall be allowed only with the permission of the school principal. All visitors must first register at the office.

4.17—STUDENT DISCIPLINE

The Kirby School District Board of Education has a responsibility to protect the health, safety, and welfare of the District's students and employees. To help maintain a safe environment conducive to high student achievement, the Board establishes policies necessary to regulate student behavior to promote an orderly school environment that is respectful of the rights of others and ensures the uniform enforcement of student discipline. Students are responsible for their conduct that occurs:

- At any time on the school grounds;
- Off school grounds at a school sponsored function, activity, or event; and
- Going to and from school or a school activity

The District's administrators may also take disciplinary action against a student for off-campus conduct occurring at any time that would have a detrimental impact on school discipline, the educational environment, or the welfare of the students and/or staff. A student who has committed a criminal act while off campus and whose presence on campus could cause a substantial disruption to school or endanger the welfare of other students or staff is subject to disciplinary action up to and including expulsion. Such acts could include, but are not limited to

- A felony or an act that would be considered a felony if committed by an adult;
- An assault or battery;
- Drug law violations; or

- Sexual misconduct of a serious nature.

Any disciplinary action pursued by the District shall be in accordance with the student's appropriate due process rights.

The District shall incorporate the District's implementation of positive behavioral supports in accordance with Policy 4.60 in the application of student discipline.

The District's personnel policy committees shall annually review the District's student discipline policies, including State and District student discipline data, and may recommend changes in the policies to the Kirby School Board. The Board has the responsibility of determining whether to approve any recommended changes to student discipline policies.

The District's student discipline policies shall be distributed to each student during the first week of school each year and to new students upon their enrollment. Each student's parent, or legal guardian, person having lawful control of the student, or person standing in loco parentis shall sign and return to the school an acknowledgement form documenting that they have received the policies.

The District shall develop and provide programs, measures, or alternative means and methods for continued student engagement and educational access during periods of suspension or expulsion.

The superintendent is authorized to modify the penalties set forth in the District's student discipline policies on a case-by-case basis.

It is required by law that the principal or the person in charge report to the police any incidents the person has personal knowledge of or has received information leading to a reasonable belief that a person has committed or threatened to commit an act of violence or any crime involving a deadly weapon on school property or while under school supervision. If the person making the report is not the Superintendent, that person shall also inform the Superintendent of the incident. Additionally, the principal shall inform any school employee or other person who initially reported the incident that a report has been made to the appropriate law enforcement agency. The Superintendent or designee shall inform the Board of Directors of any such report made to law enforcement.

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation: the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

4.18—PROHIBITED CONDUCT

Students and staff require a safe and orderly learning environment that is conducive to high student achievement. Certain student behaviors are unacceptable in such an environment and are hereby prohibited by the Board. Prohibited behaviors include, but shall not be limited to the following.

1. Disrespect for school employees and failing to comply with their reasonable directions or otherwise demonstrating insubordination;

2. Disruptive behavior that interferes with orderly school operations;

3. Willfully and intentionally assaulting or threatening to assault or physically abusing any student or school employee;

4. Possession of any weapon that can reasonably be considered capable of causing bodily harm to another individual;

5. Possession or use of tobacco in any form on any property owned or leased by any public school;

6. Willfully or intentionally damaging, destroying, or stealing school property;

7. Possessionand use of a personal electronic device except as authorized by Policy 4.47 or by the student's IEP or 504 Plan;

8. Possession, selling, distributing, or being under the influence of an alcoholic beverage, any illegal drug, unauthorized inhalants, or the inappropriate use or sharing of prescription or over the counter drugs, or other intoxicants, or anything represented to be a drug;

9. Sharing, diverting, transferring, applying to others (such as needles or lancets), or in any way misusing medication or any medical supplies in their possession;

10. Inappropriate public displays of affection;

11. Cheating, copying, or claiming another person's work to be his/her own;

12. Gambling;

13. Inappropriate student dress;

14. Use of vulgar, profane, or obscene language or gestures;

15. Truancy;

16. Excessive tardiness;

17. Engaging in behavior designed to taunt, degrade, or ridicule another person on the basis of race, ethnicity, national origin, sex, sexual orientation, gender identity or disability;

18. Possess, view, distribute or electronically transmit sexually explicit or vulgar images or representations, whether electronically, on a data storage device, or in hard copy form;

19. Hazing, or aiding in the hazing of another student;

20. Gangs or gang-related activities, including belonging to secret societies of any kind, are forbidden on school property. Gang insignias, clothing, "throwing signs" or other gestures associated with gangs are prohibited;

21. Sex-based harassment;

22. Bullying; and

23. Operating a vehicle on school grounds while using a wireless communication device. The Board directs each school in the District to develop implementation regulations for prohibited student conduct consistent with applicable Board policy, State and Federal laws, and judicial decisions..; and
24. Theft of another individual's personal property.

4.19—CONDUCT TO AND FROM SCHOOL AND TRANSPORTATION ELIGIBILITY

The District's Student Code of conduct applies to students while traveling to and from school or to and from a school activity to the same extent as if the students were on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate the District's Student Code of Conduct.

The preceding paragraph also applies to student conduct while on school buses. Students shall be instructed in safe riding practices.[1] The driver of a school bus shall not operate the school bus until every passenger is seated. In addition to other disciplinary measures provided for violations of the District's Student Code of Conduct, the student's bus transportation privileges may be suspended or terminated for violations of the Student Code of Conduct related to bus behavior.

Students are eligible to receive district bus transportation if they meet the following requirements.[2] The transportation to and from school of students who have lost their bus transportation privileges is the responsibility of the student's parent or guardian.

4.20—DISRUPTION OF SCHOOL

No student shall by the use of violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or any other conduct, intentionally cause the disruption of any lawful mission, process, or function of the school, or engage in any such conduct for the purpose of causing disruption or obstruction of any lawful mission, process, or function. Nor shall any student encourage any other student to engage in such activities.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds. Teachers may remove from class and send to the principal or principal's designee office a student whose behavior is so unruly, disruptive, or abusive that it seriously interferes with the teacher's ability to teach the students, the class, or with the ability of the student's classmates to learn. Students who refuse to leave the classroom voluntarily will be escorted from the classroom by the school administration.

4.21—STUDENT ASSAULT OR BATTERY

A student shall not threaten, physically abuse, or attempt to physically abuse, or behave in such a way as to be perceived to threaten bodily harm to any other person (student, school employee, or school visitors). Any gestures, vulgar, abusive, or insulting language, taunting, threatening, harassing, or intimidating remarks by a student toward another person that threatens his or her well-being is strictly forbidden. This includes, but is not limited to, fighting, racial, ethnic, religious, or sexual slurs.

Furthermore, it is unlawful, during regular school hours, and in a place where a public school employee is required to be in the course of his or her duties, for any person to address a public school employee using language which, in its common acceptation, is calculated to:

a. Cause a breach of the peace;
b. Materially and substantially interfere with the operation of the school; or
c. Arouse the person to whom it is addressed to anger, to the extent likely to cause imminent

retaliation.

Students guilty of such an offense may be subject to legal proceedings in addition to student disciplinary measures.

4.22—WEAPONS AND DANGEROUS INSTRUMENTS

Definitions

“Firearm" means any device designed, made, or adapted to expel a projectile by the action of an explosive or any device readily convertible to that use.

“Possession” means having a weapon on the student’s body or in an area under the student’s control.

“Weapon” means any:

- Firearm;
- Knife;
- Razor;
- Ice pick;
- Dirk;
- Box cutter;
- Nunchucks;
- Pepper spray, mace, or other noxious spray;
- Explosive;
- Taser or other instrument that uses electrical current to cause neuromuscular incapacitation; or
- Any other instrument or substance capable of causing bodily harm.

No , except for Military personnel (such as ROTC cadets) acting in the course of their official duties or as otherwise expressly permitted by this policy, shall possess a weapon, display what appears to be a weapon, or threatens to use a weapon before or after school while:

- In a school building;
- On or about school property;
- At any sponsored activity or event;
- On route to or from school or any school sponsored activity; or
- Off the school grounds at any bus stop.

If a student discovers prior to any questioning or search by any school personnel that he/she has accidentally brought a weapon to school other than a firearm, to school on his/her person, in a book bag/purse, or, in his/her vehicle on school grounds, and the student informs the principal or a staff person immediately, the student will not be considered to be in possession of a weapon. The weapon shall be confiscated and held in the office until such time as the student’s parent/legal guardian shall pick up the weapon from the school’s office. Repeated offenses are unacceptable and shall be grounds for disciplinary action against the student as otherwise provided for in this policy.

Except as permitted in this policy, students found to be in possession on the school campus of a firearm shall be recommended for expulsion for a period of one (1) year. The superintendent shall have the

discretion to modify such expulsion recommendation for a student on a case-by-case basis.

Parents or legal guardians of students expelled under this policy shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a firearm on school property. Parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to readmitting the student. Parents or legal guardians of a student enrolling from another school after the expiration of an expulsion period for a firearm policy violation shall also be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a firearm on school property. The parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The mandatory expulsion requirement does not apply to a firearm authorized by the district for use in a sanctioned activity that includes the use of firearms. Such activities may include ROTC programs, hunting safety or military education, or before or after-school hunting or rifle clubs. A firearm brought inadvertently to school by a student shall be grounds for disciplinary action against the student, but the School Board of Directors may consider the "inadvertent circumstances" of the incident in determining the student's discipline.

The district shall report any student who brings a firearm to school to the criminal justice system or juvenile delinquency system by notifying local law enforcement.

4.24—DRUGS AND ALCOHOL

An orderly and safe school environment that is conducive to promoting student achievement requires a student population free from the deleterious effects of alcohol and drugs. Their use is illegal, disruptive to the educational environment, and diminishes the capacity of students to learn and function properly in our schools.

Therefore, no student in the Kirby School District shall possess, attempt to possess, consume, use, distribute, sell, buy, attempt to sell, attempt to buy, give to any person, or be under the influence of any substance as defined in this policy, or what the student represents or believes to be any substance as defined in this policy. This policy applies to any student who:

- Is on or about school property;
- Is in attendance at school or any school sponsored activity;
- Has left the school campus for any reason and returns to the campus; or
- Is on route to or from school or any school sponsored activity.

Prohibited substances shall include, but are not limited too Alcohol, or any alcoholic beverage;

- Inhalants or any ingestible matter that alter a student's ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;1
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;

- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.

The sale, distribution, or attempted sale or distribution of over-the-counter (OTC) medications, dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited. The possession or use of OTC medications, dietary supplements or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited except as permitted under Policy 4.35—STUDENT MEDICATIONS.

4.25—STUDENT DRESS AND GROOMING

The Kirby Board of Education recognizes that dress can be a matter of personal taste and preference. At the same time, the District has a responsibility to promote an environment conducive to student learning. This requires limitations to student dress and grooming that could be disruptive to the educational process because they are immodest, disruptive, unsanitary, unsafe, could cause property damage, or are offensive to common standards of decency.

Students are prohibited from wearing, while on the school grounds during the school day and at school-sponsored events, clothing that exposes underwear, buttocks, or the breast of a female. This prohibition does not apply, however to a costume or uniform worn by a student while participating in a school-sponsored activity or event. A student shall not be disciplined or discriminated against based upon the student's natural, protective, or cultural hairstyle. A student’s natural, protective, or cultural hairstyle includes without limitation afros, dreadlocks, twists, locs, braids, cornrow braids, Bantu knots, curls, and hair styled to protect hair texture or for cultural significance.

The Superintendent shall establish student dress codes for the District’s schools, to be included in the student handbook, and are consistent with the above criteria.

4.27—STUDENT SEX DISCRIMINATION AND SEX-BASED HARASSMENT

The Kirby School District is committed to providing an academic and work environment that treats all students and employees with respect and dignity. Student achievement is best attained in an atmosphere of equal educational and employment opportunity that is free of discrimination. Sex-based harassment is a form of sex discrimination that undermines the integrity of the educational and work environment and will not be tolerated.

- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;

- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.

- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.

- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.

- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;

- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance
- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.
- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.
- Alcohol, or any alcoholic beverage;
- Inhalants or any ingestible matter that alter a student’s ability to act, think, or respond;
- LSD or any other hallucinogen;
- Marijuana;[1]
- Cocaine, heroin, or any other narcotic drug;
- PCP;
- Amphetamines;
- Steroids;
- “Designer drugs”;
- Look-alike drugs; or
- Any controlled substance.

The District believes the best policy to create an educational and work environment free from sex discrimination and sex-based harassment is prevention; therefore, the District shall provide informational materials and training to students, parents/legal guardians/other responsible adults, and employees on sex-based harassment. The informational materials and training on sex-based harassment shall be age appropriate and, when necessary, provided in a language other than English or in an accessible format.

The informational materials and training shall include, but are not limited to:

- the nature of sex-based harassment;
- The District's written procedures governing the complaint grievance process;[1]
- The process for submitting a complaint of sex discrimination and sex-based harassment;
- That the district does not tolerate sex-based harassment;
- That students and employees can report inappropriate behavior of a sexual nature without fear of adverse consequences;
- The supports that are available to individuals suffering sex-based harassment; and
- The potential discipline for perpetrating sex-based harassment.

Definitions

"Complainant" means an individual who is alleged to be the victim of conduct that could constitute sex discrimination or sex-based harassment.

"Complaint" means an oral or written request to the District that objectively can be understood as a request for the District to investigate and make a determination about alleged sex discrimination or sex-based harassment.

"Education program or activity" includes locations, events, or circumstances where the District exercised substantial control over both the respondent and the context in which the sex discrimination or sex-based harassment occurs.

"Respondent" means an individual who has been reported to be the perpetrator of conduct that could constitute sex discrimination or sex-based harassment.

"Sex-based harassment" means conduct on the basis of sex that satisfies one or more of the following:

1. A District employee:

    a. Conditions the provision of an aid, benefit, or service of the District on an individual's participation in sexual conduct;[2] or
    b. Uses the rejection of sexual conduct as the basis for academic decisions affecting that individual;[2]

2. The conduct is:

    a. Unwelcome; and
    b. Is subjectively and objectively offensive and so severe, or pervasive, that it limits or denies a person the ability to participate in or benefit from the District's education program or activity based on the totality of the circumstances; or

3. Constitutes:

    a. Sexual assault;
    b. Dating violence
    c. Domestic violence; or
    d. Stalking.

"Supportive measures" means individualized services that are offered to the complainant or made available to the respondent designed to restore or preserve equal access to the District's education program or activity without unreasonably burdening the other party. The supportive measures must be non-disciplinary and non-punitive in nature; offered before or after the filing of a complaint or where no complaint has been filed; and offered to either party as appropriate, as reasonably available, and without fee or charge. Examples of supportive measures include, but are not limited to: measures designed to protect the safety of all parties or the District's educational environment, or deter sex-based harassment; counseling; extensions of deadlines or other course-related adjustments; modifications of work or class schedules; campus escort services; restrictions on contact between one or more parties; changes in work or class locations; leaves of absence; and increased security and monitoring of certain areas of the campus.

Within the educational environment, sex-based harassment is prohibited between any of the following: students; employees and students; and non-employees and students.

Actionable sex-based harassment is generally established when an individual is exposed to a pattern of objectionable behaviors or when a single, serious act is committed. What is, or is not, sex-based harassment will depend upon all of the surrounding circumstances and may occur regardless of the sex(es) of the individuals involved. Depending upon such circumstances, examples of sex-based harassment include, but are not limited to:

· Making sexual propositions or pressuring for sexual activities;

· Unwelcome touching;

· Writing graffiti of a sexual nature;

· Displaying or distributing sexually explicit drawings, pictures, or written materials;

· Performing sexual gestures or touching oneself sexually in front of others;

· Telling sexual or crude jokes;

· Spreading rumors related to a person's alleged sexual activities;

· Discussions of sexual experiences;

· Rating other students or employees as to sexual activity or performance;

· Circulating or showing e-mails or Web sites of a sexual nature;

· Treatment based on an individual's pregnancy or pregnancy related conditions;

· Intimidation by words, actions, insults, or name calling; and

· Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether or not the individual self-identifies as homosexual or transgender.

Students who believe they have been subjected to sex-based harassment, or the parent/legal guardian/other responsible adult of a student who believes their student has been subjected to sex-based harassment, are encouraged to bring their concerns to any District staff member, including a counselor, teacher, Title IX coordinator, or administrator. If the District staff member who received a report of alleged sex-based harassment is not the Title IX Coordinator, then the District staff person shall inform the Title IX Coordinator of the alleged sex-based harassment. As soon as reasonably possible after receiving a report of alleged sex-based harassment from another District staff member or after receiving a report directly through any means, the Title IX Coordinator shall contact the complainant to:

- Discuss the availability of supportive measures;
- Consider the complainant's wishes with respect to supportive measures;
- Inform the complainant of the availability of supportive measures with or without the filing of a complaint;
- explain to the complainant the process for filing a complaint~~.~~; and
- Provide the complainant information on the District's grievance procedures.

Title IX Coordinator Initiated Complaint

In the absence of a complaint or the withdrawal of any or all of the allegations in a complaint, the Title IX Coordinator shall determine whether to initiate a complaint. When determining whether or not to initiate a complaint, the Title IX Coordinator shall consider the following factors, at a

minimum:
1. The complainant's request not to proceed with initiation of a complaint;
2. The complainant's reasonable safety concerns regarding initiation of a complaint;
3. The risk that additional acts of sex discrimination or sex-based harassment would occur if a complaint is not initiated;
4. The severity of the alleged sex discrimination or sex-based harassment, including whether it would require the removal of a respondent from campus or imposition of another disciplinary sanction to end the discrimination and prevent its recurrence;
5. The age and relationship of the parties, including whether the respondent is a District employee;
6. The scope of the alleged sex discrimination or sex-based harassment, including information suggesting a pattern, whether the sex discrimination or sex-based harassment is ongoing, or the sex discrimination or sex-based harassment is alleged to have impacted multiple individuals;
7. The availability of evidence to assist a decisionmaker in determining whether sex discrimination or sex-based harassment occurred; and
8. Whether the District could end the alleged sex discrimination and prevent its recurrence without initiating its grievance procedures.

After considering these and other relevant factors, the Title IX Coordinator may initiate a complaint if the Title IX Coordinator determines that the conduct as alleged:

A. Presents an imminent and serious threat to the health or safety of the complainant or other person; or

B. Prevents the District from ensuring equal access on the basis of sex to its education program or activity.

If the Title IX Coordinator initiates a complaint, the Title IX Coordinator shall notify the complainant prior to doing so and appropriately address reasonable concerns about the safety of the complainant or others, which may include providing supportive measures.

Supportive Measures

The District shall offer supportive measures to the complainant and make supportive measures available to the respondent that are designed to restore or preserve equal access to the District's education program or activity without unreasonably burdening the other party before or after the filing of a ~~formal~~ complaint or where no ~~formal~~ complaint has been filed. The District shall provide the individualized supportive measures to the complainant unless declined in writing by the complainant and shall provide individualized supportive measures that are non-disciplinary and non-punitive to the respondent. A complainant who initially declined the District's offer of supportive measures may request supportive measures at a later time and the District shall provide individualized supportive measures based on the circumstances when the subsequent request is received.

The Title IX Coordinator shall designate an individual to whom the District's providing, denying,

modifying, or terminating of supportive measures may be appealed. The designated individual shall have authority to modify or reverse the District's decision if it is determined that the decision to provide, deny, modify, or terminate the supportive measure(s) was inconsistent with the definition of supportive measures. A party shall have the opportunity to seek additional modification or termination of a supportive measure applicable to them if there is a material change in circumstances.

Students With Disabilities

If a complainant or respondent is a student with a disability, the Title IX Coordinator shall consult with one (1) or more members, as appropriate, of the student's Individualized Education Program (IEP) team or the student's 504 team to ensure compliance with the Individuals with Disabilities Education Act and the Rehabilitation Act of 1973 throughout the grievance process.

Complaint

A complaint may be filed with the Title IX Coordinator in person, by phone, by mail, or by email. Upon receipt of a complaint, a District shall simultaneously provide the following written notice to the parties who are known:

- Notice of the District's grievance process and a copy of the procedures governing the grievance process;

- Notice of the allegations of sex-based harassment including sufficient details known at the time to allow the parties to respond to the allegations. Sufficient details include:

  The identities of the parties involved in the incident, if known;
  The conduct allegedly constituting sex-based harassment; and
  The date and location of the alleged incident, if known;

- A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process;

- A statement that retaliation is prohibited;

- That the parties may have an advisor of their choice, who may be, but is not required to be, an attorney;

- That the parties may inspect and review evidence relevant, and not otherwise impermissible, to the complaint of sex-based harassment; and

- That the District's code of conduct prohibits knowingly making false statements or knowingly submitting false information during the grievance process.

If, in the course of an investigation, the District decides to investigate allegations about the complainant or respondent that are not included in the previous notice, the District shall simultaneously provide notice of the additional allegations to the parties whose identities are known.

The District may consolidate complaints of allegations of sex-based harassment where the allegations of sex-based harassment arise out of the same facts or circumstances and the complaints are against more than one respondent; or by more than one complainant against one or more respondents; or by one party against the other party. When the District has consolidated complaints so that the grievance process involves more than one complainant or more than one respondent, references to the singular "party", "complainant", or "respondent" include the plural, as applicable.

When investigating a complaint and throughout the grievance process, a District shall:

· Ensure that the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rest on the District and not on the parties;

· Not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege or access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party unless the District obtains the parent, legal guardian, or other responsible adult of that party's voluntary, written consent or that party's voluntary, written consent if the party is over the age of eighteen (18) to do so for the grievance process;

· Provide an equal opportunity for the parties to present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence;

· Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;

· Provide the parties with the same opportunities to have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be, but is not required to be, an attorney, and not limit the choice or presence of advisor for either the complainant or respondent in any meeting or grievance proceeding;

· Provide, to a party whose participation is invited or expected, written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare to participate;

· Provide both parties an equal opportunity to inspect and review any evidence obtained as part of the

investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation; this includes evidence:

§ Whether obtained from a party or other source,;
§ The District does not intend to rely upon in reaching a determination regarding responsibility; and
§ That is either Inculpatory or exculpatory; and

· Create an investigative report that fairly summarizes relevant evidence.

At least five (5) days prior to completion of the investigative report, the District shall send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy. The parties shall have at least five (5) days to submit a written response to the evidence. The investigator will consider the written responses prior to completion of the investigative report. All evidence subject to inspection and review shall be available for the parties' inspection and review at any meeting to give each party equal opportunity to refer to such evidence during the meeting.

After the investigative report is sent to the parties, the decision-maker shall:

o Provide each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness;

o Provide each party with the answers;

o Allow for additional, limited follow-up questions from each party; and

o To the party proposing the questions, provide an explanation regarding any decision to exclude a question as not relevant. Specifically, questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent.

No earlier than five (5) days following the completion of the investigation period, the No earlier than five (5) days following the completion of the investigation period, the decision-maker shall issue a written determination regarding responsibility. The written determination shall include:

1. Identification of the allegations potentially constituting sex discrimination or sex-based harassment;

2. A description of the procedural steps taken from the receipt of the complaint through the determination,

including:

a. Any notifications to the parties;
b. Interviews with parties and witnesses;
c. Site visits;
d. Methods used to gather other evidence,; and
e. Hearings held;

3. Findings of fact supporting the determination;

4. Conclusions regarding the application of the District's code of conduct to the facts;

5. A statement of, and rationale for, the result as to each allegation, including:

a. A determination regarding responsibility;
b. Any disciplinary sanctions imposed on the respondent; and
c. Whether remedies designed to restore or preserve equal access to the District's education program or activity will be provided by the District to the complainant; and

6. The procedures and permissible bases for the complainant and respondent to appeal.

The written determination shall be provided to the parties simultaneously. The determination regarding responsibility shall become final on the earlier of:

· If an appeal is not filed, the day after the period for an appeal to be filed expires; or

· If an appeal is filed, the date the written determination of the result of the appeal is provided to the parties.

The District shall investigate the allegations in a complaint. If the conduct alleged in the complaint would not constitute sex-based harassment as defined in this policy even if proved; did not occur in the District's education program or activity; or did not occur against a person in the United States, then the District shall dismiss the complaint as not meeting the definition of sex-based harassment under this policy. A dismissal for these reasons does not preclude action under another provision of the District's code of conduct.

The District may dismiss a complaint or any allegations therein, if at any time during the grievance process:

○ The complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the complaint or any allegations therein;

○ The District was unable to identify the respondent after taking reasonable steps to do so;

○ The respondent is no longer employed or enrolled at the District;

○ Specific circumstances prevent the District from gathering evidence sufficient to reach a determination as to the complaint or allegations therein.; or

○ The District determines the conduct alleged in the complaint, even if proven, would not constitute sex discrimination or sex-based harassment.

Upon the dismissal of a complaint for any reason, the District shall promptly send written notice of the dismissal and reason(s) for the dismissal simultaneously to the parties.

The Title IX Coordinator may delegate the investigation or the determination as necessary to prevent a conflict from arising or the appearance of bias, including hiring an individual or individuals to conduct the investigation or to act as the decision-maker when necessary.

Appeals

Either party may appeal a determination regarding responsibility or from a dismissal of a ~~formal~~ complaint or any allegations therein, on the following bases:

a. The existence of a procedural irregularity that affected the outcome of the matter;

b. Discovery of new evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter;

C. The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter; or

d. An appeal of the disciplinary sanctions from the initial determination.[4][5]

For all appeals, the District shall:

1. Notify the other party in writing when an appeal is filed;

2. Simultaneously Provide all parties a written copy of the District's procedures governing the appeal process;

3. Implement appeal procedures equally for both parties;

4. Ensure that the decision-maker for the appeal is not the same person as the decision-maker that reached the original determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator;

5. Provide all parties a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome;

6. Issue a written decision describing the result of the appeal and the rationale for the result; and

7. Provide the written decision simultaneously to both parties.

Confidentiality

Reports of sex discrimination and sex-based harassment, both informal reports and complaints, will be treated in a confidential manner to the extent possible. Limited disclosure may be provided to:

§ individuals who are responsible for handling the District's investigation and determination of responsibility to the extent necessary to complete the District's grievance process;

§ Submit a report to the child maltreatment hotline;

§ Submit a report to the Professional Licensure Standards Board for reports alleging sex-based harassment by an employee towards a student; or

§ The extent necessary to provide either party due process during the grievance process.

Except as listed above, the District shall keep confidential the identity of:

Any individual who has made a report or complaint of sex discrimination;

Any individual who has made a report or filed a complaint of sex-based harassment;

Any complainant;

Any individual who has been reported to be the perpetrator of sex discrimination;

Any respondent; and

Any witness.

Any supportive measures provided to the complainant or respondent shall be kept confidential to the

extent that maintaining such confidentiality does not impair the ability of the District to provide the supportive measures.

Emergency removal

The District may remove a respondent from the District's education program or activity on an emergency basis only after the completion of an individualized safety and risk analysis that determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sex discrimination or sex-based harassment justifies removal. A removed student will be provided with notice and an opportunity to challenge the removal decision immediately following the removal.

Retaliation Prohibited

Students, or the parents/legal guardians/ other responsible adult of a student, who submit a report or file a complaint of sex discrimination or sex-based harassment; testified; assisted; or participate or refused to participate in any manner in an investigation, proceeding, or hearing on sex discrimination or sex-based harassment shall not be subjected to retaliation or reprisal in any form, including threats; intimidation; coercion; discrimination; or charges for code of conduct violations that do not involve sex discrimination or sex-based harassment, arise out of the same facts or circumstances as a report or complaint of sex discrimination or sex-based harassment, and are made for the purpose of interfering with any right or privilege under this policy. The District shall take steps to prevent retaliation and shall take immediate action if any form of retaliation occurs regardless of whether the retaliatory acts are by District officials, students, or third parties.

Disciplinary Sanctions

It shall be a violation of this policy for any student or employee to be subjected to, or to subject another person to, sex discrimination or sex-based harassment. Following the completion of the District's grievance process, any student who is found by the evidence to more likely than not[78] have engaged in sex discrimination or sex-based harassment will be subject to disciplinary action up to, and including, expulsion. No disciplinary sanction or other action that is not a supportive measure may be taken against a respondent until the conclusion of the grievance process.

Students who knowingly fabricate allegations of sex discrimination or sex-based harassment or purposely provide inaccurate facts shall be subject to disciplinary action up to and including expulsion. A determination that the allegations do not rise to the level of sex discrimination or sex-based harassment

alone is not sufficient to conclude that any party made a false allegation or materially false statement in bad faith.

Barriers to reporting

The Title IX Coordinator shall monitor for barriers to reporting information about conduct that reasonably may constitute sex discrimination or sex-based harassment and shall take steps reasonably calculated to address such barriers.

Records

The District shall maintain the following records for a minimum of seven (7) years:

- Each sex discrimination or sex-based harassment investigation including:
  - Any determination regarding responsibility;
  - Any disciplinary sanctions imposed on the respondent;
  - Any remedies provided to the complainant designed to restore or preserve equal access to the District's education program or activity;
  - Any appeal and the result therefrom;
- All materials used to train Title IX Coordinators, investigators, and decision-makers;
- Any actions, including any supportive measures, taken in response to a report or complaint of sex discrimination or sex-based harassment, which must include:
  - The basis for the District's conclusion that its response was not deliberately indifferent; and Document:
    - § If supportive measures were provided to the complainant, the supportive measures taken designed to restore or preserve equal access to the District's education program or activity; or
    - § If no supportive measures were provided to a complainant, document the reasons why such a response was not clearly unreasonable in light of the known circumstances.
  - Records documenting the actions the District has taken to meet its obligations to eliminate sex discrimination, including reviewing barriers to reporting potential sex discrimination and the employee notification requirements, regarding each notification the Title IX Coordinator received of information about conduct that reasonably may constitute sex discrimination.

4.28—LASER POINTERS

Students shall not possess any hand held laser pointer while in school; on or about school property, before or after school; in attendance at school or any school-sponsored activity; on route to or from school or any school-sponsored activity; off the school grounds at any school bus stop or at any school-sponsored activity or event. School personnel shall seize any laser pointer from the student possessing it and the student may reclaim it at the close of the school year, or when the student is no longer enrolled in the District.

4.29—INTERNET SAFETY and ELECTRONIC DEVICE USE Definition

For the purposes of this policy, "electronic device" means anything that can be used to transmit or capture images, sound, or data.

The District makes electronic device(s) and/or electronic device Internet access available to students, to permit students to perform research and to allow students to learn how to use electronic device technology. Use of district electronic devices is for educational and/or instructional purposes only. Student use of electronic device(s) shall only be as directed or assigned by staff or teachers; students are advised that they enjoy no expectation of privacy in any aspect of their electronic device use, including email, and that monitoring of student electronic device use is continuous.

No student will be granted Internet access until and unless an Internet and electronic device use agreement, signed by both the student and the parent or legal guardian (if the student is under the age of eighteen [18]) is on file. The current version of the Internet and electronic device use agreement is incorporated by reference into board policy and is considered part of the student handbook.

Technology Protection Measures

The District is dedicated to protecting students from materials on the Internet or world wide web that are inappropriate, obscene, or otherwise harmful to minors; therefore, it is the policy of the District to protect each electronic device with Internet filtering software that is designed to prevent students from accessing such materials. For purposes of this policy, “harmful to minors” means any picture, image, graphic image file, or other visual depiction that

(A) taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex, or excretion; (B) depicts, describes, or represents, in a patently offensive way with respect to what is suitable for minors, an actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals; and (C) taken as a whole, lacks serious literary, artistic, political, or scientific value as to minors.

Internet Use and Safety

The District is dedicated to ensuring that students are capable of using the Internet in a safe and responsible manner. The District uses technology protection measures to aid in student safety and shall also educate students on appropriate online behavior and Internet use including, but not limited to

• interacting with other individuals on social networking websites and in chat rooms;

• cyberbullying awareness; and

• cyberbullying response.

Misuse of Internet

The opportunity to use the District's technology to access the Internet is a privilege and not a right. Students who misuse electronic devices or Internet access in any way will face disciplinary action, as specified in the student handbook and/or Internet safety and electronic device use agreement. Misuse of the Internet includes:

• The disabling or bypassing of security procedures, compromising, attempting to compromise, or defeating the district's technology network security or Internet filtering software;

• The altering of data without authorization;

• Disclosing, using, or disseminating passwords, whether the passwords are the student's own or those of another student/faculty/community member, to other students;

• Divulging personally identifying information about himself/herself or anyone else either on the Internet or in an email unless it is a necessary and integral part of the student's academic endeavor. Personally identifying information includes full names, addresses, and phone numbers.

• Using electronic devices for any illegal activity, including electronic device hacking and copyright or intellectual property law violations;

• Using electronic devices to access or create sexually explicit or pornographic text or graphics;

• Using electronic devices to violate any other policy or is contrary to the Internet safety and electronic device use agreement.

4.29F—STUDENT ELECTRONIC DEVICE and INTERNET USE AGREEMENT

Student's Name (Please Print)_____ Grade Level_____

School_____ Date_____

The Kirby School District agrees to allow the student identified above ("Student") to use the district's technology to access the Internet under the following terms and conditions which apply whether the access is through a District or student owned electronic device (as used in this Agreement, "electronic device" means anything that can be used to transmit or capture images, sound, or data):

1. Conditional Privilege: The Student's use of the district's access to the Internet is a privilege conditioned on the Student's abiding to this agreement. No student may use the district's access to the Internet whether through a District or student owned electronic device unless the Student and his/her parent or guardian have read and signed this agreement.

2. Acceptable Use: The Student agrees that he/she will use the District's Internet access for educational purposes only. In using the Internet, the Student agrees to obey all federal laws and regulations and any State laws and rules. The Student also agrees to abide by any Internet use rules instituted at the Student's school or class, whether those rules are written or oral

3. Penalties for Improper Use: If the Student violates this agreement and misuses the Internet, the Student shall be subject to disciplinary action. [Note: A.C.A. § 6-21-107 requires the district to have "…provisions for administration of punishment of students for violations of the policy with stiffer penalties for repeat offenders, and the same shall be incorporated into the district's written student discipline policy." You may choose to tailor your punishments to be appropriate to the school's grade levels.]

4. "Misuse of the District's access to the Internet" includes, but is not limited to, the following:

a. Using the Internet for other than educational purposes;
b. Gaining intentional access or maintaining access to materials which are "harmful to minors" as defined by Arkansas law;
c. Using the Internet for any illegal activity, including computer hacking and copyright or intellectual property law violations;
d. Making unauthorized copies of computer software;

e. Accessing “chat lines” unless authorized by the instructor for a class activity directly supervised by a staff member;
f. Using abusive or profane language in private messages on the system; or using the system to harass, insult, or verbally attack others;
g. Posting anonymous messages on the system;
h. Using encryption software;
i. Wasteful use of limited resources provided by the school including paper;
j. Causing congestion of the network through lengthy downloads of files;
k. Vandalizing data of another user;
l. Obtaining or sending information which could be used to make destructive devices such as guns, weapons, bombs, explosives, or fireworks;
m. Gaining or attempting to gain unauthorized access to resources or files;
n. Identifying oneself with another person’s name or password or using an account or password of another user without proper authorization;
o. Invading the privacy of individuals;
p. Divulging personally identifying information about himself/herself or anyone else either on the Internet or in an email unless it is a necessary and integral part of the student's academic endeavors. Personally identifying information includes full names, address, and phone number.
q. Using the network for financial or commercial gain without district permission;
r. Theft or vandalism of data, equipment, or intellectual property;
s. Attempting to gain access or gaining access to student records, grades, or files;
t. Introducing a virus to, or otherwise improperly tampering with the system;
u. Degrading or disrupting equipment or system performance;
v. Creating a web page or associating a web page with the school or school district without proper authorization;
w. Providing access to the District’s Internet Access to unauthorized individuals;
x. Failing to obey school or classroom Internet use rules; or
y. Taking part in any activity related to Internet use which creates a clear and present danger of the substantial disruption of the orderly operation of the district or any of its schools.; or
z. Installing or downloading software on district computers without prior approval of the technology director or his/her designee.

5. Liability for debts: Students and their cosigners shall be liable for any and all costs (debts) incurred through the student’s use of the computers or access to the Internet including penalties for copyright violations.

6. No Expectation of Privacy: The Student and parent/guardian signing below agree that if the Student uses the Internet through the District’s access, that the Student waives any right to privacy the Student may have for such use. The Student and the parent/guardian agree that the district may monitor the Student’s use of the District’s Internet Access and may also examine all system activities the Student participates in, including but not limited to e-mail, voice, and video transmissions, to ensure proper use of the system. The District may share such transmissions with the Student’s parents/guardians.

7. No Guarantees: The District will make good faith efforts to protect children from improper or harmful

matter which may be on the Internet. At the same time, in signing this agreement, the parent and Student recognize that the District makes no guarantees about preventing improper access to such materials on the part of the Student.

8. Signatures: We, the persons who have signed below, have read this agreement and agree to be bound by the terms and conditions of this agreement.

Student's Signature: _____Date _____

Parent/Legal Guardian Signature: _____Date_____

4.30—SUSPENSION FROM SCHOOL

Students who are not present at school cannot benefit from the educational opportunities the school environment affords. Administrators, therefore, shall strive to find ways to keep students in school as participants in the educational process. There are instances, however, when the needs of the other students or the interests of the orderly learning environment require the removal of a student from school. The Board authorizes school principals or their designees to suspend students for disciplinary reasons for a period of time not to exceed ten (10) school days, including the day upon which the suspension is imposed. The suspension may be in school or out of school. Students are responsible for their conduct that occurs: at any time on the school grounds; off school grounds at a school-sponsored function, activity, or event; going to and from school or a school activity.

A student may be suspended for behavior including, but not limited to that which:

1. Is in violation of school policies, rules, or regulations;

2. Substantially interferes with the safe and orderly educational environment;

3. School administrators believe will result in the substantial interference with the safe and orderly educational environment; and/or

4. Is insubordinate, incorrigible, violent, or involves moral turpitude. Out-of-school suspension (OSS) shall not be used to discipline a student in kindergarten through fifth (5th) grade unless the student's behavior:

a. Poses a physical risk to himself or herself or to others; b. Causes a serious disruption that cannot be addressed through other means; or c. Is the act of bringing a firearm on school campus. OSS shall not be used to discipline a student for skipping class, excessive absences, or other forms of truancy. The school principal or designee shall proceed as follows in deciding whether or not to suspend a student.

a. the student shall be given written notice or advised orally of the charges against him/her; b. if the student denies the charges, he/she shall be given an explanation of the evidence against him/her and be allowed to present his/her version of the facts; and c. if the principal finds the student guilty of the misconduct, he/she may be suspended. When possible, notice of the suspension, its duration, and any stipulations for the student's re-admittance to class will be given to the parent(s), legal guardian(s), or to

the student if age eighteen (18) or older prior to the suspension. Such notice shall be handed to the parent(s), legal guardian(s), or to the student if age eighteen (18) or older or mailed to the last address reflected in the records of the school district.

Generally, notice and hearing should precede the student's removal from school, but if prior notice and hearing are not feasible, as where the student's presence endangers persons or property or threatens disruption of the academic process, thus justifying immediate removal from school, the necessary notice and hearing should follow as soon as practicable.

It is the parents' or legal guardians' responsibility to provide current contact information to the district which the school shall use to immediately notify the parent or legal guardian upon the suspension of a student. The notification shall be by one of the following means, listed in order of priority:

• A primary call number

o The contact may be by voice, voice mail, or text message

• An email address

• A regular first class letter to the last known mailing address The district shall keep a log of contacts attempted and made to the parent or legal guardian. During the period of their suspension, students serving OSS shall not be permitted on campus except to attend a student/parent/administrator conference, a regularly-scheduled counseling session, or to complete coursework as part of the probationary attendance program and shall not attend or participate in any school-sponsored activities during the imposed suspension.

Suspensions initiated by the principal or his/her designee may be appealed to the Superintendent, but not to the Board. Suspensions initiated by the Superintendent may be appealed to the Board.

4.31—EXPULSION

The Board of Education may expel a student for a period longer than ten (10) school days for violation of the District's written discipline policies. The Superintendent may make a recommendation of expulsion to the Board of Education for student conduct:

- Deemed to be of such gravity that suspension would be inappropriate;
- Where the student's continued attendance at school would disrupt the orderly learning environment; or
- Would pose an unreasonable danger to the welfare of other students or staff.

Expulsion shall not be used to discipline a student in kindergarten through fifth (5th) grade unless the student's behavior:

a. Poses a physical risk to himself or herself or to others;

b. Causes a serious disruption that cannot be addressed through other means; or

c. Is the act of bringing a firearm on school campus.

The Superintendent or his/her designee shall give written notice to the parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis (mailed to the address reflected

on the District's records) that he/she will recommend to the Board of Education that the student be expelled for the specified length of time and state the reasons for the recommendation to expel. The notice shall give the date, hour, and place where the Board of Education will consider and dispose of the recommendation.

The hearing shall be conducted not later than ten (10) school days following the date of the notice, except that representatives of the Board and student may agree in writing to a date not conforming to this limitation.

The President of the Board, Board attorney, or other designated Board member shall preside at the hearing. The student may choose to be represented by legal counsel. Both the district administration and School Board also may be represented by legal counsel. The hearing shall be conducted in open session of the Board unless the parent, legal guardian, person having lawful control of the student, person standing in loco parentis, or student if age eighteen (18) or older, requests that the hearing be conducted in executive session. Any action taken by the Board shall be in open session.

During the hearing, the Superintendent, or designee, or representative will present evidence, including the calling of witnesses, who gave rise to the recommendation of expulsion. The student, or his/her representative, may then present evidence including statements from persons with personal knowledge of the events or circumstances relevant to the charges against the student. Formal cross-examination will not be permitted; however, any member of the Board, the Superintendent, or designee, the student, or his/her representative may question anyone making a statement and/or the student. The presiding officer shall decide questions concerning the appropriateness or relevance of any questions asked during the hearing.

Except as permitted by policy 4.22, the Superintendent shall recommend the expulsion of any student for a period of one (1) year for possession of any firearm prohibited on school campus by law. The Superintendent shall, however, have the discretion to modify the expulsion recommendation for a student on a case-by-case basis. Parents, or legal guardians, persons having lawful control of a student, or persons standing in loco parentis of a student enrolling from another school after the expiration of an expulsion period for a weapons policy violation shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property.[2] The parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The Superintendent and the Board of Education shall complete the expulsion process of any student that was initiated because the student possessed a firearm or other prohibited weapon on school property regardless of the enrollment status of the student.

The District shall establish programs, measures, or alternative means and methods to continue student engagement and access to education during a student's period of expulsion.

4.32—SEARCH, SEIZURE, AND INTERROGATIONS

The District respects the rights of its students against arbitrary intrusion of their person and property. At the same time, it is the responsibility of school officials to protect the health, safety, and welfare of all students enrolled in the District in order to promote an environment conducive to student learning. The

Superintendent, principals, and their designees have the right to inspect and search school property and equipment. They may also search students and their personal property in which the student has a reasonable expectation of privacy, when there is reasonable and individualized suspicion to believe such student or property contains illegal items or other items in violation of Board policy or dangerous to the school community.[1] School authorities may seize evidence found in the search and disciplinary action may be taken. Evidence found which appears to be in violation of the law shall be reported to the appropriate authority.

School property shall include, but not be limited to, lockers, desks, and parking lots, as well as personal effects left there by students. When possible, prior notice will be given and the student will be allowed to be present along with an adult witness; however, searches may be done at any time with or without notice or the student's consent. A personal search must not be excessively intrusive in light of the age and sex of the student and the nature of the infraction.

The Superintendent, principals, and their designees may request the assistance of law enforcement officials to help conduct searches. Such searches may include the use of specially trained dogs.

A school official of the same sex shall conduct personal searches with an adult witness of the same sex present. State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Division of Arkansas State Police, may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes Against Children Division of the Department Division of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number

4.33—STUDENTS' VEHICLES

A student who has presented a valid driver's license and proof of insurance to the appropriate office personnel, may drive his/her vehicle to school. Vehicles driven to school shall be parked in the area designated for student parking. Parking on school property is a privilege which may be denied to a student for any disciplinary violation, at the discretion of the student's building principal.

Students are not permitted to loiter in parking areas and are not to return to their vehicles during the school day for any reason unless given permission to do so by school personnel.

It is understood that there is no expectation of privacy in vehicles in parking areas. Drivers of vehicles parked on a school campus will be held accountable for illegal substances or any other item prohibited by District policy found in their vehicle. The act of a student parking a vehicle on campus is a grant of permission for school or law enforcement authorities to search that vehicle. The district is not liable for any vehicle or student driver that is not documented in the office. Date Adopted: 07/14/16:

4.34—COMMUNICABLE DISEASES AND PARASITES

Students with communicable diseases or with human host parasites that are transmittable in a school environment shall demonstrate respect for other students by not attending school while they are capable of transmitting their condition to others. Students whom the school nurse determines are unwell or unfit for school attendance or who are believed to have a communicable disease or condition will be required to be picked up by their parent or guardian. Specific examples include, but are not limited to: Varicella (chicken pox), measles, scabies, conjunctivitis (Pink Eye), impetigo/MRSA (Methicillin-resistant Staphylococcus aureus), streptococcal and staphylococcal infections, ringworm, mononucleosis, Hepatitis A, B, or C, mumps, vomiting, diarrhea, and fever (100.0 F when taken orally). A student who has been sent home by the school nurse will be subsequently readmitted, at the discretion of the school nurse, when the student is no longer a transmission risk. In some instances, a letter from a health care provider may be required prior to the student being readmitted to the school.

To help control the possible spread of communicable diseases, school personnel shall follow the District's exposure control plan when dealing with any bloodborne, foodborne, and airborne pathogens exposures. Standard precautions shall be followed relating to the handling, disposal, and cleanup of blood and other potentially infectious materials such as all body fluids, secretions and excretions (except sweat).

In accordance with 4.57----IMMUNIZATIONS, the District shall maintain a copy of each student's immunization record and a list of individuals with exemptions from immunization which shall be education records as defined in policy 4.13. That policy provides that an education record may be disclosed to appropriate parties in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals.

A student enrolled in the District who has an immunization exemption may be removed from school at the discretion of the Arkansas Department of Health during an outbreak of the disease for which the student is not vaccinated. The student may not return to the school until the outbreak has been resolved and the student's return to school is approved by the Arkansas Department of Health.

The parents or legal guardians of students found to have live lice or nits will be asked to pick their child up at school. The parents or legal guardians will be given information concerning the eradication and control of head lice. Before students may be readmitted following an absence due to head lice, the school nurse or designee shall examine the student to make sure they are free of any lice or nits. Each school may conduct screenings of students for head lice as needed. The screenings shall be conducted in a manner that respects the confidentiality of each student.

Each school may conduct screenings of students for human host parasites that are transmittable in a school environment as needed. The screenings shall be conducted in a manner that respects the privacy and confidentiality of each student.

4.35—STUDENT MEDICATIONS

Prior to the administration of any medication, including any dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, to any student under the age of eighteen (18), written parental consent is required. The consent form shall include authorization to administer the medication and relieve the Board and its employees of civil liability for damages or injuries resulting from the administration of medication to students in accordance with this policy. All signed medication consent forms are to be maintained by the school nurse.

Unless authorized to self-administer or otherwise authorized by this policy, students are not allowed to carry any medications, including over-the-counter (OTC) medications or any dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration while at school. The parent or legal guardian shall bring the student's medication to the school nurse. The student may bring the medication if accompanied by a written authorization from the parent or legal guardian. When medications are brought to the school nurse, the nurse shall document, in the presence of the parent, the quantity of the medication(s). If the medications are brought by a student, the school nurse shall ask another school employee to verify, in the presence of the student, the quantity of the medication(s). Each person present shall sign a form verifying the quantity of the medication(s).

Medications, including those for self-administration, must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings. Schedule II medications that are permitted by this policy to be brought to school shall be stored in a double locked cabinet.

Students with an individualized health plan (IHP) may be given OTC medications to the extent giving such medications are included in the student's IHP.

The district's supervising registered nurse is responsible for creating procedures for the administration of medications on and off campus.

The school shall not keep outdated medications or any medications past the end of the school year.

Parents shall be notified ten (10) days in advance of the school's intention to dispose of any medication. Medications not picked up by the parents or legal guardians within the ten (10) day period shall be disposed of by the school nurse in accordance with current law and rules.[1]

Schedule II Medications[2]

Option 1: The only Schedule II medications that shall be allowed to be brought to the school are methylphenidate (e.g. Ritalin or closely related medications as determined by the school nurse), dextroamphetamine (Dexedrine), and amphetamine sulfate (e.g. Adderall or closely related medications as determined by the school nurse).[1]

For the student's safety, no student will be allowed to attend school if the student is currently taking any other Schedule II medication than permitted by this policy.[3] Students who are taking Schedule II medications which are not allowed to be brought to school shall be eligible for homebound instruction if provided for in their IEP or 504 plans.[2][4]

Option 2: Students taking Schedule II medications methylphenidate (e.g. Ritalin or closely related medications as determined by the school nurse), dextroamphetamine (Dexedrine), and amphetamine sulfate (e.g. Adderall or closely related medications as determined by the school nurse)[1] shall be allowed to attend school.

Students taking Schedule II medications not included in the previous sentence[1][3] shall be allowed to bring them to school under the provisions of this policy and shall be permitted to attend and participate in classes **only** to the extent the student's doctor has specifically authorized such attendance and participation.[2][5] A doctor's prescription for a student's Schedule II medication is **not** an authorization. Attendance authorization shall specifically state the degree and potential danger of physical exertion the student is permitted to undertake in the student's classes and extracurricular activities. Without a doctor's written authorization, a student taking Schedule II medications, other than those specifically authorized in this policy, shall **not** be eligible to attend classes, but shall be eligible for homebound instruction if provided for in their IEP or 504 plans.[3]

Self-Administration of Medication

Students who have written permission from their parent or guardian and a licensed health care practitioner on file with the District may:

1) Self-administer either a rescue inhaler or auto-injectable epinephrine;
2) Perform his/her own blood glucose checks;
3) Administer insulin through the insulin delivery system the student uses;
4) Treat the student's own hypoglycemia and hyperglycemia; or
5) Possess on his or her person:
a) A rescue inhaler or auto-injectable epinephrine; or
b) the necessary supplies and equipment to perform his/her own diabetes monitoring and treatment functions.

A student may be authorized to self-administer a stress dose medication to treat the student's adrenal insufficiency with:

1. The written authorization of the student's parent, legal guardian, or person standing in loco parentis; and
2. A written order from the student's treating physician stating that the student:
    a. Is capable of completing the proper method of self-administration of the stress dose medication,; and
    b. Has been instructed on the details of the student's medical condition and the events that may lead to an adrenal crisis.

The parent, legal guardian, or person standing in loco parentis of a student who is authorized to self-administer a stress dose medication shall sign an IHP developed by the school nurse for the school where the student is enrolled. The IHP shall include a requirement for the notification of appropriate staff following the self-administration of a stress dose medication, which shall include the school nurse, teacher of the classroom where the stress dose medication was administered, and a school administrator.

Students who have a current consent form on file shall be allowed to carry and self-administer such medication while:

· In school;
· At an on-site school sponsored activity;
· While traveling to or from school; or
· At an off-site school sponsored activity.

A student is prohibited from sharing, transferring, or in any way diverting his/her medications to any other person. The fact that a student with a completed consent form on file is allowed to carry a rescue inhaler, auto-injectable epinephrine, diabetes medication, stress dose medication, or combination does not require the student to have such on the student's person. The parent or guardian of a student who qualifies under this policy to self-carry a rescue inhaler, auto-injectable epinephrine, diabetes medication, stress dose medication or any combination on the student's person shall provide the school with the appropriate medication, which shall be immediately available to the student in an emergency.

Students may possess and use a topical sunscreen that is approved by the United States Food and Drug Administration for OTC use to avoid overexposure to the sun without written authorization from a parent, legal guardian, or healthcare professional while the student is on school property or at a school-related event or activity. The parent or guardian of a student may provide written documentation authorizing specifically named District employee(s), in addition to the school nurse, to assist a student in the application of sunscreen. The District employee(s) named in the parent or legal guardian's written authorization shall not be required to assist the student in the application of sunscreen.

Emergency Administration of Glucagon and Insulin

Students may be administered Glucagon, insulin, or both in emergency situations by the school nurse or, in the absence of the school nurse, a trained volunteer school employee designated as a care provider, provided the student has:

1. An IHP that provides for the administration of Glucagon, insulin, or both in emergency situations; and
2. A current, valid consent form on file from their parent or guardian.

When the nurse is unavailable, the trained volunteer school employee who is responsible for a student shall be released from other duties during:

A. The time scheduled for a dose of insulin in the student's IHP; and

B. Glucagon or non-scheduled insulin administration once other staff have relieved him/her from other duties until a parent, guardian, other responsible adult, or medical personnel has arrived.

A student shall have access to a private area to perform diabetes monitoring and treatment functions as outlined in the student's IHP.

Emergency Administration of Epinephrine

The school nurse or other school employees designated by the school nurse as a care provider who have been trained[6] and certified by a licensed physician may administer an epinephrine auto-injector in emergency situations to students who have an IHP that provides for the administration of an epinephrine auto-injector in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other school employee(s) certified to administer auto-injector epinephrine to administer auto-injector epinephrine to the student when the employee believes the student is having a life-threatening anaphylactic reaction.

Students with an order from a licensed health care provider to self-administer auto-injectable epinephrine and who have written permission from their parent or guardian shall provide the school nurse an epinephrine auto-injector. This epinephrine will be used in the event the school nurse, or other school employee certified to administer auto-injector epinephrine, in good faith professionally believes the student is having a life-threatening anaphylactic reaction and the student is either not self-carrying his/her /epinephrine auto-injector or the nurse is unable to locate it.

The school nurse for each District school shall keep epinephrine auto-injectors on hand that are suitable for the students the school serves. The school nurse or other school employee designated by the school nurse as a care provider who has been trained[6] and certified by a licensed physician may administer auto-injector epinephrine to those students who the school nurse, or other school employee certified to administer auto-injector epinephrine, in good faith professionally believes is having a life-threatening anaphylactic reaction.

Emergency Administration of Albuterol

The school nurse or other school employees designated by the school nurse as a care provider who have been trained[6] and certified by a licensed physician, advanced practice registered nurse, or physician assistant may administer albuterol in emergency situations to students who have an IHP that provides for the administration of albuterol in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other school employee(s) certified to administer albuterol to administer albuterol to the student when the employee believes the student is in perceived respiratory distress.

The school nurse for each District school shall keep albuterol on hand. The school nurse or other school

employee designated by the school nurse as a care provider who has been trained[6] and certified by a licensed physician, advanced practice registered nurse, or physician assistant may administer albuterol to those students who the school nurse, or other school employee certified to administer albuterol, in good faith professionally believes is in perceived respiratory distress.

Emergency Administration of Anti-opioid

The school nurse for each District school shall keep anti-opioid injectors on hand and the school nurse and school resource officer shall possess an anti-opioid at all times when on duty. The school nurse, other school employee, volunteer, or student may administer anti-opioid in accordance with the District's procedures to a student who the school nurse, or other observer, in good faith believes is having an opioid overdose. An opioid overdose rescue kit shall be placed within all storage locations in the District high school buildings that currently contain an automated external defibrillator for public use. The opioid overdose rescue kits shall be located where it is readily available to the public, be visually free of advertisement, and contain an anti-opioid.

Emergency Administration of Emergency Adrenal Insufficiency Medication

The school nurse or other school employees designated by the school nurse as a care provider who have been trained[6] and certified by a licensed physician may administer an injectable emergency dose medication in emergency situations to students who have an IHP that provides for the administration of an injectable emergency dose medication in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other school employee(s) certified to administer an injectable emergency dose medication to administer an injectable emergency dose medication to the student when the employee believes the student is having an adrenal crisis due to adrenal insufficiency.

Students who have met the requirements to be authorized to self-administer a stress dose medication under this policy shall provide the school nurse an emergency injectable dose of the student's medication. This emergency injectable dose will be used in the event the school nurse, or other school employee certified to administer an injectable emergency dose medication, in good faith professionally believes the student is having an adrenal crisis due to adrenal insufficiency.

Seizure Disorder Medications

Students who have been diagnosed with a seizure disorder shall have a seizure action plan that shall be a written IHP designed to acknowledge and prepare for the healthcare needs of the student. The student's seizure action plan shall be created in collaboration between District staff and the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis or the student if over eighteen (18). As part of the creation of the student's seizure action plan, the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall:

1. Provide the school with written authorization to administer the seizure medication at school;
2. Provide a written statement from the student's healthcare provider that shall contain the following information:

•The student's name;
•The name and purpose of the medication;
•The prescribed dosage;
•The route of administration;
•The frequency that the medication should be administered; and
•The circumstances under which the medication should be administered;

3. Provide the prescribed medication to the school in its unopened, sealed package with the label affixed by the dispensing pharmacy intact, which shall be stored in a safe and secure location accessible only by District personnel or volunteers with training to administer seizure medication.

The written authorization, written statement, and seizure action plan shall be kept on file in the office of the school nurse or school administrator and distributed to any school personnel or volunteers responsible for the supervision or care of the student.

4.35F—MEDICATION ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for the school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

Medications, including those for self-administration, must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

I hereby authorize the school nurse, or designee, to administer the following medications to my student.:

Name of medication _____

Name of prescribing health-care provider (if applicable)

_____

Dosage _____

Instructions for administering the medication _____

_____

Other instructions _____

I hereby authorize _____ to administer the above medication to my student in the unavailability of the school nurse at school in accordance with the above medication administration instructions.

I authorize the school nurse to take a photograph of my student to be used to verify my student's identification before the school nurse or an authorized individual administers medications to my student.[1]

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of medications in accordance with this consent form.

Parent or legal guardian signature _____ Date _____

4.35F2—MEDICATION SELF-ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for the school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The following must be provided for the student to be eligible to self-administer rescue inhalers and/or auto-injectable epinephrine. Eligibility is only valid for this school for the current academic year.

· a written statement from a licensed health-care provider who has prescriptive privileges that he//she has prescribed the rescue inhaler and/or auto-injectable epinephrine for the student and that the student needs to carry the medication on his/her person due to a medical condition;

· the specific medications prescribed for the student;

· an individualized health care plan developed by the prescribing health-care provider containing the treatment plan for managing asthma and/or anaphylaxis episodes of the student and for medication use by the student during school hours; and

· a statement from the prescribing health-care provider that the student possesses the skill and responsibility necessary to use and administer the asthma inhaler and/or auto-injectable epinephrine.

If the school nurse is available, the student shall demonstrate his/her skill level in using the rescue inhalers and/or auto-injectable epinephrine to the nurse.

Rescue inhalers and/or auto-injectable epinephrine for a student's self-administration shall be supplied by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Students who self-carry a rescue inhaler or an epinephrine auto-injector shall also provide the school nurse with a rescue inhaler or an epinephrine auto-injector to be used in emergency situations.

I understand this form authorizes my student to possess and use the medication(s) included on this form

while on school grounds and at school sponsored events but that distribution of the medication(s) included on this form to other students may lead to disciplinary action against my student.

My signature below is an acknowledgment that I understand that the District, its Board of Directors, and its employees shall be immune from civil liability for injury resulting from the self-administration of medications by the student named above.

Parent or legal guardian signature _____Date _____

4.35F4—EPINEPHRINE EMERGENCY ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

My child has an IHP that provides for the administration of epinephrine in emergency situations. I hereby authorize the school nurse or other school employee certified to administer auto-injectable epinephrine to administer auto-injectable epinephrine in emergency situations when he/she believes my child is having a life-threatening anaphylactic reaction.

The medication must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Date of health-care provider order _____

Circumstances under which Epinephrine may be administered

_____

_____

Other instructions _____

_____

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of auto-injector epinephrine in accordance with this consent form, District policy, and Arkansas law.

Parent or legal guardian signature _____Date _____

4.35F5—ALBUTEROL EMERGENCY ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

My child has an IHP that provides for the administration of albuterol in emergency situations. I hereby authorize the school nurse or other school employee certified to administer albuterol to administer albuterol in emergency situations when he/she believes my child is in perceived respiratory distress.

The medication must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Date of health-care provider order _____

Circumstances under which albuterol may be administered _____

_____

Other instructions _____

_____

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of albuterol in accordance with this consent form, District policy, and Arkansas law.

Parent or legal guardian signature _____Date _____

4.35F6—STRESS AND EMERGENCY DOSE MEDICATION ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for the school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The school has developed an individual health plan (IHP) acknowledging that my child has been diagnosed as suffering from adrenal insufficiency. The IHP authorizes the school nurse to administer a stress or emergency dose medication to my child in an emergency situation.

Date of health-care provider order _____

Circumstances under which the stress or emergency dose medication may be administered _____

_____

Other instructions _____

_____

In the absence of the nurse, trained volunteer district personnel may administer a stress dose or emergency dose medication to my child in an emergency situation.

I hereby authorize the school nurse to administer a stress or emergency dose medication to my child, or, in the absence of the nurse, trained volunteer district personnel designated as care providers, to administer the stress or emergency dose medication to my child in an emergency situation. I will supply the stress or emergency dose medication to the school nurse in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, possible side effects, and any other pertinent instructions (such as special storage requirements) or

warnings.

I acknowledge that the District, its Board of Directors, its employees, or an agent of the District, including a healthcare professional who trained volunteer school personnel designated as care providers shall not be liable for any damages resulting from his/her actions or inactions in the administration of the stress or emergency dose medication in accordance with this consent form and the IHP.

Parent or legal guardian signature _____Date _____

4.35F7—STRESS DOSE MEDICATION SELF-ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The following must be provided for the student to be eligible to self-administer a stress dose medication. Eligibility is only valid for this school for the current academic year.

1. a written statement from a licensed health-care provider who has prescriptive privileges that he/she has prescribed the stress dose medication for the student and that the student needs to carry the medication on his/her person due to a medical condition;
2. the specific medications prescribed for the student;
3. an individualized health care plan developed by the prescribing health-care provider containing the treatment plan for managing adrenal insufficiency of the student and for medication use by the student during school hours; and
4. A statement from the prescribing health-care provider that the student:
    a. Possesses the skill and responsibility necessary to use and administer the stress dose medication; and
    b. Has been instructed on the details of his or her medical condition and the events that may lead to an adrenal crisis.

If the school nurse is available, the student shall demonstrate his/her skill level in administering the stress dose medication to the nurse.

Stress dose medication for a student's self-administration shall be supplied by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Students who self-carry stress dose medication shall also provide the school nurse with a dose of the stress dose medication to be used in emergency situations.

I understand this form authorizes my student to possess and use the medication included on this form while on school grounds and at school sponsored events but that distribution of the medication included on this form to other students may lead to disciplinary action against my student.

My signature below is an acknowledgment that I understand that the District, its Board of Directors, and its employees shall be immune from civil liability for injury resulting from the self-administration of medications by the student named above.

Parent or legal guardian signature _____ Date _____

4.36—STUDENT ILLNESS/ACCIDENT

If a student becomes too ill to remain in class and/or could be contagious to other students, the principal or designee will attempt to notify the student's parent or legal guardian. The student will remain in the school's health room or a place where he/she can be supervised until the end of the school day or until the parent/legal guardian can check the student out of school.

If a student becomes seriously ill or is injured while at school and the parent/legal guardian cannot be contacted, the failure to make such contact shall not unreasonably delay the school's expeditious transport of the student to an appropriate medical care facility. The school assumes no responsibility for treatment of the student. When available, current, and applicable, the student's emergency contact numbers and medical information will be utilized. Parents are strongly encouraged to keep this information up to date.

4.37—EMERGENCY DRILLS

All schools in the District shall conduct fire drills at least monthly. Tornado drills shall also be conducted not fewer than three (3) times per year. Students who ride school buses, shall also participate in emergency evacuation drills at least twice each school year.

The District shall annually conduct and lockdown drill at all schools in the District in collaboration with local law enforcement, medical professionals, fire department officials, and emergency management personnel. The lockdown drill training will include a use of the District's emergency communication method with law enforcement. Students will be included in the drills to the extent that is developmentally appropriate to the age of both the students and grade configuration of the school.

Drills may be conducted during the instructional day or during non-instructional time periods.

Other types of emergency drills may also be conducted to test the implementation of the District's emergency communication with law enforcement method. Students shall be included in the drills to the extent practicable.

4.38—PERMANENT RECORDS

Permanent school records, as required by the Division of Elementary and Secondary Education, shall be maintained for each student enrolled in the District until the student receives a high school diploma or its equivalent or is beyond the age of compulsory school attendance. A copy of the student's permanent record shall be provided to the receiving school district within ten (10) school days after the date a request from the receiving school district is received.

4.39—CORPORAL PUNISHMENT

The Kirby School Board authorizes the use of corporal punishment to be administered in accordance with this policy by the Superintendent or the superintendent's designated staff members who are required to have a state-issued license as a condition of their employment.[1]

Prior to the administration of corporal punishment, the student receiving the corporal punishment shall be given an explanation of the reasons for the punishment and be given an opportunity to refute the charges.

All corporal punishment shall be administered privately, i.e. out of the sight and hearing of other students, shall not be excessive, or administered with malice, and shall be administered in the presence of another school administrator or designee who shall be a licensed staff member employed by the District.

Corporal punishment shall not be used as a form of discipline for a student who is intellectually disabled, non-ambulatory, non-verbal, or autistic.[2]

Date Adopted:07/19

Last Revised:06/19

4.40—HOMELESS STUDENTS

The Kirby School District will afford the same services and educational opportunities to homeless children as are afforded to non-homeless children. The Superintendent or his/her designee shall appoint an appropriate staff person to be the local educational agency (LEA) liaison for homeless children and youth whose responsibilities shall include, but are not limited to:

• Receive appropriate time and training in order to carry out the duties required by law and this policy;

• coordinate and collaborate with the State Coordinator, community, and school personnel responsible for education and related services to homeless children and youths;

• Ensure that school personnel receive professional development and other support regarding their duties and responsibilities for homeless youths;

• Ensure that unaccompanied homeless youths:

Are enrolled in school; Have opportunities to meet the same challenging State academic standards as other children and youths; and Are informed of their status as independent students under the Higher Education Act of 1965 and that they may obtain assistance from the LEA liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid;

• Ensure that public notice of the educational rights of the homeless children and youths is disseminated in locations frequented by parents or guardians of such youth, and unaccompanied homeless youths, including schools, shelters, public libraries, and soup kitchens, in a manner and form that is easily understandable. To the extent possible, the LEA liaison and the building principal shall work together to ensure no homeless child or youth is harmed due to conflicts with District policies solely because of the homeless child or youth's living situation; this is especially true for District policies governing fees, fines, and absences.

Notwithstanding Policy 4.1, homeless students living in the district are entitled to enroll in the district's school that non-homeless students who live in the same attendance area are eligible to attend. If there is a question concerning the enrollment of a homeless child due to a conflict with Policy 4.1 or 4.2, the child shall be immediately admitted to the school in which enrollment is sought pending resolution of the dispute, including all appeals. It is the responsibility of the District's LEA liaison for homeless children and youth to carry out the dispute resolution process.

For the purposes of this policy "school of origin" means:

• The school that a child or youth attended when permanently housed or the school in which the child or youth was last enrolled, including a preschool; and

• The designated receiving school at the next grade level for all feeder schools when the child completes the final grade provided by the school of origin. The District shall do one of the following according to what is in the best interests of a homeless child:

• Continue the child's or youth's education in the school of origin for the duration of homelessness:

• In any case in which a family becomes homeless between academic years or during an academic year; and

• For the remainder of the academic year, if the child or youth becomes permanently housed during an academic year; or

• Enroll the child or youth in any public school that non homeless students who live in the attendance area in which the child or youth is actually living are eligible to attend. In determining the best interest of the child or youth, the District shall:

• Presume that keeping the child or youth in the school of origin is in the child's or youth's best interest, except when doing so is contrary to the request of the child's or youth's parent or guardian, or (in the case of an unaccompanied youth) the youth;

• Consider student-centered factors related to the child's or youth's best interest, including factors related to the impact of mobility on achievement, education, health, and safety of homeless children and youth, giving priority to the request of the child's or youth's parent or guardian or (in the case of an unaccompanied youth) the youth. If the District determines that it is not in the child's or youth's best interest to attend the school of origin or the school requested by the parent or guardian, or (in the case of an unaccompanied youth) the youth, the District shall provide the child's or youth's parent or guardian or the unaccompanied youth with a written explanation of the reasons for its determination, in a manner and form understandable to such parent, guardian, or unaccompanied youth, including information regarding the right to appeal. For an unaccompanied youth, the District shall ensure that the LEA liaison assists in

placement or enrollment decisions, gives priority to the views of such unaccompanied youth, and provides notice to such youth of the right to appeal.

The homeless child or youth must be immediately enrolled in the selected school regardless of whether application or enrollment deadlines were missed during the period of homelessness.

The District shall be responsible for providing transportation for a homeless child, at the request of the parent or guardian (or in the case of an unaccompanied youth, the LEA Liaison), to and from the child's school of origin.

A homeless student shall be immediately eligible to participate in interscholastic activities at the school in which the student is enrolled.

For the purposes of this policy, students shall be considered homeless if they lack a fixed, regular, and adequate nighttime residence and:

a. Are:

• Sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason;

• Living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations;

• Living in emergency or transitional shelters;

• Abandoned in hospitals; or

A.. Have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings; c. Are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings; and d. Are migratory children who are living in circumstances described in clauses (a) through (c). In accordance with Federal law, information on a homeless child or youth's living situation is part of the student's education record and shall not be considered, or added, to the list of directory information in Policy 4.13.

4.41—PHYSICAL EXAMINATIONS OR SCREENINGS

The district conducts routine health screenings such as hearing, vision, and scoliosis due to the importance these health factors play in the ability of a student to succeed in school. The intent of the exams or screenings is to detect defects in hearing, vision, or other elements of health that would adversely affect the student's ability to achieve to his/her full potential.

Except in instances where a student is suspected of having a contagious or infectious disease, parents shall have the right to opt their student out of the exams or screenings by using form 4.41F or by providing certification from a physician that he/she has recently examined the student.

The district shall notify parents, at least annually, of the specific or approximate dates of any nonemergency, invasive physical examination or screening that is:

1. Required as a condition of attendance;

2. Administered by the school and scheduled by the school in advance; and

3. Not necessary to protect the immediate health and safety of the student, or of other students. For the purposes of this policy, “Invasive Physical Examination” is defined as any medical examination that involves the exposure of private body parts, or any act during such examination that includes incision, insertion, or injection into the body, but does not include hearing, vision, or scoliosis screenings.

A student may be required to pass a physical exam before being allowed to participate in certain extracurricular activities to help ensure they are physically capable of withstanding the rigors of the activity. It is understood that students who refuse to take such an exam will not be allowed to participate in the desired activity. The rights provided to parents under this policy transfer to the student when he/she turns eighteen (18) years old.

4.42—STUDENT HANDBOOK

It shall be the policy of the Kirby School District that the most recently adopted version of the Student Handbook be incorporated by reference into the policies of this district. In the event that there is a conflict between the student handbook and a general board policy or policies, the more recently adopted language will be considered binding and controlling on the matter provided the parent(s) of the student, or the student if eighteen (18) years of age or older have acknowledged receipt of the controlling language.

Principals shall review all changes to student policies and ensure that such changes are provided to students and parents, either in the Handbook or, if changes are made after the handbook is printed, as an addendum to the handbook.

Principals and counselors shall also review Policies 4.45—SMART CORE CURRICULUM AND GRADUATION and the current DESE Standards for Accreditation Rules to ensure that there is no conflict. If a conflict exists, the Principal and/or Counselor shall notify the Superintendent and Curriculum Coordinator immediately, so that corrections may be made and notice of the requirements given to students and parents.

4.43—BULLYING

Definitions

“Attribute” means an actual or perceived personal characteristic including without limitation race, color, religion, ancestry, national origin, socioeconomic status, academic status, disability, gender, gender identity, physical appearance, health condition, or sexual orientation;

“Bullying” means the intentional harassment, intimidation, humiliation, ridicule, defamation, or threat or incitement of violence by a student against another student or public school employee by a written, verbal, electronic, or physical act that may address an attribute of the other student, public school employee, or person with whom the other student or public school employee is associated and that causes or creates actual or reasonably foreseeable:

· Physical harm to a public school employee or student or damage to the public school employee's or student's property;

· Substantial interference with a student's education or with a public school employee's role in education;

· A hostile educational environment for one (1) or more students or public school employees due to the severity, persistence, or pervasiveness of the act; or

· Substantial disruption of the orderly operation of the school or educational environment;

Examples of "Bullying" include, but are not limited to, a pattern of behavior involving one or more of the following:

1. Cyberbullying;
2. Sarcastic comments "compliments" about another student's personal appearance or actual or perceived attributes,
3. Pointed questions intended to embarrass or humiliate,
4. Mocking, taunting or belittling,
5. Non-verbal threats and/or intimidation such as "fronting" or "chesting" a person,
6. Demeaning humor relating to a student's actual or perceived attributes,
7. Blackmail, extortion, demands for protection money or other involuntary donations or loans,
8. Blocking access to school property or facilities,
9. Deliberate physical contact or injury to person or property,
10. Stealing or hiding books or belongings,
11. Threats of harm to student(s), possessions, or others,
12. Sexual harassment, as governed by policy 4.27, is also a form of bullying, and/or
13. Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether the student self-identifies as homosexual or transgender (Examples: "Slut", "You are so gay.", "Fag", "Queer").

"Cyberbullying" means any form of communication by electronic act that is sent with the purpose to:

- Harass, intimidate, humiliate, ridicule, defame, or threaten a student, school employee, or person with whom the other student or school employee is associated; or
- Incite violence towards a student, school employee, or person with whom the other student or school employee is associated.

Cyberbullying of School Employees includes, but is not limited to:

a. Building a fake profile or website of the employee;
b. Posting or encouraging others to post on the Internet private, personal, or sexual information pertaining to a school employee;
c. Posting an original or edited image of the school employee on the Internet;
d. Accessing, altering, or erasing any computer network, computer data program, or computer software, including breaking into a password-protected account or stealing or otherwise accessing passwords of a school employee;
e. Making repeated, continuing, or sustained electronic communications, including electronic mail or transmission, to a school employee;
f. Making, or causing to be made, and disseminating an unauthorized copy of data pertaining to a school employee in any form, including without limitation the printed or electronic form of computer data, computer programs, or computer software residing in, communicated by, or produced by a computer or computer network;

g. Signing up a school employee for a pornographic Internet site; or

h. Without authorization of the school employee, signing up a school employee for electronic mailing lists or to receive junk electronic messages and instant messages.

Cyberbullying is prohibited whether or not the cyberbullying originated on school property or with school equipment, if the cyberbullying results in the substantial disruption of the orderly operation of the school or educational environment or is directed specifically at students or school personnel and maliciously intended for the purpose of disrupting school and has a high likelihood of succeeding in that purpose.

"Harassment" means a pattern of unwelcome verbal or physical conduct relating to another person's constitutionally or statutorily protected status that causes, or reasonably should be expected to cause, substantial interference with the other's performance in the school environment; and

"Substantial disruption" means without limitation that any one or more of the following occur as a result of the bullying:

· Necessary cessation of instruction or educational activities;

· Inability of students or educational staff to focus on learning or function as an educational unit because of a hostile environment;

· Severe or repetitive disciplinary measures are needed in the classroom or during educational activities; or

· Exhibition of other behaviors by students or educational staff that substantially interfere with the learning environment.

Respect for the dignity of others is a cornerstone of civil society. Bullying creates an atmosphere of fear and intimidation, robs a person of his/her dignity, detracts from the safe environment necessary to promote student learning, and will not be tolerated by the Board of Directors. Students who bully another person shall be held accountable for their actions whether they occur on school equipment or property; off school property at a school sponsored or approved function, activity, or event; going to or from school or a school activity in a school vehicle or school bus; or at designated school bus stops.

Students are encouraged to report behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, to their teacher or the building principal. The report may be made anonymously. Teachers and other school employees who have witnessed, or are reliably informed that, a student has been a victim of behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, shall report the incident(s) to the building principal, or designee, as soon as possible. Parents or legal guardians may submit written reports of incidents they feel constitute bullying, or if allowed to continue would constitute bullying, to the building principal, or designee.

The person or persons reporting behavior they consider to be bullying shall not be subject to retaliation or reprisal in any form.

A building principal, or designee, who receives a credible report or complaint of bullying shall:

1. As soon as reasonably practicable, but by no later than the end of the school day following the receipt of the credible report of bullying:

a. Report to a parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student that their student is the victim in a credible report of bullying; and

b. Prepare a written report of the alleged incident of bullying;

2. Promptly investigate the credible report or complaint of bullying, which shall be completed by no later than the fifth (5th) school day following the completion of the written report.

3. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student who was the alleged victim in a credible report of bullying whether the investigation found the credible report or complaint of bullying to be true and the availability of counseling and other intervention services.

4. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of the student, or person acting in loco parentis of the student who is alleged to have been the perpetrator of the incident of bullying:

a. That a credible report or complaint of bullying against their student exists;

b. Whether the investigation found the credible report or complaint of bullying to be true;

c. Whether action was taken against their student upon the conclusion of the investigation of the alleged incident of bullying; and

d. Information regarding the reporting of another alleged incident of bullying, including potential consequences of continued incidents of bullying;

5. Make a written record of the investigation, which shall include:

a. A detailed description of the alleged incident of bullying, including without limitation a detailed summary of the statements from all material witnesses to the alleged incident of bullying;

b. Any action taken as a result of the investigation; and

6. Discuss, as appropriate, the availability of counseling and other intervention services with students involved in the incident of bullying.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion. In determining the appropriate disciplinary action, consideration may be given to other violations of the student handbook which may have simultaneously occurred.[1] In addition to any disciplinary actions, the District shall take appropriate steps to remedy the effects resulting from bullying.

Notice of what constitutes bullying, the District's prohibition against bullying, and the consequences for students who bully shall be conspicuously posted in every classroom, cafeteria, restroom, gymnasium, auditorium, and school bus.[2] Parents, legal guardians, person having lawful control of a student, persons standing in loco parentis, students, school volunteers, and employees shall be given copies of the notice annually.[3]

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation, the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

Copies of this policy shall be available upon request.[4]

4.44—NATIONAL ANTHEM

Each school in the District shall broadcast The Star-Spangled Banner at:

- The commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the broadcast of The Star-Spangled Banner may be performed at only one (1) of the events; and

- At least one (1) time each week during school hours.

The broadcast of The Star-Spangled Banner shall be selected from any recording that adheres to the Division of Elementary and Secondary Education (DESE) Rules, or, when appropriate, performed from original sheet music that adheres to DESE rule

- A school-sanctioned band program;
- A school-sanctioned chorale program, vocal group, or vocalist; or
- The attendees of a school-sanctioned event led by a vocalist selected by the principal of the school hosting the school-sanctioned event.

Students shall not be compelled to participate in the performance of The Star-Spangled Banner, but students who choose not to participate in the performance of The Star-Spangled Banner shall not disrupt those students choosing to participate in the performance of The Star-Spangled Banner. Students choosing not to participate in the performance of The Star-Spangled Banner who do not disrupt the participation of performance of The Star-Spangled Banner shall not be subject to any comments, retaliation, or disciplinary action.

4.45--SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASS OF 2024 AND 2025

All students are required to participate in the Smart Core curriculum unless their parents or guardians, or the students if they are eighteen (18) years of age or older, sign a Smart Core Waiver Form to not participate. While Smart Core is the default option, a Smart Core Information Sheet and a Smart Core Waiver Form1 will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time and there is not a signed waiver form in the student's permanent record. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. Those students not participating in the Smart Core curriculum will be required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians prior to the deadline for them to sign and return the waiver form.

While there are similarities between the two curriculums, following the Core curriculum may not qualify students for some scholarships and admission to certain colleges could be jeopardized. Students initially choosing the Core curriculum may subsequently change to the Smart Core curriculum providing they would be able to complete the required course of study by the end of their senior year.2 Students wishing to change their choice of curriculums must consult with their counselor to determine the feasibility of changing paths.

This policy, the Smart Core curriculum, and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district support plan development process to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or his/her designee, shall select the composition of the review panel.

Sufficient information relating to Smart Core and the district's graduation requirements shall be

communicated to parents and students to ensure their informed understanding of each.; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor and This may be accomplished through any or all of the following means:4

- Inclusion in the student handbook of the Smart Core curriculum and graduation requirements;
- Discussion of the Smart Core curriculum and graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the public on this matter;
- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.5

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional _1_ units to graduate for a total of _23_ units. The additional required units may be taken from any electives offered by the district.6 There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements. Career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Personal and Family Finance

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

SMART CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th
Oral Communications: one-half (½) unit
Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)

1) Algebra I or Algebra A & B* which may be taken in grades 7-8 or 8-9;
2) Geometry or Geometry A & B* which may be taken in grades 8-9 or 9-10;

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four-unit requirement for the purpose of meeting the graduation requirement, but only serve as one unit each toward fulfilling the Smart Core requirement.

3) Algebra II; and
4) The fourth unit may be either:

- A math unit approved by DESE beyond Algebra II; or
- A computer science flex credit may be taken in the place of a fourth math credit.

Natural Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:

o An additional science credit approved by DESE; or
o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics - one-half (½) unit
- World History - one unit
- American History - one unit
- Other social studies – one-half (½) Unit

Physical Education: one-half (½) unit
Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.
Health and Safety: one-half (½) unit
Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.8
Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of

the Career Focus graduation requirements.

A student who completes at least seventy-five (75) clock hours of documented community service in grades nine (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.9

CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th
Oral Communications: one-half (½) unit
Mathematics: four (4) units

- Algebra or its equivalent* - 1 unit
- Geometry or its equivalent* - 1 unit
- All math units must build on the base of algebra and geometry knowledge and skills.
- (Comparable concurrent credit college courses may be substituted where applicable)
- A computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.
Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
o An additional science credit approved by DESE; or
o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics one-half (½) unit
- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half (½) unit

Physical Education: one-half (½) unit
Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.
Health and Safety: one-half (½) unit
Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.8
Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

A student who completes at least seventy-five (75) clock hours of documented community service in grades nine (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.9

4.45.1—SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASS OF 2026

All students are required to participate in the Smart Core curriculum unless their parents or guardians, or the students if they are eighteen (18) years of age or older, sign a *Smart Core Waiver Form* to not participate. While Smart Core is the default option, a *Smart Core Information Sheet* and a *Smart Core Waiver Form*[1] will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time and there is not a signed waiver form in the student's permanent record. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. Those students not participating in the Smart Core curriculum will be required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians prior to the deadline for them to sign and return the waiver form.

While there are similarities between the two curriculums, following the Core curriculum may not qualify students for some scholarships and admission to certain colleges could be jeopardized. Students initially choosing the Core curriculum may subsequently change to the Smart Core curriculum **providing** they would be able to complete the required course of study by the end of their senior year.[2] Students wishing to change their choice of curriculums must consult with their counselor to determine the feasibility of changing paths.

This policy, the Smart Core curriculum, and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district support plan development process[3] to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or his/her designee, shall select the composition of the review panel.

Sufficient information relating to Smart Core and the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding of each; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor, and may be accomplished through any or all of the additional following means:

- Inclusion in the student handbook of the Smart Core curriculum and graduation requirements;
- Discussion of the Smart Core curriculum and graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the

public on this matter; and/or

- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.5

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional ¬¬__ units to graduate for a total of __ units. The additional required units may be taken from any electives offered by the district.6 There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements. Career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Personal and Family Finance
All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

Computer Science
All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

<u>SMART CORE: Sixteen (16) units</u>

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (½) unit

Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)

1) Algebra I or Algebra A & B* which may be taken in grades 7-8 or 8-9;
2) Geometry or Geometry A & B* which may be taken in grades 8-9 or 9-10;

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four-unit requirement for the purpose of meeting the **graduation** requirement, but only serve as one unit each toward fulfilling the **Smart Core** requirement.

3) Algebra II; and
4) The fourth unit may be either:
   - A math unit approved by DESE beyond Algebra II; or
   - A computer science flex credit may be taken in the place of a fourth math credit.

Natural Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
   - An additional science credit approved by DESE; or
   - A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics - one-half (½) unit
- World History - one unit
- American History - one unit
- Other social studies – one-half (½) Unit

Physical Education: one-half (½) unit

Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (½) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.

Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

a student who completes at least seventy-five (75) clock hours of documented community service in grades nine (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.[9]

CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (½) unit

Mathematics: four (4) units

- Algebra or its equivalent* - 1 unit
- Geometry or its equivalent* - 1 unit
- All math units must build on the base of algebra and geometry knowledge and skills.
- (Comparable concurrent credit college courses may be substituted where applicable)
- A computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
    - An additional science credit approved by DESE; or
    - A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics one-half (½) unit
- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half (½) unit

Physical Education: one-half (½) unit
Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (½) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.[8]

Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

A student who completes at least seventy-five (75) clock hours of documented community service in grades nine (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.[9]

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.[5]

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

4.45.2—SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASS OF 2027 AND THEREAFTER

All students are required to participate in the Smart Core curriculum unless their parents or guardians, or the students if they are eighteen (18) years of age or older, sign a Smart Core Waiver Form to not participate. While Smart Core is the default option, a Smart Core Information Sheet and a Smart Core Waiver Form1 will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time and there is not a signed waiver form in the student's permanent record. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. Those students not participating in the Smart Core curriculum will be required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians prior to the deadline for them to sign and return the waiver form.

While there are similarities between the two curriculums, following the Core curriculum may not qualify students for some scholarships and admission to certain colleges could be jeopardized. Students initially choosing the Core curriculum may subsequently change to the Smart Core curriculum providing they would be able to complete the required course of study by the end of their senior year.2 Students wishing to change their choice of curriculums must consult with their counselor to determine the feasibility of

changing paths.

This policy, the Smart Core curriculum, and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district support plan development process3 to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or his/her designee, shall select the composition of the review panel.

Sufficient information relating to Smart Core and the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding of each; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counseler and may be accomplished through any or all of the additional following means:4

- Inclusion in the student handbook of the Smart Core curriculum and graduation requirements;
- Discussion of the Smart Core curriculum and graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the public on this matter; and/or
- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.5

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional ¬¬__ units to graduate for a total of __ units. The additional required units may be taken from any electives offered by the district.6 There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements. Career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Personal and Family Finance

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

Computer Science
All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

Community Service
Each student must receive seventy-five (75) clock hours of community service that is certified by the service agency or organization where the student volunteers.
The community service must be in programs or activities, either in Arkansas or outside of Arkansas, that meet the requirements established by the State Board and the District Board of Directors and include preparation, action, and reflection components. Except as provided by this policy, a student must receive at least the following documented clock hours of community service each year:
o Fifteen (15) hours for students in grade nine (9);
o Twenty (20) hours for students in grade ten (10);
o Twenty (20) hours for students in grade eleven (11); and
o Twenty (20) hours for students in grade twelve (12).
Students transferring into the District after grade nine (9) or students who are graduating early may receive a diploma provided that the minimum requirement for each year the student attends the District is met. The District Board of Directors may grant a waiver of the community service requirement for extenuating circumstances on a case-by-case basis, which may include without limitation:
• A major illness associated with a student or a family member of a student;
• Student homelessness or housing insecurity; and
• Notice to the public school district board of directors if the student is a major contributor to family income.

SMART CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (½) unit

Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)
1) Algebra I or Algebra A & B* which may be taken in grades 7-8 or 8-9;
2) Geometry or Geometry A & B* which may be taken in grades 8-9 or 9-10;
* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four-unit requirement for the purpose of meeting the graduation requirement, but only serve as one unit each toward fulfilling the Smart Core requirement.
3) Algebra II; and
4) The fourth unit may be either:
• A math unit approved by DESE beyond Algebra II; or
• A computer science flex credit may be taken in the place of a fourth math credit.
Natural Science: three (3) units
a. DESE approved biology – 1 credit;

b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
o An additional science credit approved by DESE; or
o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units
- Civics - one-half (½) unit
- World History - one unit
- American History - one unit
- Other social studies – one-half (½) Unit

Physical Education: one-half (½) unit
Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (½) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.7

Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units
All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (½) unit

Mathematics: four (4) units
- Algebra or its equivalent* - 1 unit
- Geometry or its equivalent* - 1 unit

- All math units must build on the base of algebra and geometry knowledge and skills.
- (Comparable concurrent credit college courses may be substituted where applicable)
- A computer science flex credit may be taken in the place of a math credit beyond Algebra I and **Geometry**

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
o An additional science credit approved by DESE; or
o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics one-half (½) unit
- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half (½) unit

Physical Education: one-half (½) unit

Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (½) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.7

Fine Arts: one-half (½) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional __ units to graduate for a total of __ units. The additional required units may be taken from any electives offered by the district.[6] There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

4.46—PLEDGE OF ALLEGIANCE AND MOMENT OF SILENCE

The Pledge of Allegiance shall be recited:

1. During the first class period of each school day;
2. At the commencement of each school-sanctioned after-school assembly; and
3. At the commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the Pledge may be recited at only one (1) of the school-sanctioned sporting events.

Students choosing to participate in the recitation of the Pledge shall do so by facing the flag with their right hands over their hearts, or in an appropriate salute if in uniform, while reciting the pledge. Students choosing not to participate shall either stand or sit quietly while the other students recite the Pledge.

Students shall not be compelled to recite the pledge, but students who choose not to recite the pledge shall not disrupt those students choosing to recite the Pledge. Students choosing not to recite the Pledge who do not disrupt those students who choose to recite the Pledge shall not be subject to any comments, retaliation, or disciplinary action.

Following the recitation of the Pledge, there shall be an observance of one (1) minute of silence. During the one (1) minute of silence, each student may reflect, pray, meditate, or engage in any other silent activity that is not likely to interfere with or distract another student. Students who do not disrupt the one (1) minute of silence shall not be subject to any comments, retaliation, or disciplinary action.

4.47— POSSESSION AND USE OF CELL PHONES AND OTHER ELECTRONIC DEVICES

Students are responsible for conducting themselves in a manner that respects the rights of others. Possession and use of any electronic device, whether district or student owned, that interferes with a positive, orderly classroom environment does not respect the rights of others and is expressly forbidden.

To protect the security of statewide assessments, no electronic device, as defined in this policy, shall be accessible by a student at any time during assessment administration unless specifically permitted by a student's individualized education program (IEP) or individual health plan;1 this means that when a student is taking an AESAA assessment, the student shall not have his/her electronic device in his/her

possession. Any student violating this provision shall be subject to this policy's disciplinary provisions.

As used in this policy, “electronic devices” means any electronic device that can be used to transmit or capture images, sound, or data, which includes, without limitation, a:.

A. Cellular telephone;

B. Paging device;

C. Beeper;

D. Mobile telephone that offers advanced computing and internet accessibility;

E. Digital media player;

F. Portable game console;

G. Tablet, notebook, or laptop computer;

H. Digital camera; and

I. Digital video or audio recorder.

Misuse of electronic devices includes, but is not limited to:

1. Using electronic devices during class time in any manner other than specifically permitted by the classroom instructor;
2. Permitting any audible sound to come from the device when not being used for reason #1 above;
3. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, or wrongfully obtaining test copies or scores;
4. Using the device to record audio or video or to take photographs in areas where a general expectation of personal privacy exists, including but not limited to locker rooms and bathrooms;
5. Creating, sending, sharing, viewing, receiving, or possessing an indecent visual depiction of oneself or another person.

Use of an electronic device is permitted to the extent it is approved in a student’s IEP or it is needed in an emergency that threatens the safety of students, staff, or other individuals.

Before and after normal school hours, possession of electronic devices is permitted on the school campus. The use of such devices at school sponsored functions outside the regular school day is permitted to the extent and within the limitations allowed by the event or activity the student is attending.

A parent shall obtain approval from the student’s building principal before operating a student-tracking safety device at school or at a school-sponsored event if the device has recording or listen-in capability. The District requires the device’s recording and listen-in technology to be disabled while the device is on the campus or at the school-sponsored event because of student privacy concerns. The District prohibits unauthorized audio or visual recordings or transmission of audio or images of other students. The student’s parent shall agree in writing to the requirement for the device’s recording and listening-in technology to be disabled and that the District may prohibit future use of the device on campus or at a

school-sponsored activity if it is determined that the device's recording or listening-in capabilities were used in violation of this policy before the student safety tracking device may be on campus or at a school-sponsored event.

The student and/or the student's parents or guardians expressly assume any risk associated with students owning or possessing electronic devices. Students misusing electronic devices shall have them confiscated. Confiscated devices may be picked up at the school's administration office by the student's parents or guardians.2 Students have no right of privacy as to the content contained on any electronic devices that have been confiscated.3 A search of a confiscated device shall meet the reasonable individualized suspicion requirements of Policy 4.32—SEARCH, SEIZURE, AND INTERROGATIONS.

Students who use school issued cell phones and/or computers for non-school purposes, except as permitted by the district's Internet/computer use policy, shall be subject to discipline, up to and including suspension or expulsion. Students are forbidden from using school issued cell phones while driving any vehicle at any time. Violation may result in disciplinary action up to and including expulsion.4

No student shall use any wireless communication device for the purposes of browsing the internet; composing or reading emails and text messages; or making or answering phone calls while driving a motor vehicle that is in motion and on school property. Violation may result in disciplinary action up to and including suspension.

4.48—VIDEO SURVEILLANCE AND OTHER STUDENT MONITORING

The Board of Directors has a responsibility to maintain discipline, protect the safety, security, and welfare of its students, staff, and visitors while at the same time safeguarding district facilities, vehicles, and equipment. As part of fulfilling this responsibility, the board authorizes the use of video/audio surveillance cameras, automatic identification technology, data compilation devices, and technology capable of tracking the physical location of district equipment, students, and/or personnel.

The placement of video/audio surveillance cameras shall be based on the presumption and belief that students, staff and visitors have no reasonable expectation of privacy anywhere on or near school property, facilities, vehicles, or equipment, with the exception of places such as rest rooms or dressing areas where an expectation of bodily privacy is reasonable and customary.

Signs shall be posted on campus buildings and in district vehicles to notify students, staff, and visitors that video cameras may be in use. Parents and students shall also be notified through the student handbook that cameras may be in use in school buildings, on school grounds and in school vehicles. Students will be held responsible for any violations of school discipline rules caught by the cameras and other technologies authorized in this policy.

The district shall retain copies of video recordings until they are erased which may be accomplished by either deletion or copying over with a new recording. Other than video recordings being retained under the provisions of this policy's following paragraph, the district's video recordings may be erased any time greater than 1 year after they were created.

Videos, automatic identification, or data compilations containing evidence of a violation of student conduct rules and/or state or federal law shall be retained until the issue of the misconduct is no longer subject to review or appeal as determined by board policy or student handbook; any release or viewing of such records shall be in accordance with current law.

Students who vandalize, damage, disable, or render inoperable (temporarily or permanently) surveillance cameras and equipment, automatic identification, or data compilation devices shall be subject to appropriate disciplinary action and referral to appropriate law enforcement authorities.

4.49—SPECIAL EDUCATION

The district shall provide a free appropriate public education and necessary related services to all children with disabilities residing within the district, required under the Individuals with Disabilities Education Act ("IDEA"), Section 504 of the Rehabilitation Act of 1973, the Americans with Disabilities Act, and Arkansas statutes.

It is the intent of the district to ensure that students who are disabled within the definition of Section 504 of the Rehabilitation Act of 1973 are identified, evaluated and provided with appropriate educational services. Students may be disabled within the meaning of Section 504 of the Rehabilitation Act even though they do not require services pursuant to the IDEA.

For students eligible for services under IDEA, the District shall follow procedures for identification, evaluation, placement, and delivery of services to children with disabilities provided in state and federal statutes which govern special education. Implementation of an Individualized Education Program (IEP) in accordance with the IDEA satisfies the district's obligation to provide a free and appropriate education under Section 504.

The Board directs the superintendent to ensure procedures are in place for the implementation of special education services and that programs are developed to conform to the requirements of state and federal legislation. The superintendent is responsible for appointing a district coordinator for overseeing district fulfillment of its responsibilities regarding students with disabilities. Among the coordinator's responsibilities shall be ensuring district enforcement of the due process rights of students with disabilities and their parents.

4.50—SCHOOL MEAL MODIFICATIONS

The district only provides modified meal components on menus to accommodate students with a disability. A parent/guardian wishing to request dietary accommodations for their student with a disability must submit to Darla Lamb, the district's Director of Child Nutrition, a medical statement completed by a State licensed healthcare professional, which includes:

Physicians, including those licensed by:

The Arkansas State Medical Board;

The Arkansas State Board of Chiropractic Examiners (Chiropractors);

The Arkansas Board of Podiatric Medicine (Podiatrists);

Nurse Practitioners (APRNs in family or pediatric practice with prescriptive authority);

Physician Assistants (PAs who work in collaborative practice with a physician); and
Dentists.

The medical statement should include:

A description of the student's disability that is sufficient to understand how the disability restricts the student's diet;

An explanation of what must be done to accommodate the disability, which may include:

Food(s) to avoid or restrict;

Food(s) to substitute;

Caloric modifications; or

The substitution of a liquid nutritive formula.

If the information provided in the medical statement is unclear, or lacks sufficient detail, Darla Lamb, the district's Director of Child Nutrition[1] shall request additional information so that a proper and safe meal can be provided.

When choosing an appropriate approach to accommodate a student's disability, the District will consider the expense and efficiency of the requested accommodations. The District will offer a reasonable modification that effectively accommodates the child's disability and provides equal opportunity to participate in or benefit from the program, which may include a generic version of a product.

Parents may file a grievance regarding the request for accommodations with Dolores Cowart, District's 504 Coordinator[3], who will schedule a hearing on the grievance to be held as soon as possible. The 504 coordinator shall provide a copy of the procedures governing the hearing, including that the parent has the right to be accompanied by counsel, and the appeal process upon request.

The district will not prepare meals outside the normal menu to accommodate a family's religious or personal health beliefs.

4.51— FOOD SERVICE PREPAYMENT

The Kirby School District Food Service Program provides well-balanced, state- and federally-approved lunch and breakfast menus for all students at minimum cost. Free and reduced meals are available for those who qualify. To check for eligibility, each student must complete an eligibility form and return it to the office at the beginning of each school year. Forms may be submitted at other times during the school year as students new to the district enroll or family circumstances change.

The district does not provide credit for meals, a la carte, or other food and beverage items available for purchase in the school food service areas. Meals, a la carte, or other food and beverage items may be purchased by either providing payment for the items at the time of receipt or by having a prepaid account with the District that may be charged for the items. Staff and parents, or students choosing to do so, may pay in advance for meals, a la carte, or other food and beverage items by submitting cash or check payment to the Kirby School District.

Grades K-6 Cafeteria/Food Service Payment

Regular Meal Prices

Regular breakfast $1.50 Regular lunch $2.50

Students in grades K-6 should bring meal money on Monday morning in a sealed envelope, with the child's and teacher's name, amount enclosed and clarification about whether it's meant for breakfast and/or lunch written on the front of the envelope. Parents who come to eat with their child must check in at the office and pick up a visitor's pass before going to the cafeteria.

Grades 7-12 Cafeteria/Food Service Payment

Regular Meal Prices

Regular breakfast $1.75 Regular lunch $2.75

Students in grades 6-12 will be allowed to charge a maximum of $20 per student account.

Unpaid Meal Access

In accordance with Arkansas law, the District allows students whose accounts do not have enough funds to purchase a meal to receive an unpaid reimbursable meal at no charge. The District will notify a student's parents [7]

- When the student's prepaid account balance has dropped to the point that the student will begin receiving unpaid meals;
- Each time the student receives the first unpaid meal after money has been deposited into the student's prepaid account; and
- After the student has received five (5) unpaid meals.

Students who have submitted proper documentation to receive a meal modification in accordance with Policy 4.50—SCHOOL MEAL MODIFICATIONS shall receive the same type of modification for an unpaid meal.

4.52—STUDENTS WHO ARE FOSTER CHILDREN

The District will afford the same services and educational opportunities to foster children that are afforded other children and youth. The District shall work with the Department of Human Services ("DHS"), Division of Elementary and Secondary Education (ADESE), and individuals involved with each foster child to ensure that the foster child is able to maintain his/her continuity of educational services to the fullest extent that is practical and reasonable.

The Superintendent or his/her designee shall appoint an appropriate staff person to be the local educational liaison for foster children and youth whose responsibilities shall include ensuring the timely school enrollment of each foster child and assisting foster children who transfer between schools by expediting the transfer of relevant educational records.

The District, working with other individuals and agencies shall, unless the presiding court rules otherwise, ensure that the foster child remains in his/her school of origin, even if a change in the foster

child's placement results in a residency that is outside the district. In such a situation, the District will work with DHS to arrange for transportation to and from school for the foster child to the extent it is reasonable and practical.

Upon notification to the District's foster care liaison by a foster child's caseworker that a foster child's school enrollment is being changed to one of the District's schools, the school receiving the child must immediately enroll him/her. Immediate enrollment is required even if a child lacks the required clothing, academic or medical records, or proof of residency.

A foster child's grades shall not be lowered due to absence from school that is caused by a change in the child's school enrollment, the child's attendance at dependency-neglect court proceedings, or other court-ordered counseling or treatment.

Any course work completed by the foster child prior to a school enrollment change shall be accepted as academic credit so long as the child has satisfactorily completed the appropriate academic placement assessment.

If a foster child was enrolled in a District school immediately prior to completing his/her graduation requirements while detained in a juvenile detention facility or while committed to the Division of Youth Services of DHS, the District shall issue the child a diploma.

Foster Child School Choice

If DHS approves a request from a foster parent, or the foster child if the foster child is eighteen (18) years of age, to transfer to another school in the District or into the district as being in the best interest of the foster child, the District shall allow the foster child to transfer to another school in the District or into the District if the foster parent, or the foster child if the foster child is eighteen (18) years of age, submits a request to transfer on a form approved by DESE that is postmarked by no later than May 1 of the year the student seeks to begin the fall semester at another school in the District or in the District.

By July 1 of the school year in which the student seeks to transfer under this section, the superintendent shall notify the foster parent, or the foster child if the foster child is eighteen (18) years of age, in writing whether the application has been accepted or rejected. If the application is accepted, the superintendent shall state in the notification letter a reasonable deadline for the foster child to enroll in the new school or the District and that failure to enroll by the date shall void the school choice acceptance. If the application is rejected, the superintendent shall state in the notification letter the reason for the rejection and that the foster parent, or the foster child if the foster child is eighteen (18) years of age, may submit a written appeal of the rejection to the State board within ten (10) days of receiving the notification letter.

The District shall only reject a Foster Child School Choice application if:

1. The public school or District has reached the maximum student-to-teacher ratio allowed under federal law, state law, rules for standards of accreditation, or other applicable rule or regulation; or

2. Approving the transfer would conflict with a provision of an enforceable desegregation court order or a public school district's court-approved desegregation plan regarding the effects of past racial segregation in student assignment. A foster child whose application is rejected by the District may submit a written request within ten (10) days following the receipt of the rejection letter from the superintendent to the

State Board of Education for the State Board to reconsider the transfer.

A Foster Child School Choice transfer shall remain in effect until the foster child:

• Graduates from high school; or

• Transfers to another school or school district under:

o The Foster Child School Choice Act; o Opportunity Public School Choice Act of 2004;

o The Public School Choice Act of 2015; or o Any other law that allows a transfer. The District shall accept credits toward graduation that were awarded by another public school district. When a foster child transfers from the foster child's school of origin to another school in the District or into the District, the foster child or the foster parent is responsible for the foster child's transportation to and from the school the foster child transferred to. The District and the foster parent, or the foster child if the foster child is eighteen (18) years of age, may enter into a written agreement for the District to provide transportation to and from the school the foster child transferred to.

4.53— PLACEMENT OF MULTIPLE BIRTH SIBLINGS

The parent, guardian or other person having charge or custody of multiple birth siblings in grades pre-K through 6 may request that the multiple birth siblings are placed in either the same or separate classrooms. The request shall be in writing not later than the fourteenth calendar day prior to the first day of classes at the beginning of the academic year. The school shall honor the request unless it would require the school to add an additional class to the sibling's grade level. If one parent of multiple birth siblings requests a placement that differs from that of the other parent of the same multiple birth siblings, the school shall determine the appropriate placement of the siblings. The school may change the classroom placement of one or more of the multiple birth siblings if:

• There have been a minimum of 30 instructional days since the start of the school year; and

• After consulting with each classroom teacher in which the siblings were placed, the school determines the parent's classroom placement request is:

o Detrimental to the educational achievement of one or more of the siblings;

o Disruptive to the siblings' assigned classroom learning environment; or

o Disruptive to the school's educational or disciplinary environment. If a parent believes the school has not followed the requirements of this policy, the parent may appeal the multiple birth siblings' classroom placement to the Superintendent. The Superintendent's decision regarding the appeal shall be final.

4.54 – STUDENT ACCELERATION

The Board believes that acceleration is an effective and research-based intervention for the academic growth of students who are ready for an advanced or faster-paced curriculum. It can allow a student to move through the traditional educational setting more rapidly, based on assessed readiness, capability and motivation. At the same time, the Board understands that acceleration is not a replacement for gifted education services or programs.

Generally, acceleration can occur through one of two broad categories: content based and grade based. Grade based acceleration shortens the number of years a student would otherwise spend in K-12 education, while content based acceleration occurs within the normal K-12 time span. Either form of acceleration can be triggered by either a parent/guardian, student, or community member's request or by the referral of school personnel. In either case, the process of determining the appropriateness of the request shall be under the direction of the district/school Gifted and Talented Program Coordinator who shall convene the individuals necessary to make an informed decision which shall include the student's parents or guardians.

While the needs of the student should dictate when acceleration decisions are considered, the Board believes the optimal time for referrals is in the spring which gives adequate time for working through the determination process and for preparing those concerned for a smooth transition to the acceleration beginning in the following school-year.

The District's Gifted and Talented Program Coordinator will create a written format to govern the referral and determination process which shall be made available to any parent or staff member upon request.

The parents/guardians of any student whose request for acceleration has been denied may appeal the decision, in writing to the District's GT Coordinator. The Districts GT Coordinator and the Acceleration Placement Committee will again thoroughly review the case study that was completed on the student. Upon completion of the review, the Committee will either request additional new testing be conducted to help the Committee make its determination or it will uphold the initial decision. The Committee's decision may not be further appealed.

4.55—STUDENT PROMOTION AND RETENTION

A disservice is done to students through social promotion and is prohibited by state law. The District shall, at a minimum, evaluate each student annually in an effort to help each student who is not performing at grade level. Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall be kept informed concerning the progress of their student(s). Notice of a student's possible retention or required retaking of a course shall be included with the student's grades sent home to each parent/guardian or the student if 18 or older. Parent-teacher conferences are encouraged and may be held as necessary in an effort to improve a student's academic success.

Each time a student is assessed by use of a high-quality literacy screener, with results at least once each semester, the Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis, and teacher(s) of a student in kindergarten through eighth (8th) grade shall be notified in writing of the student's independent grade-level-equivalency in reading and, in a parent friendly manner, the student's reading progress.

Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities.

Promotion or retention of students, or their required retaking of a course shall be primarily based on the following criteria.[1] If there is doubt concerning the promotion or retention of a student or his/her

required retaking of a course, a conference shall be held before a final decision is made that includes the following individuals:

a. The building principal or designee;

b. The student's teacher(s);

c. School counselor;

d. A 504/special education representative (if applicable); and

e. The student's parents, legal guardians, persons with lawful control of the student, or persons standing in loco parentis.

The conference shall be held at a time and place that best accommodates those participating in the conference. The school shall document participation or non-participation in required conferences. If the conference attendees fail to agree concerning the student's placement or receipt of course credit, the final decision shall rest with the principal or the principal's designee.

Beginning with the 2018-2019 school year, Each student[2] shall have a student success plan (SSP) developed by school personnel in collaboration with the student's parents and the student that is reviewed and updated annually. A student's SSP shall use multiple academic measures to personalize learning in order for students to achieve their grade-level expectations and individual growth. The SSP will identify if the student is in need of additional support or acceleration. Academic measures to be used in creating and updating a student's SSP shall include, but are not limited to:

· Statewide student assessment results;

Subject grades;

· Student work samples; and

· Local assessment scores.

The SSP for a student in kindergarten through grade three (K-3) who does not meet the reading standard As set by the state board and determined by a high-quality literacy screener or the statewide assessment shall include an individual reading plan for each student. An individual reading plan shall include:

1. The student's specific, diagnosed reading skill needs, including without limitation:

- Phonemic awareness;
- Phonics decoding;
- Text reading fluency;
- Vocabulary-building strategies; and
- Self-regulated use of reading comprehension strategies, as identified by high-quality literacy screener data;

2. The goals and benchmarks for the student's growth;

3. How the student's progress will be monitored and evaluated;

4. The type of additional instructional services and interventions the student may receive;

5. The intensive, evidence-based literacy intervention program aligned to the science of reading the student's teacher will use to address the areas of phonemic awareness, phonics, fluency, vocabulary, and comprehension;

6. The strategies the student's parents, legal guardians, or persons standing in loco parentis to the student are encouraged to use in assisting the student to achieve the student's reading goal; and

7. Any additional services the student's teacher determines are available and appropriate to accelerate the student's reading skill development.

All parents, legal guardians, or persons standing in loco parentis shall be notified in writing:

a. Of the content of their child's independent reading plan and progress on the independent reading plan throughout the year; and

b. By no later than October 1 of each year, or as soon as practicable if a student's reading need is identified after October 1:

o Of their student's eligibility to participate in the literacy tutoring grant program;

o The process for applying for the literacy tutoring grant program; and

o Other information provided by DESE.

For each student who does not meet the reading standard established by the state board by the end of third (3rd) grade, including students who are promoted to the fourth (4th) grade under a good cause waiver, the District, during the subsequent summer and school year, shall :

a. Provide at least ninety (90) minutes of evidence-based literacy instruction aligned to the science of reading during each school day;

b. Assign the student to:

• If the District has a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years; or

• If the District is unable to identify a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a teacher:

o With a highly-effective rating according to the Teacher Excellence and Support System, when possible; or

o Deemed to be a high-performing teacher as defined by a Master Professional Educator designation.

c. Provide parents, legal guardians, or persons standing in loco parentis to students with a "read-at-home" plan to support student early literacy growth, which shall include evidence-based science of reading strategies and tools that are aligned to a student's individual reading plan for parents, legal guardians, or persons standing in loco parentis to use with their student;

d. Notify parents, legal guardians, or persons standing in loco parentis to a student regarding their student's eligibility for a literacy tutoring grant;

e. Be given priority to receive a literacy tutoring grant; and

f. Be given the option to participate in additional intensive, evidence-based literacy intervention programs aligned to the science of reading.

The SSP of a student in kindergarten through grade eight (K-8) who is not performing at or above grade level on the state assessment, as defined by the State Board of Education shall include a math intervention plan. The math intervention plan may include the:

1. Provision of each student with access to high-dosage, targeted math tutoring in the subsequent school year, which shall include three (3) or more tutoring sessions a week in a one-on-one or small-group setting;

2. Assignment to:

- if the District has a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher, with a value-added model score in the top quartile statewide in math for the previous three (3) years; or

- if the District is unable to find a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher:

o With a highly-effective rating in the Teacher Excellence and Support System, when possible; or

o Deemed to be a high-performing teacher as defined by a Master Professional Educator designation; and

3. Provision of each student with extended time on math instruction during or after school.

All parents, legal guardians, or persons standing in loco parentis shall receive written notification of their student's math intervention plan and progress on the student's math intervention plan throughout the school year.

By the end of grade eight (8), the student's SSP shall:[3]

- Guide the student along pathways to graduation;
- Address accelerated learning opportunities;
- Address academic deficits and interventions; and
- Include college and career planning components.

Based on a student's score on the college and career assessment:

§ The student's SSP will be updated in order to assist the student with college and career readiness skills, course selection in high school, and improved academic achievement; and

§ Provide a basis for counseling concerning postsecondary preparatory programs.

A student's SSP shall include the recommended sequence of courses for successful completion of the diploma pathway selected by the student but be sufficiently flexible to allow the student to change the student's selected diploma pathway. The school counselor shall meet with the student's parent, legal guardian, or persons standing in loco parentis and the student to review the student's SSP annually and to revise the student's SSP as necessary to identify the courses to be taken each year until all required core

courses are completed. Part of the review shall include an explanation of the possible impacts the revisions to the plan might have on the student's graduation requirements and postsecondary education goals. Any change made to a student's SSP as part of the review that amends the student's diploma pathway shall be structured to ensure that the student will meet the high school graduation requirements for the student's chosen diploma pathway and be qualified for admission to a postsecondary educational institution or to enter the workforce. After each review, the student's SSP shall be signed by the student; student's parent, legal guardian, or person standing in loco parentis to the student; and the school counselor.

An SSP shall be created:

1. By no later than the end of the school year for a student in grade eight (8) or below[2] who enrolls in the District during the school year; or

2. As soon as reasonably possible for a student in grade nine (9) or above who enrolls in the District at the beginning or during the school year.

A student's individualized education program (IEP) may act in the place of the student's SSP if the IEP addresses academic deficits and interventions for the student's failure to meet standards-based academic goals at an expected rate or level and includes a transition plan that addresses college and career planning components.. Promotion or retention of students with an IEP shall be based on their successful attainment of the goals set forth in their IEP.

Students who either refuse to sit for a Statewide assessment or attempt to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are originally administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity, including school dances, prom, homecoming, senior events, and may be prevented from walking or participating in graduation exercises. The student shall remain ineligible to participate until the student takes the same or a following Statewide assessment, as applicable. The Superintendent or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.[4] Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.

4.56—EXTRACURRICULAR ACTIVITIES – SECONDARY SCHOOLS Definitions

Definitions:

"Academic Courses" are those courses for which class time is scheduled, which can be credited to meet the minimum requirements for graduation, which is taught by a teacher required to have State licensure in the course or is otherwise qualified under Arkansas statute, and has a course content guide which has been approved by the Division of Elementary and Secondary Education (ADESE). Any of the courses for which concurrent high school credit is earned may be from an institution of higher education recognized by DESE. If a student passes an academic course offered on a block schedule, the course can be counted twice toward meeting the requirement for students to pass four (4) academic courses per semester as required by this policy.

"Extracurricular activities" are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

"Field Trips" are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

"Interscholastic Activities" means athletic or non-athletic/academic activities where students compete on a school vs. school basis.[1]

"Intrascholastic Activities" means athletic or non-athletic/academic activities where students compete with students from within the same school.[1]

"Supplemental Improvement Program (SIP)" is an additional instructional opportunity for identified students outside of their regular classroom and meets the criteria outlined in the current Arkansas Activities Association (AAA) Handbook.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student's educational experience. At the same time, the Board believes that a student's participation in extracurricular activities cannot come at the expense of his/her classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one per week per extracurricular activity (tournaments excepted)[2]. Additionally, a student's participation in, and the District's operation of, extracurricular activities shall be subject to the following policy. All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The superintendent or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.[3] Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.[4]

A student who enrolls in the district and meets the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS shall be eligible to try out for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

Interscholastic Activities

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.[5]

ACADEMIC REQUIREMENTS: Junior High

A student promoted from the sixth to the seventh grade automatically meets scholarship requirements. A student promoted from the seventh to the eighth grade automatically meets scholarship requirements for the first semester. The second semester eighth-grade student meets the scholarship requirements for junior high if he/she has successfully passed four (4) academic courses the previous semester.

The first semester ninth-grade student meets the scholarship requirements for junior high if he/she has successfully passed four (4) academic courses the previous semester.

The second semester ninth-grade student meets the scholarship requirements for junior high if he/she has successfully passed (4) academic courses the previous semester which count toward his/her high school graduation requirements.

Ninth-grade students must meet the requirements of the senior high scholarship rule by the end of the second semester in the ninth grade in order to be eligible to participate the fall semester of their tenth-grade year.

ACADEMIC REQUIREMENTS: Senior High

In order to remain eligible for competitive interscholastic activity, a student must have passed (4) academic courses the previous semester and either:

1. Have earned a minimum Grade Point Average (GPA) of 2.0 from all academic courses the previous semester; or

2. If the student has passed four (4) academic courses the previous semester but does not have a 2.0 GPA the student must be enrolled and successfully participating in an SIP to maintain their competitive interscholastic extracurricular eligibility.

STUDENTS WITH AN INDIVIDUAL EDUCATION PROGRAM

In order to be considered eligible to participate in competitive interscholastic activities, students with disabilities must pass at least four (4) courses per semester as required by their individual education program (IEP).

Homeless Students

Students who are determined to be experiencing homelessness by the school's homeless LEA shall be eligible for participation in interscholastic activities.

ARKANSAS ACTIVITIES ASSOCIATION

In addition to the foregoing rules, the district shall abide by the rules of AAA governing interscholastic activities. AAA provides catastrophic insurance coverage for students participating in AAA governed extracurricular activities who are enrolled in school. As a matter of District policy, no student may participate in a AAA governed extracurricular activity unless he or she is enrolled in a district school, to ensure all students are eligible for AAA catastrophic insurance.

Intrascholastic Activities

AAA Governed Activities

Students participating in intrascholastic extracurricular activities that would be governed by AAA if they were to occur between students of different schools shall meet all interscholastic activity eligibility requirements to be eligible to participate in the comparable intrascholastic activity. The District will abide by the AAA Handbook for such activities to ensure District students are not disqualified from participating in interscholastic activities.[7]

Non-AAA Governed Activities

Unless made ineligible by District policies, all students shall be eligible to participate in non-AAA governed intrascholastic extracurricular activities. Intrascholastic activities designed for a particular grade(s) or course(s) shall require the student to be enrolled in the grade(s) or course(s).

School Choice Transfers

A student who transfers under a legal school choice option shall not be denied participation in an extracurricular activity where the student transfers based exclusively on the student's decision to transfer . A student who transfers after July 1 of the year the student enters grade seven (7) shall complete a Changing Schools/Athletic Participation form as defined by AAA, which must be signed by the:

- Superintendent of the student's resident school district;
- Superintendent of the nonresident school district to which the student transfers; and
- Parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The completed Changing Schools/Athletic Participation form shall be filed with the non-resident school district where the student transfers and the AAA. The Changing Schools/Athletic Participation form shall be signed by the superintendent of a student's resident school district and the superintendent of the nonresident school district to which a student transfers unless there is demonstrable evidence of recruiting by the receiving school district personnel or that the student is transferring to the nonresident school district solely for athletic purposes.

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY Definitions

Definitions

"Extracurricular activities" are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

"Field Trips" are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

"Interscholastic Activities" means athletic or non-athletic/academic activities where students compete on a school vs. school basis.

"Intrascholastic Activities" means athletic or non-athletic/academic activities where students compete with students from within the same school.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student's educational experience. At the same time, the Board believes that a student's participation in extracurricular activities cannot come at the expense of his/her classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one per week per extracurricular activity[1] (tournaments or other similar events excepted with approval of the _____).[2] All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

A student may lose his/her eligibility to participate in extracurricular activities when, in the opinion of the school's administration, the student's participation in such an activity may adversely jeopardize his/her academic achievement. Students may also be denied permission to participate in extracurricular activities as a consequence of disciplinary action taken by the administration for inappropriate behavior.[3]

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum

related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The superintendent or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.[4] Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.[5]

A student who enrolls in the district and meets the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS shall be eligible to try out for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

4.56.2—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME-SCHOOLED STUDENTS

Home-schooled student means a student legally enrolled in an Arkansas home school and who meets or has met the criteria for being a home-schooled student, as established by A.C.A. § 6-15-503.

Interscholastic activity means an activity between schools subject to rules of the Arkansas Activities Association that is outside the regular curriculum of the school district, such as an athletic activity, fine arts program, or a special interest group or club.

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.[1]

Home-schooled students whose parents or guardians are legal residents of the school district will be permitted to pursue participation in an interscholastic activity in the student's resident school zone[2] as permitted by this policy.

Home-schooled students whose parent or legal guardian are not residents of the school district will be permitted to pursue participation in an interscholastic activity in the District if;

• The superintendent of the student's resident district and the superintendent of the District both agree in writing to allow the student to participate in interscholastic activities at the District; or

• The student's resident school does not offer the interscholastic activity and the superintendent of the non-resident district agrees to allow the student to enroll in the interscholastic activity.

Although not guaranteed participation in an interscholastic activity, home-school students who meet the provisions of this policy, AAA Rules, and applicable Arkansas statutes shall have an equal opportunity to try out and participate in interscholastic activities without discrimination. The District shall provide a

reasonable alternative to any prerequisite for eligibility to participate in an interscholastic activity that the home-schooled student is unable to meet because of his or her enrollment in a home school.

No student shall be required to pay for individual or group instruction in order to participate in an interscholastic activity.

To be eligible to try out and participate in interscholastic activities, the student or the parent of a student shall mail or hand deliver the student's request to participate to the student's school's principal before the signup, tryout or participation deadline established for traditional students. Additionally, the student shall demonstrate academic eligibility by obtaining a minimum test score of the 30th percentile or better in the previous 12 months on the Stanford Achievement Test Series, Tenth Edition; another nationally recognized norm-referenced test; or a minimum score on a test approved by the State Board of Education.

A student who meets the requirements for eligibility to participate in an interscholastic activity is required to register for no more than one non-accademic course in the District's school where the student is intending to participate in an interscholastic activity that coincides with the interscholastic activity in which the homeschooled student participates and shall be required to be at school only when participation in the interscholastic activity requires other students who participate in the interscholastic activity to be at school.

The student shall regularly attend the class in which the student is registered beginning no later than the eleventh (11th) day of the semester in which the student's interscholastic activity participation is desired. The student must attend the practices for the interscholastic activity to the same extent as is required of traditional students.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

A home-schooled student who has met the try out criteria; and who has been selected to participate in the interscholastic activity shall meet the following criteria that also apply to traditional students enrolled in the school:

· standards of behavior and codes of conduct;
· attend the practices for the interscholastic activity to the same extent as is required of traditional students;
· required drug testing;[4]
· permission slips, waivers, physical exams; and
· participation or activity fees.

Students who participate in extracurricular or athletic activities under this policy will be transported to and from the interscholastic activities on the same basis as other students are transported.

A home schooled student may begin participating in an interscholastic activity immediately upon being approved to participate by the District if:

- The home schooled student has not withdrawn from an Arkansas Activities Association member

school; or

- The student has withdrawn from an AAA member school and enrolled in a home school but did not participate in an interscholastic activity that is a varsity sport at the student's resident district prior to the students withdrawal from the AAA member school.

A student who withdrew from an AAA member school who participated in an interscholastic activity that is a varsity sport at the student's resident district during the previous three hundred sixty-five (365) days shall not be eligible to immediately participate in an interscholastic activity that is a varsity sport in the District. The student will not become eligible for full participation until the completion of the three hundred sixty-five (365) day period from when the student withdrew. A student who is not eligible for full participation may participate in tryouts, practices, classes, or other endeavors associated with the interscholastic activity until the completion of the three hundred sixty-five (365) day period from when the student withdrew.

4.57—IMMUNIZATIONS Definitions For the purposes of this policy

"In process" means the student has received at least one dose of the required immunizations and is waiting the minimum time interval to receive the additional dose(s).

"Serologic testing" refers to a medical procedure used to determine an individual's immunity to Hepatitis B, Measles, Mumps, Rubella and Varicella. General Requirements

Unless otherwise provided by law or this policy, no student shall be admitted to attend classes in the District who has not been age appropriately immunized against:

- Poliomyelitis;
- Diphtheria;
- Tetanus;
- Pertussis;
- Red (rubeola) measles;
- Rubella;
- Mumps;
- Hepatitis A;
- Hepatitis B;
- Meningococcal disease;
- Varicella (chickenpox); and
- Any other immunization required by the Arkansas Department of Health (ADH). The District administration has the responsibility to evaluate the immunization status of District students. The District shall maintain a list of all students who are not fully age appropriately immunized or who have an exemption provided by ADH to the immunization requirements based on medical, religious, or philosophical grounds. Students who are not fully age appropriately immunized when seeking admittance shall be referred to a medical authority for consultation.

The only types of proof of immunization the District will accept are immunization records provided by a:

A. Licensed physician;
B. Health department;
C. Military service; ~~or~~
D. Official record from another educational institution in Arkansas~~.~~; or
E. An immunization record printed off of the statewide immunization registry with the Official Seal of the State of Arkansas.

The proof of immunization must include the vaccine type and dates of vaccine administration. Documents stating "up-to-date", "complete", "adequate", and the like will not be accepted as proof of immunization. No self or parental history of varicella disease will be accepted as a history of varicella disease must be documented by a licensed physician, advanced practice nurse, doctor of osteopathy, or physician assistant. Valid proof of immunization and of immunity based on serological testing shall be entered into the student's record.

In order to continue attending classes in the District, the student must have submitted:

1. Proof of immunization showing the student to be fully age appropriately vaccinated;

2. Written documentation by a public health nurse or private physician of proof the student is in process of being age appropriately immunized, which includes a schedule of the student's next immunization; 3. A copy of a letter from ADH indicating immunity based on serologic testing; and/or 4. A copy of the letter from ADH exempting the student from the immunization requirements for the current school year, or a copy of the application for an exemption for the current school year if the exemption letter has not yet arrived. Students whose immunization records or serology results are lost or unavailable are required to receive all age appropriate vaccinations or submit number 4 above. Temporary Admittance

While students who are not fully age appropriately immunized or have not yet submitted an immunization waiver may be enrolled to attend school, such students shall be allowed to attend school on a temporary basis only. Students admitted on a temporary basis may be admitted for a maximum of thirty (30) days (or until October 1st of the current school year for the tetanus, diphtheria, pertussis, and meningococcal vaccinations required at ages eleven (11) and sixteen (16) respectively if October 1st is later in the current school year than the thirty (30) days following the student's admittance). No student shall be withdrawn and readmitted in order to extend the thirty (30) day period. Students may be allowed to continue attending beyond the thirty (30) day period if the student submits a copy of either number 2 or number 4 above.

Students who are in process shall be required to adhere to the submitted schedule. Failure of the student to submit written documentation from a public health nurse or private physician demonstrating the student received the vaccinations set forth in the schedule may lead to the revocation of the student's temporary admittance; such students shall be excluded from school until the documentation is provided.

The District will not accept copies of applications requesting an exemption for the current school year that are older than two (2) weeks based on the date on the application. Students who submit a copy of

an application to receive an exemption from the immunization requirements for the current year to gain temporary admittance have thirty (30) days from the admission date to submit either a letter from ADH granting the exemption or documentation demonstrating the student is in process and a copy of the immunization schedule. Failure to submit the necessary documentation by the close of the thirty (30) days will result in the student being excluded until the documentation is submitted. Exclusion from School

Exclusion From School

In the event of an outbreak, students who are not fully age appropriately immunized, are in process, or are exempt from the immunization requirements may be required to be excluded from school in order to protect the student. ADH shall determine if it is necessary for students to be excluded in the event of an outbreak. Students may be excluded for no fewer than twenty-one (21) days or even longer depending on the outbreak. No student excluded due to an outbreak shall be allowed to return to school until the District receives approval from ADH.

Students who are excluded from school are not eligible to receive homebound instruction unless the excluded student had a pre-existing IEP or 504 Plan and the IEP/504 team determines homebound instruction to be in the best interest of the student. To the extent possible, the student's teacher(s) shall place in the principal's office a copy of the student's assignments:

· for the remainder of the week by the end of the initial school day of the student's exclusion; and

· by the end of each school's calendar week for the upcoming week until the student returns to school.[2]

It is the responsibility of the student or the student's parent/legal guardian to make sure that the student's assignments are collected.

Students excluded from school shall have five (5) school days from the day the student returns to school to submit any homework and to make up any examinations. State mandated assessments are not included in "examinations" and the District has no control over administering state mandated make-up assessments outside of the state's schedule. Students shall receive a grade of zero for any assignment or examination not completed or submitted on time.[3]

Annually by December 1, the District shall create, maintain, and post to the District's website a report that includes the following for each disease requiring an immunization under this policy:

o The number of students in the District that were granted an exemption by the Department of Health from an immunization;

o The percentage of students in the District that were granted an exemption by the Department of Health from an immunization;

o The number of students within the District who have failed to provide to the public school proof of the vaccinations required and have not obtained an exemption from ADH;

o The percentage of students within the District who have failed to provide to the public school proof of

the vaccinations required and have not obtained an exemption from ADH; and

○The percentage of a population that must receive an immunization for herd immunity to exist.

4.58—FOOD SHARING AND ITS REMOVAL FROM FOOD SERVICE AREA

No student shall remove school provided food items from the food service area at the end of the meal period, especially milk, juice, and other items requiring temperature controlled environments. Except for food service workers as required by their job duties, District employees may only remove school provided food items from the food service area when required by a 504 plan or a student's IEP.

4.59—ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOLED STUDENTS

The District allows private school and home schooled students whose parents, legal guardians, or other responsible adult with whom the student resides are residents of the District to attend academic courses offered By the District. The District will place a list of courses that a private school or home schooled student may request to attend on its website by:[1]

1. June 1 for courses to be offered during the Fall semester; and
2. November 1 for courses to be offered during the Spring semester.

A private school or home schooled student who desires to attend one or more of the available academic courses shall submit a written request to attend the academic course(s) to the superintendent, or designee, no later than [1]

a. August 1 for Fall semester courses; or
b. December 1 for Spring semester courses.

The superintendent, or designee, is authorized to waive the application deadline on a case by case basis.

The District permits a private school or home schooled student to attend a maximum of six (6) courses per semester.

The District may reject a private school or home schooled student's request for attendance if the District's acceptance would:[2]

· Require the addition of staff or classrooms;
· Exceed the capacity of a program, class, grade level, or school building;
· Cost the District more for the student to attend the academic course than the District receives for the student's attendance;
· Cause the District to provide educational services the District does not currently provide at a financial burden to the District; or
· Cause the District to be out of compliance with applicable laws and regulations regarding desegregation.

Requests to attend an academic course will be granted in the order the requests are received. Upon the

receipt of a private or home schooled student's request to attend academic course(s), the District will date and time stamp the request for attendance. If a private school or home schooled student is denied attendance based on a lack of capacity and an opening in the requested course occurs prior to the start of the course, the District will use the date and time stamp on the request for attendance to determine the private school or home schooled student who will be notified of an opening in the requested course.

As part of the request to attend academic courses in the District, a private school or home schooled student shall:

- Indicate the course(s) the private school or home schooled student is interested in attending;
- If the course(s) the private school or home schooled student is interested in attending is being offered by the District in both a physical and a digital format, whether the private school or home schooled student intends to attend the physical course or the digital course;
- Submit, along with the student's application, a copy of the student's transcript indicating that the student has received credit for the course(s), or equivalent course(s), that are a prerequisite to the course(s) the student desires to attend at the District;
- Agree to follow the District's discipline policies; and
- Submit immunization documentation required by Policy 4.57—IMMUNIZATIONS.

A private school or home schooled student who fails to attend an academic course by the eleventh (11) day of class or who is absent without excuse for eleven (11) consecutive days during the semester shall be dropped from the course.; however, a private school or home schooled student shall not be considered truant for unexcused absences from the course(s) the student is attending at the District.

Private school or home schooled students shall receive a final grade and transcript for each academic course the student completes.

The responsibility for transportation of any private school or home schooled student attending academic courses in the District shall be borne by the student or the student's parents.

The opportunity provided to home schooled students under this policy is in addition to the opportunity provided in Policy 4.56.2—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME SCHOOLED STUDENTS.

4.60—STUDENT BEHAVIORAL INTERVENTION AND RESTRAINT

Definitions

"Aversive behavioral intervention" means a physical or sensory intervention program that is intended to modify behavior through the use of a substance or stimulus that the intervention implementer knows will cause physical trauma, emotional trauma, or both, to a student, even when the substance or stimulus appears to be pleasant or neutral to others.

Examples of aversive behavioral interventions include, but are not limited to:

· Hitting;

- Pinching;
- Slapping;
- Using a water spray;
- Using noxious fumes;
- Requiring extreme physical exercise;
- Using loud auditory stimulus;
- Withholding meals; and
- Denying reasonable access to toileting facilities.

"Behavioral intervention" means the implementation of a service, support, or strategy to teach and increase appropriate behavior or substantially decrease or eliminate behavior that is dangerous, inappropriate, or otherwise impedes the learning of a student.

"Behavior Intervention Plan" (BIP) means a written plan that:

- Is developed by a problem-solving and intervention team and delineates emotional, social, or behavioral goals for a student and the steps that the school, student, parent of the student, and others will take to positively support the progress of the student towards the student's emotional, social, or behavioral goals;
- Is comprised of practical and specific strategies to increase or reduce a defined behavior or one (1) or more patterns of behavior exhibited by a student; and
- Includes the following at a minimum:

    - A definition or description of the desired target behavior or outcome in specific measurable terms;
    - A plan for preventing and eliminating inappropriate student behavior by changing a condition that is triggering, motivating, underlying, or supporting that behavior as determined through a FBA;
    - A plan for teaching a student to demonstrate appropriate social, emotional, or behavioral self-management, or a new method to address or meet the student's needs;
    - A description of how a specific incentive or consequence will be used as needed to decrease or eliminate inappropriate student behavior and increase appropriate behavior;
    - A plan for managing a crisis situation;
    - A system to collect, analyze, and evaluate data about the student;
    - The school personnel, resources, and training needed before implementation of the BIP; and
    - The timeline for implementing different facets of an intervention, including without limitation when the intervention will be formally reviewed.

"Chemical restraint" means the use of a drug or medication to control the behavior of a student or restrict the free movement of the student; however, chemical restraint does not include the use of medication that is prescribed by a licensed physician, or other qualified health professional acting within the scope of the individual's professional authority under state law, for the standard treatment of a medical or psychiatric condition of a student and is administered as prescribed by the licensed physician or other qualified health

professional acting within the scope of the individual's professional authority under state law.

"Crisis" means a situation in which a student engages in a behavior that threatens the health and safety of the student or others and includes without limitation a situation in which the student becomes aggressive or violent at school and is unable to regain self-control without posing a danger of injury to himself or herself or others.

"Crisis intervention" means the implementation of a service, support, or strategy to immediately stabilize a crisis and prevent the crisis from reoccurring after the crisis ends.

"Dangerous behavior" means the behavior of a student that presents an imminent danger of serious physical harm to the student or others; however, dangerous behavior does not include the following:

- Disrespect;
- Noncompliance;
- Insubordination; or
- Destruction of property that does not create an imminent danger

"De-escalation" means the use of a behavior management technique that helps a student increase the student's control over the student's emotions and behavior and results in a reduction of a present or potential level of danger that in turn reduces the level of imminent danger of serious physical harm to the student or others.

"Emergency" means a serious and unexpected situation that requires immediate action and which may be dangerous.

"Functional Behavior Assessment" (FBA) means a problem analysis step that:

- Occurs within the context of data-based problem-solving and involves:
  - The review of existing records and other sources of information;
  - Diagnostic or historical interviews;
  - Structured academic or behavioral observations; and
  - Authentic, criterion-referenced, or norm-referenced tests; and

Is performed with the goal of determining why a specific problem or situation is occurring in order to directly link a strategic intervention to an assessment and solve or resolve the specific problem or situation.

"Imminent danger" means an existing dangerous situation that could reasonably be expected to immediately cause death or serious physical harm.

"Mechanical restraint" means the use of a device or equipment to restrict the free movement of a student; however, mechanical restraint does not include a device that is used by trained school personnel or a student for a specific and approved therapeutic purpose or safety purpose for which the device was designed or prescribed or a vehicle safety restraint that is appropriately used in the manner for which it was designed during the transport of a student in a moving vehicle.

"Physical escort" means a temporary touching or holding of the hand, wrist, arm, shoulder, or back of a student for the purpose of redirecting or inducing the student to move to a safe location.

"Physical restraint" means a personal restriction that immobilizes or reduces the ability of a student to move the student's torso, arm, leg, or head freely; however, physical restraint does not include a physical escort.

"Positive behavioral support" means the application of behavior analysis that:

- Is used to achieve socially important behavior change;
- Occurs at the:
    - Prevention level for all students in a school;
    - Strategic intervention level for a student who is not responding, from a social-emotional and behavioral perspective, to the prevention level; and
    - Intensive service or crisis-management level for a student who needs multifaceted or comprehensive behavioral or mental health services; and
- Involves a planned and collaborative school-wide approach that is implemented with a goal:
    - Of establishing a positive and supportive school environment that:
        - Teaches and reinforces prosocial behavior in a student;
        - Holds a student positively accountable for meeting an established behavioral expectation; and
        - Maintains a level of consistency throughout the implementation process; and
    - That is accomplished by using positive behavioral programs, strategies, or approaches.

"Prone restraint" means restraining a student in a face-down position on the floor or another surface and applying physical pressure to the body of the student to keep the student in the prone position.

"Serious physical harm" means bodily injury that involves a substantial risk of death, extreme physical pain, protracted and obvious disfigurement, or protracted loss or impairment of the function of a bodily member, organ, or mental faculty.

"Supine restraint" means the restraint of a student in a face-up position on the student's back on the floor or another surface and with physical pressure applied to the body of the student to keep the student in the supine position.

Positive Behavioral Supports

The District shall implement positive behavioral supports to be used at the:

1. Prevention level for each student in a school;
2. Strategic intervention level for a student who is not responding, from a social, emotional, or behavioral perspective, to the prevention level; and
3. Intensive service or crisis-management level for a student who needs multifaceted or

comprehensive behavioral or mental health services.

The District's positive behavioral support shall include:

a. The teaching and reinforcing of interpersonal, social, problem solving, conflict resolution, and coping skills to a student;
b. Holding a student positively accountable for meeting an established behavioral expectation;
c. Maintaining a high level of consistency through the implementation of the positive behavioral support process; and
d. The following interrelated activities:
    i. Providing a school-wide approach to the discipline and safety of each student rather than an approach to only the behavior problem of a single student;
    ii. Focusing on preventing the development and occurrence of problem behavior;
    iii. Regularly reviewing behavior data to adapt the District's procedures to meet the needs of every student; and
    iv. Providing a multi tiered approach to academic and behavioral services and support to meet the academic and behavioral achievement needs of each student.

The following principles shall form the basis of the District's positive behavioral support system and conflict resolution or de-escalation approach:

1. A student has the right to be treated with dignity;
2. A student should receive necessary academic, social, emotional, and behavioral support that is provided in a safe and least-restrictive environment possible;
3. Positive and appropriate academic, social, emotional, or behavioral intervention, as well as mental health support, should be provided routinely to each student who needs the intervention or support;
4. Behavioral intervention should emphasize prevention as part of the District's system of positive behavioral support; and
5. Each student who exhibits an ongoing behavior that interferes with the student's learning or the learning of others, and who is nonresponsive to effectively implemented classroom or administrative intervention, should receive additional intensive behavioral intervention that is based on a FBA and data-based problem solving.

Problem Solving and Intervention Team

A problem-solving and intervention team shall be established for each student who exhibits social, emotional, or behavioral difficulty that may escalate, if not addressed, to potentially dangerous behavior. The problem-solving and intervention team shall include at least one (1) member who is an academic and behavioral assessment and intervention professional.

A student's problem-solving and intervention team shall:

a. Work with the teachers of a student to complete a FBA of the student and an assessment of any

problematic situations involving the student;

b. Consider the need for a BIP with the goal of preventing or resolving the social, emotional, or behavioral difficulty of the student and developing a response that will de-escalate and stabilize a potential emergency situation that approaches the danger level; and
c. Regularly review the data on incidents involving the use of physical restraint on the student and adjust, as necessary, the procedures concerning the use of physical restraint on the student.

Special education procedures shall be followed if a student is suspected of having a disability that relates to behavioral concerns.

Physical Restraint

Except in the case of a clearly unavoidable emergency situation in which a trained member of school personnel is not immediately available due to the unforeseeable nature of the emergency situation, the physical restraint of a student shall only be used by a member of school personnel who is appropriately trained to administer physical restraint.

When using physical restraint on a student, school personnel shall:

- use the least restrictive technique necessary to end imminent danger or serious physical harm to a student and others;
- Use the safest method available and appropriate to the situation;
- Consider the health and safety of a student, including without limitation whether the student has an existing medical condition that makes the use of physical restraint inadvisable;
- Not restrict the ability of a student to communicate unless the use of a less restrictive technique will not prevent imminent danger of serious physical harm to the student or others;
- Use only the amount of force that is reasonably necessary to protect a student or others from imminent danger of serious physical harm to the student or others;
- Not verbally abuse, ridicule, humiliate, taunt, or engage in any other similar action towards the student; and
- continuously and visually observe and monitor the student while the student is under physical restraint.

Physical restraint of a student shall only be used for a limited period of time and shall not be used:

- When imminent danger or serious physical harm to the student or others dissipates;
- If a medical condition occurs that puts the student at risk of harm;
- Unless the behavior of the student poses an imminent danger of serious physical harm to the student or others;
- After the threat of imminent danger of serious physical harm to the student or others dissipates; or
- In the following manner:
- To punish or discipline the student;
- To coerce the student;

- To force the student to comply;
- To retaliate against the student;
- To replace the use of an appropriate educational or behavioral support;
- As a routine safety measure;
- As a planned behavioral intervention in response to behavior of the student that does not pose an imminent danger of serious physical harm to the student or others;
- As a convenience for school personnel; or
- To prevent property damage unless the act of damaging property committed by the student poses an imminent danger or serious physical harm to the student and others.

Even in an emergency, supine restraint shall not be used on a student except by a staff person who has been certified by a crisis intervention training program and the certified staff person determines that supine restraint is required to provide safety for the student and clothes.

At no time shall school personnel use the following on a student:

- Mechanical restraint;
- Chemical restraint;
- Aversive behavioral interventions that compromise health and safety;
- Physical restraint that is life-threatening or medically contraindicated; or
- Prone restraint or other restraint that restricts the breathing of a student.

Following the first incident of physical restraint used on a student, an FBA shall be conducted unless a previous FBA was conducted for the same behavior that was at issue when the physical restraint was used.

The use of physical restraint on a student as a planned behavioral intervention shall not be included in a student's IEP, 504 Plan, BIP, individual safety plan, or other individual planning document but may be considered as a crisis intervention if appropriate for the student. A student's IEP team or 504 Plan team shall consider whether an FBA should be performed; if a BIP should be developed for the student or if a student's existing BIP should be revised; and if additional behavioral goals and interventions should be included in the student's existing IEP or 504 Plan.

Parents may submit complaints regarding an incident involving the use of physical restraint on their student. A complaint shall be referred for review to the appropriate school personnel:

- The student's problem-solving and intervention team;
- The student's IEP team; or
- The student's 504 Plan team.

A complaint by a parent shall be handled by the appropriate District staff in the same manner as a debrief following the use of physical restraint on a student.[1]

Use of a physical restraint technique that is abusive shall be reported to the Child Abuse Hotline and law enforcement.

Reports and Debriefing

After the occurrence of an incident involving physical restraint of a student, the building principal, or the principal's designee, shall be notified of the incident as soon as possible but by no later than the end of the school day when the incident occurred.

The student's parent shall be notified of the incident of the use of physical restraint via verbal or electronic communication as soon as possible but by no later than the end of the school day when the incident occurred. In the event the student's parent is unable to be notified via verbal or electronic communication within twenty-four (24) hours after the incident occurred, then the parent shall be mailed written notification of the incident within forty-eight (48) hours after the incident occurred.

School personnel involved in the incident shall document the incident in a written report, which is to be completed within twenty-four (24) hours after the incident occurred. The written report of the incident shall:

1. Include all information contained in the Division of Elementary and Secondary Education (DESE) Physical Restraint or Seclusion Incident Record and Debriefing Report;
2. Be maintained in the student's education record; and
3. Be provided to the student's parent within one (1) school day of the completion of the report.

A debriefing meeting shall be held within two (2) school days after the incident occurred. The following school personnel shall be present at the debriefing meeting:[2]

a. A member of school personnel who was present during the incident;
b. A member of school personnel who was in the proximity of the student on whom physical restraint was used immediately before and during the time of the incident;
c. A school administrator; and
d. Any other member of school personnel determined to be appropriate by the District.

The purpose of the debriefing meeting shall be to:

- Determine whether the procedures used during the incident were necessary;
- Evaluate the use of any behavioral supports and de-escalation techniques by school personnel before and during the incident;
- Evaluate the school district's positive behavioral supports system and prevention techniques in order to minimize future use of physical restraint; and
- If a trained member of school personnel was not immediately available due to the unforeseeable nature of the emergency situation when the incident occurred:
    - Reevaluate the training needs of school personnel;
    - Reevaluate the physical restraint policy and practices; and
    - Develop a plan to prevent a future incident.

At a debriefing meeting, school personnel shall:

1. Consider relevant information in the student's education record, including without limitation:

    a. The concerns of the student's parent;
    b. The student's social and medical history;
    c. The student's FBA, if one exists; and
    d. The student's BIP, if one exists;
    2. Consider relevant information from the teachers, parents, and other District professionals;
    3. Discuss whether positive behavior supports were appropriately implemented;
    4. Discuss the duration and frequency of the use of physical restraint on the student;
    5. Discuss appropriate action that may be taken to prevent and reduce the need for physical restraint;
    6. Consider whether additional intervention and support is necessary for the student;
    7. Consider whether additional intervention and support is necessary for school personnel; and
    8. Consider how and when to debrief a person who was not present at the debriefing meeting, including without limitation:
        a. The student;
        b. The student's parent; and
        c. Other school personnel or students who witnessed the incident.

DESE's Physical Restraint or Seclusion Incident Record and Debriefing Report, or an alternative report that includes the same information, shall be completed during the debriefing meeting. A copy of the report shall be:

- Submitted to the building principal;[3]
- Mailed to the student's parent within two (2) days of the date on which the debriefing meeting was held; and
- Maintained as part of the student's education record along with other documents consulted during the debriefing meeting.

Notes: A copy of the DESE Guidance on the Use of Restraint along with the Physical Restraint or Seclusion Incident Record and Debriefing Report can be found at: https://dese.ade.arkansas.gov/Offices/special-education/policy-regulations/guidance-and-resources.

[1] There is nothing in the statute that requires the complaint to be handled in the same manner as a debriefing. This is intended only as a default method as you are required to have procedures governing the handling of a parental complaint. After consultation with appropriate staff, replace this language with

your local procedures on how a complaint will be handled.

[2] While you can, and should, add additional staff members to the list of those required to attend a debriefing meeting, A.C.A. § 6-18-2307 requires these individuals be included at a minimum.

[3] A.C.A. § 6-18-2307 requires that the debriefing report be submitted to a designated district administrator. If you would rather have all debriefing reports provided to one single individual at the district staff level instead of keeping them at the school level, replace this with the district level position to whom debriefing reports should be submitted.

4.61—STUDENT USE OF MULTIPLE OCCUPANCY ROOM

Definitions

"Multiple occupancy room" means an area in a District building that is designed or designated to be used by one (1) or more individuals at the same time and in which one (1) or more individuals may be in various stages of undress in the presence of other individuals, which includes, without limitation, a restroom, locker room, changing room, or shower room.

“Sex" means the physical condition of being male or female based on genetics and physiology, which may be demonstrated by the sex identified on a student’s original birth certificate.

Each multiple occupancy room in a District building shall be designated as either male or female. Except as permitted by this policy, a student shall not enter a multiple occupancy room that does not correspond to the student’s sex.

An individual who is unwilling or unable to use a multiple occupancy room designated for the individual's sex shall be granted a reasonable accommodation, which may include, without limitation, access to a single-occupancy restroom or changing area. A reasonable accommodation shall not include access to a restroom or changing area that is designated for use by members of the opposite sex to an individual while members of the opposite sex of the individual are present or may be present in the restroom or changing area.

The prohibitions in this policy do not apply to an individual who enters a multiple occupancy room designated for use by the opposite sex when the individual enters for any of the following reasons:

- custodial, maintenance, or inspection purposes;
- To render emergency medical assistance;
- To address an ongoing emergency, including without limitation a physical altercation;
- To accommodate individuals protected under the Americans with Disabilities Act; or
- To assist young children who are in need of physical assistance when using a restroom or changing facility that is located in the District.

4.62—STUDENT NAME, TITLE, OR PRONOUN

Unless a District employee has the written permission of the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student or the student if the student is an emancipated minor or over eighteen (18) years of age, a District employee shall not address a student with a:

1. Name other than that listed on the student's birth certificate, except for a derivative of the name; or
2. Pronoun or title that is inconsistent with the student's biological sex.

A student shall not be subject to discipline for declining to address a person using a:

a. Name other than that listed on the student's birth certificate, except for a derivative of the name; or

Pronoun or title that is inconsistent with the person's biological sex.

4.63—STUDENT RELIGIOUS EXPRESSION

The Kirby School District Board of Directors does not allow the discrimination against a student based on a student’s voluntary religious expression, if any. At the same time, the District shall provide a process to eliminate any actual or perceived sponsorship or attribution to the District of a student's public voluntary expression of a religious viewpoint, if any.

Student Assignments

Student assignments include, but are not limited to:

o Homework;

oClasswork;

oArtwork; and

oOther written or oral assignments.

A student may express the student’s religious viewpoint, if any, in the student’s assignments without discrimination based on the religious content, if any. A student's assignments shall:

1. Be graded and judged:
   - By ordinary academic standards of substance and relevance; and
   - Against other conventional, pedagogical topics as identified by the District curriculum; and
2. Not be penalized or rewarded based on the religious content, if any, of the student’s assignments.

Student Presenters

A student's expression of a religious viewpoint, if any, on an otherwise permissible subject shall not be excluded from a forum, whether oral or in writing, where students are allowed to speak.

The District has the right to restrict student speech that is inappropriate in the school setting by being obscene, vulgar, offensively lewd, or indecent.

Review of written student forums shall be handled in accordance with Policy 4.14—STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE.

If the forum is a scheduled event with designated student speakers, the building principal shall have an opportunity to review pre-written remarks prior to the student’s presentation at the scheduled forum. The principal may require the student to amend the student’s remarks to the extent necessary to address any portions that are determined to be inappropriate. A student’s refusal to amend the remarks that were

determined to be inappropriate may be prohibited from participation in the forum. A student who diverts from the approved pre-written remarks during a speech in such a manner that is determined to be inappropriate by the building principal or another present District staff member may be asked to return to the approved remarks. If a student refuses to return to the approved remarks or continues to divert from the approved remarks in a manner that is determined to be inappropriate may be escorted from the forum and disciplined in accordance with the District's Student Code of Conduct.

If the timing or format of the forum does not provide for pre-written remarks to be reviewed, then the building principal or other District staff shall have the authority to address a student whose remarks are determined to be inappropriate. The building principal or District staff member shall initially ask the student to cease the inappropriate remarks. If the student refuses or makes additional inappropriate remarks after being directed to cease such remarks, Then the building principal or District staff member may escort the student from the forum and the student may be disciplined in accordance with the District's Student Code of Conduct

There shall be a disclaimer that a student speaker's speech does not reflect the endorsement, sponsorship, position, or expression of the District. The disclaimer shall be provided at all forums where students speak and at all graduation ceremonies. The disclaimer shall be provided orally or in writing as most appropriately fits the format of the forum.

Information on how to participate in a student forum shall be provided to all students.1

In addition to the salutatorian and valedictorian selection process in Policy 5.17—HONOR ROLL AND HONOR GRADUATES, the following students may speak during the District's graduation ceremony:2

5.11—DIGITAL LEARNING COURSES Definitions For the purposes of this policy

"Blended Learning" is education in which instruction and content are delivered through supervised instruction in a classroom and online delivery of instruction with some element of student control over time, place, path, or pace.

"Digital Learning" means a digital technology or internet-based educational delivery model that does not rely exclusively on compressed interactive video (CIV). Digital learning includes online and blended learning.

"Instructional Materials" means:

1. Traditional books, textbooks, and trade books in printed and bound form; 2. Activity-oriented programs that may include:

a. Manipulatives; b. Hand-held calculators; c. Other hands-on materials; and 3. Technology-based materials that require the use of electronic equipment in order to be used in the learning process. "Online Learning" is education in which instruction and content are delivered primarily over the Internet. The term does not include print-based correspondence education, broadcast television or radio, videocassettes, compact disks and stand-alone educational software programs that do not have a significant Internet-based

instructional component.

"Public School Student Accessing Courses at a Distance" means a student who is scheduled for a full course load through the District and attends all classes virtually.

Digital Course Offerings

The District shall offer one or more digital learning course(s) through one or more District approved provider(s) as either a primary or supplementary method of instruction. The courses may be in a blended learning, online-based, or other technology-based format and shall be tailored to meet the needs of each student.

All digitally-offered courses shall meet or exceed the State Board of Education's curriculum standards and requirements and be capable of being assessed and measured through standardized or local assessments. Additionally, the District shall ensure there is sufficient infrastructure to handle and facilitate a quality digital learning environment.

As an approved digital learning provider, the District shall annually determine what District created digital learning courses it will provide to our students. The District may also choose to provide digital learning courses by contracting with outside providers of such courses, who have been pre-approved by the Arkansas Department of Education (ADE). The School Board shall determine the provider method or combination of methods for the District. The Superintendent shall ensure that all digital learning courses provided to District students, regardless of the source of the course, have been approved by ADE.

District created digital courses and any digital courses the district purchases from outside providers shall adhere to the guidelines for the use of digitally transmitted copyrighted materials set forth in Policy 5.8-USE OF COPYRIGHTED MATERIALS as well as applicable statutory requirements.

The District shall require all outside providers to incorporate Policy 5.8 as a condition of the service contract. Failure of the outside provider to abide by Policy 5.8 shall constitute a breach of contract and the outside provider shall be responsible for any costs resulting from such breach.

A student may elect to take any or all of his/her scheduled courses digitally. The student's attendance in his/her digital course(s) shall be determined by the online attendance and time the student is working on the course rather than the student's physical presence at school.

Regardless of any other provisions of this policy, the District may restrict a student's access to digital courses when the student's school principal determines the student's participation in such a course would not be academically-appropriate based on the student's past performance in digital courses. Furthermore, the student's school principal may revoke a student's eligibility to continue taking a digital learning course if the student's performance during the semester indicates the student is not succeeding in the course.

5.26—ALTERNATIVE LEARNING ENVIRONMENTS

The District shall provide an eligible alternative learning environment (ALE) for each eligible ALE student enrolled in a District school. The ALE shall be part of an intervention program designed to provide guidance, counseling, and academic support to students who are experiencing emotional, social,

or academic problems. Placement of a student in an ALE shall not be punitive in nature.

The superintendent or designee shall appoint an Alternative Education Placement Team which shall have the responsibility of determining student placement in the ALE. A student may be enrolled in an ALE only on the referral of the Alternative Education Placement Team. The team's placement decision is final and may not be appealed.

The team is to be comprised of the following:

• a school counselor from the referring school;

• the ALE administrator and/or ALE teacher;

• the building principal or assistant principal from the referring school;

• a parent or legal guardian (if they choose to participate);

o The District shall document its efforts to contact the student's parent or guardian to schedule a meeting or a phone call for a placement meeting at the parent or guardian’s convenience, and maintain such documentation in the student’s Student Action Plan (SAP).

• LEA special education/504 representative (if applicable);

• at least one (1) of the student's regular classroom teacher(s); and

• if the District so chooses, the student. Students who are placed in the ALE shall exhibit at least two of the following characteristics:

• Disruptive behavior;

• Dropping out from school;

• Personal or family problems or situations;

• Recurring absenteeism; For the purposes of the ALE, personal or family problems or situations are conditions that negatively affect the student’s academic and social progress. These may include, but are not limited to:

• Ongoing, persistent lack of attaining proficiency levels in literacy and mathematics

• Abuse: physical, mental, or sexual;

• Frequent relocation of residency;

• Homelessness;

• Inadequate emotional support;

• Mental/physical health problems;

• Pregnancy; or

• Single parenting.

No later than five (5) school days after a student begins alternative education interventions, the Alternative Education Placement Team shall develop a signed agreement between the ALE, the parent or legal guardian (if they choose to participate), and the student, outlining the responsibility of the ALE,

parent or legal guardian, and the student to provide assurance that the plan for each student is successful.

No later than one (1) week after a student begins alternative education interventions, the Alternative Education Placement Team shall assess the student's current functioning abilities and all relevant social, emotional, academic, career, and behavioral information and develop an SAP outlining the intervention services to be provided to the student that is in compliance with the Arkansas Department of Education (ADE) Rules. The SAP may be revised from time to time by the ALE placement team and a positive behavior or transitional plan shall be developed and added to the SAP prior to a student's return to the regular educational environment.

The district's ALE program shall follow class size, staffing, curriculum, and expenditure requirements identified in the ADE Rules.

5.27—ENGLISH LANGUAGE LEARNERS

The district shall utilize the special needs funding it receives for identified English Language Learners on activities, and materials listed in the ADE Rules Governing the Distribution of Student Special Needs Funding and the Determination of Allowable Expenditure of These Funds.

The expenditures of ELL supplemental funding shall be evaluated at least annually to determine their overall effectiveness. The evaluation shall specifically address how the use of ELL funds is in alignment with the district's ACSIP in addressing identified achievement gaps and student performance deficiencies.

6.7—COMPLAINTS Parental Grievance Policy

It is a goal of the Board and the District to be responsive to the community it serves and to continuously improve the educational program offered in its schools. The Board or the District welcomes constructive criticism when it is offered with the intent of improving the quality of the system's educational program to the delivery of the District's services.

The Board formulated and adopts policies to achieve the District's vision and elects a Superintendent to implement its policies. The administrative functions of the District are delegated to the Superintendent who is responsible for the effective administration and supervision of the District. Individuals with complaints concerning personnel, curriculum, discipline, coaching, or the day to day management of the schools need to address those complaints according to the following sequence:

1. Teacher, coach, or other staff member against whom the complaint is directed;

2. Principal;

3. Superintendent;

Other than in the few instances where statutorily allowed or required, student discipline and personnel matters may not be discussed in board meetings. Individuals with complaints regarding such matters need to follow the sequence outlined above.

Unless authorized by the board as a whole for a specific purpose, no individual Board member

has any authority when acting alone. District constituents are reminded that the Board serves as jury in matters regarding student suspensions initiated by the Superintendent, expulsions, and personnel discipline.

Other Policies and Procedures

Equity Statement

Students shall have the right maintain student organizations and are not restricted from membership on the basis of race, sex, national origin, or other arbitrary criteria. School fraternities and secret societies are banned.

Districtwide Parental Involvement

The Kirby School District understands the importance of involving parents and the community as a whole in promoting higher student achievement and general good will between the school and those it serves. Therefore, the school shall strive to develop and maintain the capacity for meaningful and productive parental and community involvement that will result in partnerships that are mutually beneficial to the school, students, parents, and the community. To achieve such ends, the school shall work to

1. Involve parents and the community in the development of the long range planning of the school;

2. Explain to parents and the community the State's content and achievement standards, State and local student assessments and how the school's curriculum is aligned with the assessments and how parents can work with the school to improve their child's academic achievement;

3. Provide parents with the materials and training they need to be better able to help their child achieve. The school may use parent resource centers or other community based organizations to foster parental involvement and provide literacy and technology training to parents.

4. Educate school staff, with the assistance of parents, in ways to work and communicate with parents and to know how to implement parent involvement programs that will promote positive

5. Keep parents informed about parental involvement programs, meetings, and other activities they could be involved in. Such communication shall be, to the extent practicable, in a language the parents can understand;

6. Find ways to eliminate barriers that work to keep parents from being involved in their child's education. This may include providing transportation and childcare to enable parents to participate, arranging meetings at a variety of times, and being creative with parent/teacher conferences;

7. Find and modify other successful parent and community involvement programs to suit the needs of our school;

8. Provide reasonable support for other parental involvement activities as parents may reasonably request. To help promote an understanding of each party's role in improving student learning, the District shall

develop a compact that outlines the responsibilities of parents students, and the school staff in raising student academic achievement and in building the partnerships that will enable students to meet the State's academic standards. The District shall convene an annual meeting, or several meetings at varying times if necessary, to adequately reach parents of participating students, to inform parents of the school's participation in Title I, its requirements regarding parental involvement, and the parents' right to be involved in the education of their child.

The District shall, at least annually, involve parents in reviewing the school's Title I Program and Parental Involvement Policy in order to help ensure their continued improvement. This policy shall be part of the school's Title I plan and shall be distributed to parents of the district's students and provided, to the extent practicable, in a language the parents can understand.

The "compact" is also required to be developed jointly with parents of the children served under Title I and distributed to parents annually.

Plan de accion de la inclusion de padres del districto de la escuela de Kirby

El districto de la escuela de Kirby entiende la importancia de incluir a los padres y a la comunidad entera en promover un nivel mas alto de aprendizaje para el estudiante y tambien buena voluntad entre el districto escolar y a los que sirve. Por lo tanto, el districto tratara de desarrolar y mantener la capacidad de tener participacion productiva y significante de los padres y de la comunidad que resultaran en una relacion que sera de beneficio a los estudiantes, los padres, la escuela y la comunidad. Para lograr esto el districto trabajara para:

1. Incluir a los padres y a la comunidad en el desarrollo de planes futuros del districto. 2. Dar a escuelas en el districto el apoyo necesario para permitirles planear e implementaractividades en

que habra participacion de los padres. 3. Tener un programa coordinado de la participacion donde las actividades del districto mejoran las

estrategias de participacion de otros programas tales como Head Start, HIPPY, Parents as Partners, Parents as Teachers, ABC, ABC for School Success, programas de pre-kinder, y Even Start 4. Explicar a los padres y a la comunidad el contenido y los estandares de exito del estado, los examenes

estudantiles locales y del estado y como el plan de estudios del districto se alinea con los examenes y como los padres puedan trabajar con el districto para mejorar el alcance academico de su nino ; 5. Proveer a los padres los materiales y el entrenamiento que necesitan para poder mejor ayudar a su nino a

tener exito. El districto puede utilizar centros de recurso para padres u otras organizaciones en la comunidad para fomentar la participacion de los padres y para proveer entrenamiento para los padres en tecnologia, lectura y escritura. 6. Educar a los empleados del districto, con la ayuda de los padres, en las maneras de trabajar y

comunicarse con los padres y como saber implementar los programas de participacion de padres que promoveran relaciones positivas entre la escuela y los padres; 7. Mantener a padres informados sobre programas, reuniones, y otras actividades en las cuales pueden

participar. Tal comunicado sera escrita cuando es posible en una idioma que los padres puedan entender; 8. Encontrar maneras de eliminar las barreras que prohiben la participacion de los padres en la educacion

de su nino. Esto puede incluir el transporte y el cuidado de los ninos para permitir participacion de los padres, arreglando reuniones en horas variadas, y siendo creativos con conferencias del padre y el profesor; 9. Encontrar y modificar otros programas acertados de participacion de padres o de la comunidad para

satisfacer las necesidades de nuestro districto; 10. Entrenar a los padres a realizar y promover la participacion de otros padres; Proporcionar el apoyo adecuado para otras actividades parentales que los padres pidan. Para asegurarnos de la continuada mejorada del programa de participacion parental, el districto conducira una revision anual de su plan de accion de participacion parental para examinar su efecto en el exito del estudiante. La revision sera hecha por un comite que consiste de empleados certificados y clasificados, los padres y otros miembros de la Comunidad, y los miembros de la administracion. Este plan sera parte del plan del Titulo I de la escuela y sera distribuida a los padres de los estudiantes del districto y con tal que puedan, en una lengua que los padres puedan entender

PART I. GENERAL EXPECTATIONS

The Kirby School District agrees to implement the following statutory requirements:

• The school district will put into operation programs and activities and procedures for the involvement of parents in all of its schools with Title I, Part A programs, consistent with section 1118 of the Elementary and Secondary Education Act (ESEA). Those programs, activities and procedures will be planned and operated with meaningful consultation with parents of participating children.

• Consistent with section 1118, the school district will work with its schools to ensure that the required school-level parental involvement policies meet the requirements of section 1118(b) of the ESEA, and each include, as a component, a school-parent compact consist with section 1118(d) of the ESEA.

• The school district will incorporate this district wide parental involvement policy into its LEA plan developed under section 1112 of the ESEA.

• In carrying out the Title I, Part A parental involvement requirements, to the extent practicable, the school district and its schools will provide full opportunities for the participation of parents with limited English proficiency, parents with disabilities, and parents of migratory children, including providing information and school reports required under section 1111 of the ESEA in an understandable and uniform format and, including alternative formats upon request, and, to the extent practicable, in language parents understand.

• If the LEA plan for Title I, Part A, developed under section 1112 of the ESEA, is not satisfactory to the parents of participating of participating children, the school district will submit any parent comments with the plan when the school district submits the plan to the State Department of Education

• The school district will involve the parents of children served in Title I, Part A schools in decisions about how the 1 percent of Title 1, Part A funds reserved for parental involvement is spent, and will ensure that not less than 95 percent of the one percent reserved goes directly to the schools.

• The school district will be governed by the following statutory definition of parental involvement, and expects that its Title I schools will carry out programs, activities and procedures in accordance with this definition: Parental involvement means the participation of parents in regular, two-way, and meaningful communication involving student academic learning and other school activities, including ensuring:

• that parents play an integral role in assisting their child's learning;

• that parents are encouraged to be actively involved in their child's education at school;

• that parents are full partners in their child's education and are included, as appropriate, in decision making and on advisory committees to assist in the education of their child;

• the carrying out of other activities, such as those described in section 1118 of the ESEA.

PART II. DESCRIPTION OF HOW DISTRICT WILL IMPLEMENT REQUIRED DISTRICT WIDE PARENTAL INVOLVEMENT POLICY COMPONENTS

1. The Kirby School District will take the following actions to involve parents in the joint development of its district wide parental involvement plan under section 1112 of the ESEA: Parents serving as the building level parent involvement person will be invited to review and revise the district Parental Involvement Plan.

2. The Kirby School District will take the following actions to involve parents in the process of school review and improvement under section 1116 of the ESEA: The district will hold a yearly public meeting and building open house to share district information regarding AYP, district accreditation, and school improvement information. This information is also made available on the district website.

3. The Kirby School District will provide the following necessary coordination, technical assistance, and other support to assist Title I, Part A schools in planning and implementing effective parental involvement activities to improve student's academic achievement and school performance:

• Informational Packets

• Parent Involvement Meetings

• Parent Survey

• School's Process for Resolving Parental Concerns

4. The Kirby School District will coordinate and integrate parental involvement strategies in Part A

with parental involvement strategies under the following other programs: Head Start and ABC Programs, by:

• Providing transition activities

• Providing parent information packets

• Providing access to the Parent Information Center

5. The Kirby School District will take the following actions to conduct, with the involvement of parents, an annual evaluation of the content and effectiveness of this parental involvement policy in improving the quality of its Title I, Part A schools. The evaluation will include identifying barriers to greater participation by parents in parental involvement activities (with particular attention to parents who are economically disadvantaged, are disabled, have limited English proficiency, have limited literacy or are of any racial or ethnic minority background). The school district will use the findings of the evaluation about its parental involvement policy and activities to design strategies for more effective parental involvement, and to revise, if necessary (and with the involvement of parents) its parental involvement policies. The evaluation of the parental involvement policy will be included in the Parent Survey. The Parent

Involvement Facilitator along with building level parent involvement representatives and building level parent representatives will review data and make needed corrections.

6. The Kirby School District will build the school's and parents' capacities for strong parental involvement, in order to ensure effective involvement of parents and to support a partnership among the school involved, parents, and the community to improve student academic achievement, through the following activities specifically described below:

a. The school district will, with the assistance of Title I, Part A schools, provide assistance to parents of children served by the district or school, as appropriate, in understanding topics such as the following, by undertaking the actions described in this paragraph—

• the State's academic content standards,

• the State's student academic achievement standards,

• the State and local academic assessments including alternate assessments,

• the requirements of Part A

• how to monitor their child's progress, and

• how to work with educators:

b. The school district will provide materials and training to help parents work with their children to improve their children's academic achievement, such as literacy training, and using technology, as appropriate, to foster parental involvement, by making available to parents:

• Parent Information Packets

• Parent Involvement Website

• Parent Literacy Nights

• Parent Technology Training c. The school district will educate its teachers, pupil services personnel, principals, and other staff, in how to reach out to, communicate with, and work with parents as equal partners, in the value and utility of contributions of parents, and in how to implement and coordinate parent programs and build ties between parents and schools, by:

• Teachers will complete at least two hours of professional development on understanding effective parent involvement strategies.

• Administrators will complete at least three hours professional development that include understanding effective parent involvement strategies and the importance of administrative leadership in setting expectations and creating a climate conducive to parental participation. d. The school district will, to the extent feasible and appropriate, coordinate and integrate parental involvement programs and activities with Head Start, ABC Programs and other preschool programs that encourage and support parents in more fully participating in the education of their children, by:

• Providing transition activities

• Providing parent information packets

• Providing access to the Parent Information Center. The school district will take the following actions to

ensure that information related to the school and parent programs, meetings, and other activities, is sent to the parents of participating children in an understandable and uniform format, including alternative formats upon request, and, to the extent practical, in a language the parents can understand:

• Meeting information is included in the Superintendent's Bulletin, on the school website, notes home and is provided if needed in an alternate language.

Updated: 07/14/16

English for Speakers of Other Languages (ESOL) Program

1. Statement of Goals and Objectives

The goal of the Kirby School District's ESOL Program is to develop English language proficiency and Cognitive Academic Language Proficiency (CALP) in English language learners (ELLs) so that they can function independently in the mainstream classroom setting. To this end, program instruction is conducted in English. A standards-based curriculum is used for all English language learners.

2. Student and Parent Orientation Procedures

• At the time of registration, the students and their families are given an orientation to the district, the various programs offered, the resources available, and the personnel responsible.

• An initial language assessment is given to any student who responds with a language other than English on the Home Language Survey.

3. Identification and Placement: If the Home Language Survey indicates that the student's first language is a language other than English, or if a language other than English is spoken at home, the student is assessed with the Pre-LAS or LAS. The screening process for entry is based on a combination of the following:

• Intake assessment

• Home Language Survey

• Interview

• Pre-LAS or LAS assessment

• Prior school records

• Conferencing with regular classroom teachers

• Recommendations from reading specialists

• Observation of student's interaction with peers, teachers, and other school personnel

• The process for exiting a student is based on the following:

• ELPA 21 assessment scores

4. Exiting from the Program

• When the student attains English proficiency in the areas of oral communication, reading, and writing as determined by ELPA 21 scores, he/she will be exited from the program.

• After exiting from the program, the student's performance will be monitored for two years to determine if future assistance is needed.

5. Instructional Program: The District's program is an English for Speakers of Other Languages program wherein the medium of all instruction and subject matter is English, even though the native language may be used occasionally to clarify concepts. Planned instruction/standards include:

• ESOL is designed to enable ELLs to access mainstream curriculum and to achieve their personal best in the school setting as well as becoming responsible citizens in the local, national, and worldwide community. Language learning through meaningful context in an academic setting improves the education and language acquisition of the ELL. State ESOL Standards for English Language Proficiency provide the academic framework for instruction.

• Learners receive direct instruction using vocabulary, concrete based materials, background instruction, graphic organizers, practice, and other appropriate strategies. The ESOL program is flexible and based on the needs of the learners.

• Students may receive up to one hour a day/five hours a week of direct instruction in a pullout setting.

• Several computer programs are used to increase the student's proficiency in English acquisition, literacy and math, while allowing them to have individualized instruction and progress at their own pace. These programs include ELLIS, Star Reading, and Accelerated Math.

• Individualized instruction is also made available for grades 1-5 through Title I classes.

6. ELLs are encouraged to participate in any related school activities and extracurricular activities that interest them.

7. Pupil Personnel Services

• Guidance counselors are available in each school in the District.

• Special Education Services are available for students with demonstrated need. The district has a structured pre-referral process for Special Education identification.

8. Faculty/Staff Training and Development related to the Program

• ESOL staff members attend workshops related to the profession.

• All faculty is trained in the fall regarding the laws, statutes, and regulations regarding ELLs.

• All faculty who teach ELLs receive on-going instruction during the school year regarding appropriate instruction for ELLs.

9. Parent Involvement

• An Open House is held in the fall on each campus. An interpreter is available, as well as an ESOL staff member who can answer questions and concerns.

• Two Parent/Teacher Conferences are held each year. An interpreter and ESOL staff member is available to assist parents.

• School communication is sent to ESOL families in Spanish as well as English. 10. Complaint Resolution Process

• First, discuss the situation with the classroom teacher or staff member involved.

• Second, if the situation cannot be resolved at this level, discuss it with the building principal.

• Third, if the situation cannot be resolved at this level, discuss it with the Superintendent

Educational Trips

All students leaving the campus for an educational trip during school hours must have written permission from their parents and give the slip to the supervising teacher. These permission slips must be turned in to the supervising teacher at least one day prior to the trip so a master list can be created to make all teachers aware of the students that are to be gone. This master list must be made available to the teacher's one day prior to the trip. All trips of this manner must have prior approval of the principal and the superintendent.

Students will be held responsible for their conduct on all trips. Students will not be marked absent from school but will be required to do all make-up work in the allotted time. All school trips that require out of state travel must be presented to and approved by the school board.

Updated 07/14/16

Interscholastic Competition

No individual or group of students from the Kirby Schools may participate in any activity of this nature that has not been sanctioned by the Arkansas Activities Association.

Extracurricular Activities

Students who successfully complete grades 6-8 and are promoted to the next grade level will be eligible for extracurricular activities in grades 7-9. Beginning with the second semester of the 9th grade year, students must maintain a 2.0 GPA the previous semester to be eligible.

Updated 07/14/16

Student Organizations/Equal Access

Non-curricula-related secondary school student organizations wishing to conduct meetings on school premises during non-instructional time shall not be denied equal access on the basis of the religious, political, philosophical, or other content of the speech at such meetings. Such meetings must meet the following criteria.

1. The meeting is to be voluntary and student initiated;

2. There is no sponsorship of the meeting by the school, the government, or its agents or employees;

3. The meeting must occur during non-instructional time;

4. Employees or agents of the school are present at religious meetings only in a non-participatory capacity;

5. The meeting does not materially and substantially interfere with the orderly conduct of educational activities within the school; and

6. Non-school persons may not direct, conduct, control, or regularly attend activities of student groups. All meetings held on school premises must be scheduled and approved by the principal. The school, its

agents, and employees retain the authority to maintain order and discipline, to protect the well-being of students and faculty, and to assure that attendance of students at meetings is voluntary.

Fraternities, sororities, and secret societies are forbidden in the District's schools. Membership to student organizations shall not be by a vote of the organization's members, nor be restricted by the student's race, religion, sex, national origin, or other arbitrary criteria.

Legal References: A.C.A. § 6-21-201 et seq. 20 U.S.C. 4071 Equal Access Act Board of Education of the Westside

Community Schools v. Mergens, 496 U.S. 226 (1990) A.C.A. § 6-18-601 et seq.

Pregnancy

A pregnant student may attend school until her doctor feels that she should not.

Outside Demands on Students

Although cognizant of the values both social and scholastic, derived by students participating in various school/community-sponsored activities, the following points should be used by the principal in determining whether or not pupils may participate in such activities during school hours.

1. Participation in the project will deprive students of time needed in acquiring basic skills.

2. Regular schedule will not be interrupted unless the majority of students benefit through their participation.

3. Neither an individual nor the school as a whole shall be permitted to use school time in working on school/community-sponsored projects unless such an understanding is contributing to the educational program.

4. School trips will be scheduled, attempting to limit the number of classes missed.

Challenge to Instructional/Supplemental Materials (ASBA 5.6)

Instructional and supplemental materials are selected for their compatibility with the District's educational program and their ability to help fulfill the District's educational goals and objectives. Individuals wishing to challenge or express concerns about instructional or supplemental materials may do so by filling out a Challenge to Instructional Material form available in the school's office.

The contesting individual may present a copy of the form to the principal and request a conference be held at a time of mutual convenience. Prior to the conference, the principal shall consult with the teacher regarding the contested material. In the conference, the principal shall explain to the contesting individual the criteria used for the selection of the material and its relevancy to the educational program as well as any other pertinent information in support of the use of the material.

Following the conclusion of the meeting, the principal shall have five (5) working days to submit a summary of the concerns expressed by the individual and the principal's response to those concerns to the Superintendent.

If the contesting individual is not satisfied with the principal's response, the individual may, after the five (5) working day period, request a meeting with the Superintendent where the individual shall present the same Challenge to Instructional Material form previously presented to the principal. The Superintendent

shall explain to the contesting individual the criteria used for the selection of the material and its relevancy to the educational program as well as any other pertinent information in support of the use of the material.2

Following the conclusion of the meeting, the Superintendent shall have five (5) working days to write a summary of the concerns expressed by the individual and the Superintendent's response to those concerns. The Superintendent shall create a file of his/her response along with a copy of the principal's response and a copy of the contesting individual's Challenge to Instructional Material form.

If, after meeting with the Superintendent, the contesting individual is not satisfied with the Superintendent's response regarding the appropriateness of the instructional or supplemental material, he/she may appeal the Superintendent's decision to the Board. The Superintendent shall present the contesting individual's Challenge to Instructional Material form to the Board at the next regularly scheduled meeting along with the written responses to the challenge. The Board may elect, if it so chooses, to hear brief verbal presentations from the parties involved in the challenge.

The Board shall decide at that meeting or their next regularly scheduled meeting whether to retain the material, limit the availability of the material, or remove the material from the school. The Board's primary consideration in reaching its decision shall be the appropriateness of the material for its intended educational use. Updated 07/14/16

School Bus Transportation

Riding a school bus is a privilege which may be denied if a student fails to follow the established rules. Acts of misconduct on the bus may also lead to suspension from school. When students are suspended from riding the bus, parents become responsible for transporting their children to and from school.

Regular loading and unloading stations will not be changed except by the proper school authorities. Students will be expected to get to these stations if they wish to ride the school bus. Buses will load and unload only at the designated station.

Pupils are expected to conduct themselves properly on the buses and any student misbehaving could result in the pupil being removed from riding the bus. Any pupil causing damage to a bus will be required to pay for the damage. The driver of a bus has the same authority over bus passengers that a teacher has over pupils in the classroom. Drivers have the responsibility of conduct on their bus and should identify pupils who cause trouble to the pupil's building principal.

Pupils must ride the bus they are assigned to ride. Each driver will go over the rules of conduct on the bus with the pupils riding the bus. Some of our buses are equipped with video cameras. These cameras are to assist the driver in maintaining a safe, disciplined atmosphere on the school bus. The video tapes will be reviewed periodically, and appropriate disciplinary action will be taken for those students misbehaving or creating an unsafe atmosphere.

1. Bus rules and consequences

a. Students are to follow directions of the driver.

b. Students are to remain seated while the bus is in motion.

c. Students are to keep all parts of the body in the bus.

d. Students are not to push, shove, fight or throw objects at any time.

e. Students are not to eat, drink, smoke, spit, or use vulgar language or behaviors at any time.

f. Balloons will not be allowed on the school buses.

2. If a student chooses to break a rule

1st incident: Driver warns student and documents warning

2nd incident: Driver reports student to principal, parents are contacted

3rd incident: Five day suspension from bus transportation

4th incident: Ten day suspension from bus transportation

5th incident: Bus suspension for the rest of the semester or 30 days whichever is longer. The administration has the authority to adjust the bus discipline policy at any time deemed necessary without prior notification of parents, for the safety of the passengers on the school bus.

The following inappropriate behavior could result in suspension of transportation privileges on the first offense.

1. Physical harm to another student.

2. Physical harm or threat of physical harm to the driver.

3. Property damage.

4. Refusal to obey the driver.

5. Possession of alcohol, drugs, tobacco products, or weapons.

6. Total disruption.

Probationary Attendance Program

Students who are recommended for expulsion for violation of district policy may be eligible to appeal to the superintendent of schools for placement in the probationary attendance program in lieu of expulsion. This program is designed to allow eligible students the possibility of continuing their education under strict probation and with specific limitations if they meet policy criteria as well as any additional conditions specified by the superintendent.

A written request must be presented directly to the superintendent by the parent or guardian and/or the student. Parents making the request for this probationary status must contact the superintendent of schools and arrange for a meeting within ten school days prior to an expulsion hearing. Those in attendance at this meeting will include the superintendent, an administrator from the student‘s school or designee, a school counselor, the student, and their parent or guardian, and any other personnel deemed relevant to the situation by the superintendent. At the completion of the ten day suspension period, the superintendent may choose to allow the student to attend school on a probationary status for the remainder of the expulsion term or a period of time otherwise determined to be suitable by the superintendent (but not more than the recommended expulsion period) under the probationary attendance program. Unless excused by the Superintendent the student must attend the expulsion hearing in order to

be eligible for the Probationary Attendance Program.

Criteria for participation include:

1. Recommendation of the building principal or designee. The probationary student‘s presence cannot pose a perceived threat to the health, safety, or educational environment of the school.

2. The student cannot have previously been expelled from any public or private school.

3. Students who have been found to have sold, or in any way distributed or provided prohibited substances to others on school property, at school events, or while in transit to/from any school event are not eligible for the probationary attendance program.

4. The parent and student must agree for the student to enroll in and complete any counseling or rehabilitation program deemed appropriate by the superintendent. The parent, guardian, or child will bear the responsibility of paying for such services.

5. Probationary students may neither participate in nor attend any extracurricular activities during the probationary attendance period.

6. Students in the probationary attendance program may be prohibited from riding on school transportation (buses) during this period except as required by his/her IEP.

7. Students who are placed on probationary status will be assigned a modified schedule so that they may attend regular, state-mandated academic courses.

8. If a student and/or parent fail(s) to meet or violate(s) the agreed upon terms of the probationary attendance program, the student will be recommended to the board for expulsion for the remainder of the original expulsion period.

Elementary School (K-6) Policies and Procedures

EPSDT Screening for Kindergarten

All entering kindergarten students must have proof of the EPSDT screening or its equivalent (physical exam) within 30 days of school enrollment.

Arrival and Departure

School begins at **7:55 a.m.** at the elementary school. Any student who checks in after that time will be considered tardy. PARENTS MUST SIGN THEIR STUDENT IN AT THE OFFICE AND RECEIVE A TARDY SLIP. Children should not arrive at school before 7:40 a.m. We are concerned for the safety of your child when he/she arrives at school before 7:40 a.m. There is no one to supervise children at this time. We ask parents who arrive at school before 7:40 a.m. to wait with your child until the doors are unlocked and someone is on duty. Car/bus rider departure times at elementary will vary at the beginning of the year, the building principals will determine the times as possible. It is very important for the student to have a regular routine at the end of the school day. The parent/guardian should list on the registration form the method that the student will use to go home. Any changes other than emergency situations should be taken care of by the parent/guardian before the school day begins.

Change in Transportation

We realize situations arise occasionally during the day, other than emergencies, that you deem it necessary to change your child's mode of transportation home. Changes in transportation should not occur on a regular basis. When necessary, the following procedure should be followed if there is to be a change in your child's ride home:

• Notify the school by note or by phone before 2:30 p.m. of any change.

• Long term changes can be made by a note to the teacher stating the exact change and duration of the change. Without a phone call or note, the student will be required to report to his/her regular bus or car rider station. Students are not allowed (without a note) to ride a bus other than the one they are assigned. All notes must be submitted to the office first period.

Emergency Dismissal

The parent/guardian should list on the student registration form an early dismissal plan in case of inclement weather or some other emergency or school closing. This plan should be discussed with your child. It is absolutely necessary that any changes--method of going home, address, and telephone number--be reported to the office. This is the only method the school has to contact family members should it become necessary.

Inclement Winter Weather

Any delays or cancellations because of weather will be announced through social media and/or radio or television stations.

Fire and Tornadoes

Students are instructed in proper procedures to follow in case of fire or tornado emergencies. Fire exit procedures are posted in each classroom.

Absences

Students in grades K-6 shall not be absent without an acceptable excuse more than 12 days. When a student has accumulated half of the allowable unexcused absences, his/her parent or guardian shall be notified. Notification shall be by telephone by the end of the school day in which such absence occurred or by regular mail with a return address sent no later than the following school day. Whenever a student in grades K-6 exceeds **12 absences**, the District may notify the prosecuting authority and the parent, guardian, or person in loco parentis shall be subject to a civil penalty as prescribed by law. Students with more than 14 absences may be denied promotion at the discretion of the principal after consultation with persons having knowledge of the circumstances of the absences. Excessive absences, however, shall not be a reason for expulsion or dismissal of a student.

Parents will be able to excuse up to five (5) absences per semester. These absences will be labeled "Parent Contact Absences." Parents must notify the attendance office in writing or by phone in order to excuse an absence. In order to have other absences excused, students must provide some form of written documentation from an official agency. Documentation can be note from a professional appointment (doctor, dentist, counselor, etc.), notification to appear in court, etc. These absences will be labeled "Documented Absences". Examples of documental absences are

a. Attendance at an appointment with a government agency

b. Attendance at a medical/dental/counseling appointment

c. Appearance in court

d. 4-H sanctioned activity

e. Death or serious illness in immediate family

f. Observance of recognized holidays observed by their faith

g. Exceptional circumstances with prior approval of the principal Absences with "Parent Contact" only (note or phone call from parent) in excess of five (5) will be considered and labeled "Unexcused Absences." Absences for which there is no documentation or parent contact will be labeled "Unexcused Absences." Students who accumulate more than fourteen (14) "Unexcused Absences" during the year may be retained.

PARENTS SHOULD SCHEDULE VACATIONS AND OTHER TRIPS TO COINCIDE WITH THEIR CHILD'S SCHOOL CALENDAR IN ORDER TO ELIMINATE UNNECESSARY ABSENCES. EXCESSIVE ABSENCES WILL BE COUNTED AS UNEXCUSED AND THERE WILL BE NO MAKE-UP WORK GIVEN, WHICH COULD LEAD TO RETENTION OR FAILURE. Who is responsible for the prompt, regular attendance of students?

Young students are unable to assume full responsibility for their attendance at school. The compulsory attendance law, therefore, is directed toward the person having custody or charge of the child when violation of the law occurs. What is the number of days that a student must be in school?

The number of days of student-teacher interaction time scheduled by the District establishes the required student attendance days. Are there acceptable reasons for student absences?

Absences because of the student's illness, death in the family, or because of religious observances are

excused. What is the procedure to use if the student is absent?

When the student returns, he should present a written statement from the parent explaining his absence. Written notes from the parent (or doctor) are important factors in the safety of the child as well as being evidence to the school that school attendance laws are being followed by the parent. Who enforces school attendance laws?

School principals are required by law to report to legal authorities the parents of children who have an excessive number of unexcused absences. Absences may also cause denial of student promotion.

Tardy and Early Checkout

A student who checks out early or is tardy not only disturbs his/her classmates, but also gets a late start and misses out on instruction. A student is considered tardy when the 8:00 a.m. bell rings at the elementary school. Students must report to the principal's office for a tardy slip.

Students arriving late or checking out early must be signed in or out by an adult designated on the student registration form. No student will be released to a parent from the classroom. All checkouts for K-6 will be handled from the office. Parents are to come to the office to check out students, and the student will be called to the office. Parents should be prepared to show I.D. when asked by school officials. Students will be released only to authorized persons. If a parent plans for someone else to pick up your child, you must call and notify the main office in advance. Students with tardies or early outs will not be eligible for the perfect attendance award.

Students checking in before 10:00 a.m. will be counted tardy.

If the student checks in after 10:00 a.m. or checks out before 1:00 p.m., they will be considered absent one-half day.

After five tardies/early checkouts during each nine week period, a letter of notification will be mailed to the guardian from the principal's office.

After ten tardies/early checkouts a letter will be sent to notify the guardians of a meeting with the principal. If the problem is not resolved after 13 tardies/early checkouts it will be turned over to the Prosecuting Attorney's office.

Car Rider Information

For your child's safety we ask that you help us with the following rules:

1. Children are to be quiet and orderly while waiting to be picked up.

2. All parents must remain in the car line. The duty teacher will escort the children to the car and open the door for them. Please do not motion to your child to come to you, as they may not be paying close attention to the traffic. Do not park on the edge of the street. This causes danger to students and can disrupt the flow of traffic

3. Students must watch for their cars.

4. Students must have a note from parent or guardian that has been dated and signed if there is any change in their normal routine or if someone different is to pick up the student.

Your child's safety is very important to us at the elementary school. If a student does bring an unauthorized bag to school it will be checked and the bag will be taken to the classroom or office. The parent will be informed and asked to pick up the bag.

Self-Discipline

At all times during the school day-in the building, on the playground and on the bus-the school strives to develop self-discipline in each individual.

One important lesson you learn in school is self-discipline. Self-discipline is the key to good conduct and proper consideration for other people.

For those who have not yet mastered self-discipline, the following alternatives are examples of corrective measures that may be used:

• COUNSELING - A conference with the teacher, counselor, or principal.

• PARENT CONFERENCE - A discussion with you, your parents, and your teacher, counselor or principal.

• IN-SCHOOL SUSPENSION - A period of time apart from your classmates.

• CORPORAL PUNISHMENT - A discipline procedure used for disruptive and unmanageable conduct.

• SUSPENSION FROM SCHOOL - A discipline procedure used when school policies and rules are repeatedly ignored, and when conduct tends to be disruptive to the education program.

• EXPULSION - A discipline procedure used by the local school board for severe cases of student misconduct.

Standards of Conduct

The major "rules for school living" are listed in the following pagers. Below each rule is a list of Actions, (minimum- conference through maximum expulsion) which a school may take if the Rule is broken. The order in which the punishment is used will depend upon the seriousness of the situation or in some cases, whether or not the student has broken a number of rules. For the most part, however, the action taken will be in the order in which the penalties are listed. The school reserves the right to make needed adjustments in the discipline plan of individual students. Parents will be notified if their child's discipline is altered.

Offenses - Category I

Category I offenses are considered minor in nature and should be dealt with exclusively by the principal and building staff and in consultation with the student's parent/guardian. Normally, disciplinary actions for Category I offenses will become progressively more severe if minor rule infractions persist. However, the administration may move to the most severe penalty at any time based on the circumstances involved in the particular incident

For Category I violations, the principal may choose from the following consequences:

1. Student/staff/administrator/parent conference

2. Stay in during physical activity (recess time)

3. In-School Suspension

4. Corporal punishment

5. Suspension (1 - 10 days)

6. Recommendation of expulsion

Rule 1: Academic Dishonesty

Cheating on test or copying the work of another student. For all offenses involving academic assessments, the student will receive a zero on the assessment or test.

Rule 2: Insubordination

Failure to Follow Reasonable Directives of the school staff and/or school rules and regulations, failure to obey reasonable instructions from teachers, administrators, instructional aides, bus drivers, or any other authorized school district employee.

Rule 3: Minor Altercations

Engaging in physical struggle having the potential of producing bodily harm. All participants in an altercation will be disciplined according to the degree of involvement of each student.

Rule 4: Harassment/Bullying

Behavior or actions that violate a person's right to privacy or any action verbal, physical or by electronic communication to intimidate another student.

a. Annoyance - to "pick at or tease" on a continual basis

b. Communications - non-solicited oral, written or electronic communication offensive to the recipient c. Sexual - to violate another person by using sexually explicit language or gestures

Rule 5: Repeatedly Tardiness to School or Class

A student is tardy if he/she is not in his/her classroom or assigned location by the time the tardy bell rings. Students violating this rule will be disciplined in accordance with the Kirby Elementary School's Tardy Policy.

Rule 6: Displays of Affection:

Any type of conduct that is suggestive in nature (kissing, hugging, etc.).

Rule 7: Possession of Inappropriate Materials

Students should not be in possession of any materials detrimental or disruptive to the educational climate including radios, CD players, cell phones, tape players, electronic games, pornographic materials, playing cards, trading cards, laser pointers and any personal toy from home.

Rule 8: No blankets or other coverings, student should bring a sweater or a coat if needed.

Offenses - Category II

Generally, disciplinary actions for violations of Category II offenses will move progressively for each rule violation. However, the administration may move to the most severe penalty at any time based

on the circumstances involved in the particular incident.

1. Student/staff/administrator/parent conference

2. Stay in during physical activity (recess time)

3. In-School Suspension

4. Corporal punishment

5. Suspension (1 - 10 days)

6. Recommendation of expulsion

Rule 8: Leaving School Grounds without Permission

No student is to leave the school campus without being checked out by a parent/guardian or without the approval of the school administrator.

Rule 9: Failure to Serve Detention

A student who fails to serve detention when directed to do so by a school administrator or other authorized school personnel will be disciplined.

Rule 10: Using Verbally Abusive Language, Obscene Gestures, or "Fighting Words" Profanity,

inflammatory or abusive language or obscene gestures are prohibited in the school environment.

Rule 11: Use of Tobacco Products

Smoking or possession of tobacco products of any kind on school district property or on the school bus is prohibited.

Rule 12: Assault

A threat to harm another person physically or an unsuccessful attempt to do so with "blows"; a violent attack-as with words, profanities, etc. in an attempt to promote or insight physical violence. All assaults will be reported to the Sheriff's Office.

Rule 13: Battery

The repeated beating or striking of another person either directly or with an object producing bodily harm.

Rule 14: Theft

a. Burglary and/or Larceny- To steal school property or property belonging to another person.

b. Robbery- The violent taking of any goods, money, or other valuable items from another by force or threats.

Rule 15: Gambling

Playing a game of chance for something of value.

Rule 16: Fighting

Mutual combat in which participants inflict intentional and serious bodily injury to any person. All participants in a fight will be disciplined according to the degree of involvement by the participants.

Rule 17: Use of Profanity Directed toward a Staff Person

To direct profanity in a non-threatening manner to a school staff member.

Rule 18: Loitering

Lingering on the ground of a school or within 100 feet of the school without permission of a school administrator.

Rule 19: Vandalism

To intentionally destroy property, cut, deface, or otherwise damage property belonging to another person or belonging to the school district. The parent/guardian shall be responsible for all damages to property caused by his/her child.

Rule 20: Disorderly Conduct

Inappropriate behavior that substantially disrupts or interferes with or is likely to disrupt or interfere with any school function, activity, or school program.

a. The use of violent, abusive, obscene, or profane language or gestures directed at another person or to the public in general.

b. Habitual or repeated violations of school rules and regulations:

a. Violation of single rule - two or more times in a semester b. Violation of a combination of rules four times in a semester

Rule 21: Harassing Communications

Use of telephone, telegraph, the mail, email or any other form of written communication to annoy, cause alarm, or threaten to harm another person, or knowingly allowing another person to use a telephone or other electronic device under your control for such a purpose, is a crime.

Rule 22: Forgery or Falsification of Information or falsifying teacher signatures or information on school records.

Rule 23: Possession/Use of Paging Devices (Beepers), Cell phones and/or other Electronic Communication Devices

The use or cell phone, smart watches, or beepers or other communication devices during the school day is prohibited except when they are required for medical reasons. In such cases, medical documentation must be on file at the school building.

Offenses - Category III

FIRST OFFENSE – REFERRED TO AUTHORITIES, TEN DAYS SUSPENSION AND RECOMMENDATION FOR EXPULSION Students found guilty of these offenses shall receive an expulsion recommendation. The sheriff's department shall be immediately notified.

Rule 26: Use and/or Possession of Alcohol, Controlled Substances or Unauthorized Drugs or Substances

The possession or use of non-prescribed narcotic drugs, hallucinogens, marijuana, or any unauthorized

drug or substance is a violation of district policy. In addition to suspension, students must show proof of having enrolled in an approved drug/alcohol counseling program prior to reinstatement.

Rule 27: Sexual Misconduct

To deliberately show the sex organs in a public place; to engage in or attempt to engage in a sexual act with another person or to touch in a sexual manner.

Rule 28: Terroristic Threatening

Any student who calls in a bomb threat or makes terroristic threats with an explosive device, gun, knife, chemical agents other weapons that could harm the safety of students or employees.

Rule 29: Arson

The willful and deliberate burning of or attempt to burn school property.

Rule 30: Drug/Alcohol Possession, Use, Sale or Distribution

The sale or distribution of alcohol, marijuana, prescribed/non-prescribed drugs, hallucinogens, or similar substances. Students expelled for this violation shall be required to submit proof of the successful completion of drug/alcohol counseling and/or treatment program prior to petitioning the Board for reinstatement.

Rule 31: Physical Assault on Staff

Striking or attempting to strike a teacher or other school personnel.

Rule 32: Verbal Abuse of Staff

The use of violent, abusive, or obscene language or gestures addressed to a teacher or staff person in a threatening manner.

Rule 33: Possession of a Firearm

The act of possessing a firearm on school district property or at a school related event will require an expulsion recommendation for a period of not less than one year.

Rule 34: Use of Weapon

The act of using a weapon or firearm to cause injury or threaten injury to another person.

Rule 35: Possession or Use of Explosives

The possession, use or threat to use any explosives or other such devices capable of inflicting bodily harm.

Rule 36: Extortion

Obtaining or attempting to obtain money or property from an individual by force or threat of force. **Rule**

37: Unlawful Assembly

When three or more students get together with the intent to commit an unlawful act.

Rule 38: Inciting a Riot

An act of conduct which results in a riot or which urges others to commit acts of force and violence or participation in a gang fight or similar disturbances at school or at school related activities.

Rule 39: Membership in Prohibited Clubs, Gangs, Fraternities, Sororities or Similar Organizations

Students shall not participate in secret societies or organization of any kind while on school property, at school sponsored activities or while on the way to or from school. Gangs or similar groups, whether organized in the community or in other settings, are prohibited on school grounds or at any school sponsored activity.

2.75 Homework

Homework is an integral part of a student's education. It is an extension of the school day and is assigned to help the student become more self-reliant, learn to work independently, improve the skills that have been taught and complete certain projects. Homework may include the reading of worthwhile books and the preparation of research papers or reports. Homework assignments allow parents to become involved with school programs and their own child's educational progress.

The following guidelines will be used in giving homework assignments at the elementary level.

Kindergarten 15 minutes First – Third Grades 30 minutes Fourth – Fifth Grades 60 minutes Homework assignments should not be confused with class work that was not completed at school, but that teachers have sent home to give the student the opportunity to finish at home. .

Promotion and Retention

Pupils who satisfactorily complete a course of study prescribed for their grade level in the Elementary School, Kirby School District, will be promoted to the next grade level at the end of the school year.

If a student is not making normal progress, the parents must be notified at the end of the first quarter so that the school and home may cooperate in helping that student. A second meeting will be held at the end of the semester.

The teacher is to discuss possible retention with the principal prior to discussion with the parent. A meeting will be arranged with the parents after the teacher/principal discussion is held to get the child on track. Close to the end of the third nine weeks, if the student is still failing to make normal progress, the teacher will notify the principal who will activate a committee to study all information regarding the student. The committee will consist of a minimum of two teachers, the principal and the counselor. Light's Retention Scale and other documentation will be completed.

If the school committee feels that retention might be in the best interest of the student, the committee or designee will meet with the parents during the Spring Parent/Teacher Conference. The appropriate forms will be signed by all parties at the conference during the third nine weeks and placed in the student's permanent records. If the parent does not agree with the committee's decision, they may appeal to the superintendent.

The district will make every effort to keep the student in his/her chronological age group, but it is realized that there are exceptions to this principle. The district encourages that retention take place early in a student's formal schooling, if there is evidence that his/her future learning will be affected by a lack of basic skills.

Honor Roll and Principal's Lists

All students who make a "B" or better in all subjects and citizenship/conduct will qualify for the Honor Roll. Students who make an "A" in all subjects and citizenship/conduct will be carried on the Principal's List.

Student Awards

Kirby Elementary School rewards will be based on goals developed by parents, teachers, and students each semester. Students meeting or exceeding their goals will be rewarded with special activities determined by the teacher and students.

Physical Activity, Outside Activity Time (OAT) and P.E. Excuses

Physical Activity, Outside Activity Time, and P.E. are part of the curriculum at Kirby Elementary School. If your child has to miss more than one day of either activity you are required to send a doctor's note to school excusing your child from OAT and/or P.E.

Emergency Information

In case of illness or injury and emergency medical treatment is deemed necessary, the parents will be contacted. If parents are not available, the child will be taken to the emergency room at the hospital. Remember, an emergency telephone number where parents can be reached must be on file at the school. This is the only method that the school has to contact family members should it become necessary.

In case of medical emergency, each student is required to have on file at the school office the following information:

• Name(s) of parent/guardian,

• Complete and up-to-date address,

• Home phone and parent/guardian work phone,

• Emergency phone number of friend or relative,

• Physician's name and phone number,

• Medical alert information.

Child Abuse and Neglect

Child abuse and neglect is a crime. The Kirby School District is under the jurisdiction of Arkansas State Law 42-808, which requires all school personnel to report any suspected child abuse or neglect.

"Child" means any person under the age of eighteen (18). "Abuse" means any non-accidental physical injury, mental injury, sexual abuse, or sexual exploitation inflicted on a child by any one legally responsible for the care and maintenance of the child, or an injury that is variance with the history given. The term encompasses both acts and omissions.

"Neglect" means a failure to provide, by those legally responsible for the care and maintenance of the child, the proper or necessary support; education, as required by law; medical surgical or any other care necessary for his well-being; or any maltreatment of the child. The term includes both acts and omissions. Child abuse and neglect shall be reported to the school nurse or counselor within 24 hours based upon suspicion. The receiver of the report must act and give feedback to the reporting person within 48 hours.

Visitors

All visitors are required to report to the school office upon entering the building and obtain a visitor pass to carry with them while on school grounds. If you need to talk to your child's teacher, please contact the teacher by note, call or come by the office and we will gladly make arrangements for her to have time for you. Each teacher must reserve the right to refuse unscheduled conferences that interfere with normal class instruction. Students are not allowed to bring "guests" to school, i.e. younger brothers or sisters, cousins, friends.

Parties

Birthday parties are not an academically acceptable activity and, therefore, should take place outside instructional times. No birthday parties will be held on instructional time, nor will any party invitations be distributed to the class unless all children are to receive one.

Delivery of balloons to the school are discouraged. **Balloons cannot be taken home on the bus.** Any delivery for student-balloons, flowers, gifts, cards, and etc.-will remain in the office and will not be delivered to the classroom during school hours.

Two (2) holiday parties (Christmas and Valentine's Day) will be celebrated Kirby Elementary School each year. Parents will be contacted to help with these parties. All parties will begin during the last period of the day.

Money

When sending money to school with your child, please seal the money in an envelope, write the amount that is enclosed; and include your child's name, teacher's name and what the money is for on the envelope.

Labeling Student Property

Please place your child's name on all outside clothing, lunchboxes, and backpacks.

Student Dress and Grooming

The school recognizes that among those rights retained by the people under our constitutional form of government is the freedom to govern one's personal appearance. When, however, dress and grooming disrupt the learning process of the individual student or other students or disrupts the learning climate of the school, it becomes a matter subject to disciplinary action. Student dress, grooming, and appearance should be the responsibility of the individual and his/her parents. Parents are urged to consider this when selecting their child's school clothing. Following are dress and appearance guidelines. (See Policy 4.25)

1. Dress and grooming should be clean and in keeping with health and sanitary practices.

2. No wearing: halter tops, bare midriffs, extremely short clothing, sagging or low-riding pants underwear exposed, see-through blouses and shirts, backless shirts, tank tops with less than three inches of material across each shoulder, spaghetti straps, and those garments with emblems that advertise alcoholic beverages, tobacco or drugs, contain vulgar and/or obscene phrases and pictures.

3. Shorts,skirts, and dresses may be worn, but must be appropriate length. Rips or tears in jeans must not

be at fingertip length.

4. On campus, students may not wear clothing that sags to the extreme.

Kirby High School (7-12) Policies and Procedures

Classification of Students

1. Transfer students will be classified and enrolled on a temporary basis until confirmation is received from the school he/she last attended.

2. It is the duty of the principal or his or her designee to see that all records pertaining to transfer students are sent for and brought up to date.

3. Any student transferring from a school accredited by the Arkansas Department of Education shall be placed into the same grade level the student would have been in had the student remained at the former school.

4. Transfer students from non-accredited schools may be placed on a different grade level from that of the school from which they withdrew. Reasons for such placement may include tests, chronological age, mental age, and/or academic performance.

5. The following are the minimum classification requirements for 9-12 grade students:

a. Successful completion of the 8th grade will result in the classification of freshman.

b. At least five credits earned will result in the classification of sophomore.

c. At least ten credits earned will result in the classification of junior.

d. At least seventeen credits earned will result in classification of senior.

Placement and/or Scheduling of Former Home School Students and Students from Non-Accredited Schools (schools not accredited by a state or regional association)

1. Specific Requirements for Grades 7 - 12

a. The local school shall administer a battery of examinations either standardized or district developed for placement or determination of credits.

b. A placement conference shall be held for any student who scores less than the 50th percentile on the required achievement test (the percentile score will attained by comparison of the raw score to previous raw scores that have been normed). Conference participants shall include an administrator, a counselor, the parent(s), and other personnel deemed necessary. Based on data presented, the school administrator shall determine class and grade placement. The local school shall retain the option to reconsider placement at any time during the school year.

c. In the event that a student who has received home instruction has not taken or passed an approved standardized test, he/she will be tested at the school before permanent placement is assigned

d. Parents must present a written list of subjects taught and textbooks and materials used to the counselor or principal at the time of registration.

e. Rank in class and grade point average will be determined only by credits earned while attending an

accredited high school.

f. A student must attend an accredited public or private school for a minimum of six (6) semesters to be considered for honor graduate status. Summer school may not be substituted for a regular semester.

g. A student must meet all graduation and attendance requirements for Kirby School District to receive a diploma.

2. Home Schooling Information: Students and their parents interested in home schooling need to be aware that:

a. Some college scholarships are based on GPA. Students receiving "CR" and not letter grades would not be eligible for these scholarships.

b. It is the sole responsibility of the school district to determine the method by which credits are earned in order to receive a high school diploma. There is no requirement that the school honor credits earned through home schooling experience.

Chemical Screen Test

The Kirby School District recognizes that chemical abuse or misuse is a significant health problem for students, detrimentally affecting overall health, behavior, learning ability, reflexes, and the total development of each individual. The Kirby Board of Education is determined to help students by providing another option for them to say "No." Chemical abuse includes, but is not limited to, the use of illegal drugs, alcohol, and the misuse of legal drugs and medications.

Purpose of a Chemical Abuse Policy

1. To allow the students of Kirby schools to know that the school is concerned about their total well-being. The school district is interested in helping the students who may be having problems.

2. To emphasize concerns for the health of students in areas of safety while they are participating in activities, as well as the long-term physical and emotional effects of chemical use on their health.

3. To assist students of Kirby Schools to resist the peer pressure that directs them toward the abuse or misuse of chemical substances.

4. To establish standards of conduct for students of Kirby Schools who are considered leaders and standard bearers among their peers.

5. To work cooperatively with the parents by assisting them in keeping their children free from mood-altering chemicals.

6. To provide referrals for students who need evaluations regarding their use of mood-altering chemicals.

7. To deter chemical abuse or misuse by all students through the use or random drug testing.

The provisions of this policy apply to all students in Kirby Schools in grades seven through twelve whose parent/guardian sign Consent Form "A" of the Chemical Screen Policy. General Provisions

Illegal Drugs are defined as drugs, or the synthetic or generic equivalent or derivative of drugs, which are illegal under federal, state or local laws including, but not limited to, marijuana, heroin, hashish, cocaine, hallucinogens, depressants, and stimulants not prescribed for the user. Illegal drugs include steroids and its derivatives or related substances, which are not prescribed by a physician or are prescribed

by a physician for uses not authorized by the manufacturer of the drug. Alcohol is defined as ethyl alcohol or any beverage containing ethyl alcohol.

Reasonable Suspicion Provisions

The use or possession of illegal drugs or alcohol by a student on property under the control of the District or prior to entering property controlled by the District or at a District-sponsored event where the illegal drug or alcohol has the possibility of impairing the student is a violation of this Policy. The presence of an illegal drug or its metabolites or alcohol in a student's body is considered possession.

Reasonable suspicion is defined as a reasonable suspicion by an administrator or other district employee that a student has used, possessed, or sold illegal drugs on District property or has used illegal drugs off the District property, but is on District property or at a District-sponsored event while under the influence of illegal drugs; or that a student has used or possessed alcohol on District property, but is on District property or at a District- sponsored event while under the influence of alcohol; or that a student is using or misusing prescription medications on District property or at a District-sponsored event while under the influence of the prescription medication. Examples of reasonable suspicion include, but are not limited to:

• Eyewitness evidence by as a District official, administrator, employee:

• Eyewitness evidence of another person plus additional evidence:

• Individualized suspicion possessed by an employee of the District that is based upon a reasonable suspicion and/or reasonably reliable evidence. Random Testing Provisions

The use or possession of illegal drugs during school activities or prior to school activities where the illegal drug has the possibility of impairing the participant is a violation of this policy. The presence of an illegal drug and its metabolites in a student's body is considered possession. Any student undergoing medical treatment prescribed by a physician that includes the use of a drug or medication capable of affecting the student's mental or physical capabilities must notify the appropriate school official at the time of testing. If there is any doubt concerning the effects of the drug or medication, the appropriate school official should be notified. A student's failure to notify the appropriate school official that the student is undergoing medical treatment that includes the use of any drug or medication capable of affecting the student's mental and physical abilities is violation of this policy. The penalty for this violation may be the same as an initial positive test result under the random testing provisions.

Procedure

Type of Testing—The District may require each student of the Kirby School District, grades seven through twelve, to provide a urine specimen. Each specimen cup will have a number on it that will be assigned to a participant's name. The numbers that are selected through a random process will be sent to the lab for testing. A urinalysis will be the method utilized to test for the presence of chemicals in the body. All students selected show up for providing urine samples to be taken at Kirby Schools or must go to a pre-designated doctor's office and give a urine specimen.

Selection Process—While students are in school, they will be subject to random selection for testing. Each student will be assigned a number. Particular days will be selected for testing. The amount of

numbers drawn will be not less than (2%) or greater than (15%) of the students in grades seven through twelve. If any student whose number is drawn is absent on that day, the selection process will continue until the number of students selected for testing equals the number representing the percentage of students designated for random testing.

Refusal to Submit to Testing—Students not consenting to be tested (in the random pool) are allowed to join clubs or organizations, but are not allowed to attend after school meetings or participate in off campus trips. Any participant who refuses to submit to random drug testing will not be allowed to participate in any school activity for the remainder of the school year. Each student must consent by the beginning of the 2nd Semester in order to participate in the 2nd semester activities. The following is as a list of activities that students not consenting (in the random pool) will not be allowed to participate in for the school year. Examples include:

• Class Trips/Driving to and from campus

• Dances Prom

• Athletics

• Homecoming

• Band (if applicable)

• School, Club, and Organization Trips Any attempt by a student to manipulate the outcome of his/her drug test will be equivalent to a refusal to submit to testing. Any attempt to manipulate or aid in manipulating the outcome of any drug test will be considered falsification of information. (See Rule 22 of the Kirby Discipline Policy) Use of Positive Tests— Upon receipt of a positive test result for any student, a student may request a retest at his or her expense within as a 24-hour period of a positive result. (The school will reimburse the cost of this test should the result be negative.)

The specimen must be given at a pre-designated doctor's office.

• The superintendent or designee will notify the student and the student's custodial parents/legal guardians.

• The superintendent or designee will schedule a conference with the student's custodial parents/legal guardians to explain the result.

• Counseling/rehabilitation of the student will be strongly recommended for the student who tests positive. This will be at the expense of the student.

• The student will be placed on probation of twenty days. After twenty-one days, the student will be tested again at the student's own expense and a written copy of the results will be given to the superintendent or designee. If the test is negative, the probation will be lifted. If the test is positive, the student will not be allowed to continue in school activities for one calendar year. The student cannot participate in any form of extra-curricular activity involving Kirby Schools. To regain eligibility for participation in activities for the next year, a student must have a negative Chemical Screening test. This must be administered by the pre-designated doctor at the student's expense. Exception—Certain chemicals that take more than twenty days to leave the student's system will be considered differently if a doctor's written opinion details said residual effects of that particular substance. Testing Procedure

Analysis of Urine Specimens—The initial urinalysis method will be an immunoassay screen. If a specimen tests positive for any substance being checked, a student may request a confirmation test within 24 hours of receiving the positive results. The confirmation test will be at the student's expense at the office of a pre- designated physician. Gas chromatography/mass spectrometry GC/MS will be conducted on the specimen. The student will be allowed to retest at the end of the 20-day probation period at his or her expense. If the result of the GC/MS test is positive, the student will be considered to have had as a positive result. If the GC/MS is negative for the suspected substance or substances, the student will be considered to have had a negative result.

All test results from the laboratory will be communicated to the superintendent or designee. To ensure proper testing procedures, United Stated Department of Health and Human Services Standards as defined by the National Institute of Drug Abuse certified laboratories will be followed.

All urine specimens will be taken at a designated restroom. Any student who is requested to provide a urine specimen will be directed to the collection site where the student will complete the necessary forms. Students selected as part of the random test will be required to execute an additional consent form.

The following precautions will be taken, as appropriate, at the collection site:

1. Positively identify the examinee.

2. The observer will ask the individual to remove any unnecessary outer garments (i.e., coat,

jackets) that might conceal items or substances that could be used to tamper with or adulterate the urine specimen. All personal belongings (i.e., purse, briefcases, etc.) must remain with the outer garments. The observer will note any unusual behavior or appearance.

3. The student will be instructed to wash and dry his or her hands prior to providing the specimen.

After washing his or her hands, the student will not be outside of the presence of the observer and not have access to water fountains, faucets, soap dispenser, or cleaning agents until after the specimen has been provided and sealed. Only one person will be allowed at a time in the washroom and process area.

4. The student will be allowed to provide the specimen in a stall or other partitioned area that allows for individual privacy. After the specimen had been provided, the student should leave the stall.

5. At the collection site, toilet bluing agents may be place in the toilet tanks whenever possible. No other source of water will be available in the enclosure where urination occurs.

6. After the specimen has been provided to the observer, the observer will continue with chain of custody procedures and determine whether it contains at least 60 milliliters of urine. If there is not at least 60 milliliters, additional urine should be collected. The student may be given reasonable amounts of water for drinking. If a student fails for any reason to provide the necessary amount of specimen, the observer will contact the superintendent or designee for guidance.

7. Immediately after collection the observer will check the temperature of the specimen and inspect the specimen for color and signs of contaminants. Freshly filled specimens should be warm.

8. Both the observer and the student being tested will keep the specimen in view at all times prior

to its being sealed and labeled.

9. The student will observe the tamper-proof seal. The labels for the specimen bottle must have all information completed before being placed over the bottle cap and down the sides of the bottle. The observer will place the identification label securely on the bottle.

10. The student and the observer will sign the chain of custody form and have the observer initial the specimen label.

11. The identification label on the specimen container will contain: the date; the student's name; the student's assigned number

12. The observer will enter the identifying information in a record book. Both the observer and the student will sign the record book. Both the observer and the student will sign the permanent record book next to the identifying information.

13. The student will be asked to read and sign a certification statement regarding the urine specimen**.**

Results and Notification

Test results will be reported to the superintendent or his designee within a specified number of days after the lab's receipt of the specimens. All reports will be in writing. All specimens testing negative on the initial test or negative on the confirmation test will be reported as negative. Only specimens confirmed as a positive will be reported as positive for a specific drug(s). Consent Form students and parents/guardians will be strongly encouraged to sign a consent form to the random testing at various times of the year. The form must be co-signed by the student's custodial parent/legal guardian. No student will be allowed to participate in any school activity (any activity outside the regular curriculum) until both student and custodial parent/legal guardian have signed the consent form and returned it to the principal. Substances Tested : The substances for which students will be tested include:

BARBITURATES AMPHETAMINES BENZODIAZEPINES Amobarbital - Butabarbital Amphetamine Alprazolam - Chlordiazepoxide Butalbital - Pentobarbital Methamphetamine Clorazepate - Diazepam Phenobarbital - Secobarbital Halazepam – Prazepam Trizolam COCAINE METABOLITES PROPOXYPHENES PHENCYCLIDINE(PCP) QUALITATIVE THC OPIATES ETHYLALCOHOL Codeine – Heroin - Morphine The cut off levels for initial screens will be 100 nanograms per milliliter (ng/ml) for marijuana metabolites (THC), 300 ng/ml for cocaine, metabolites, and opiates, 25 ng/ml for phencyclidine, and 100 ng/ml for amphetamines. The cut off level for ethyl alcohol shall be four one-hundredths of one percent (.04%) by weight of alcohol in the student's breath or blood. Cuts off levels used are determined by the National Institute on Drug Abuse. The cut off levels for confirmation tests will be 15 mg/ml for marijuana metabolites, 150 ng/ml for cocaine metabolites, 300 ng/ml for opiates, 500 ng/ml for amphetamines, and 25 ng/ml for phencyclidine. Cost

The test to be given during random selection will be paid by the District. Any second test or test requested by the parent or student will be at the parent's expense. Testing Due to Reasonable Suspicion

Students who have been identified though the criteria outlined as reasonable suspicion may be tested separately from the times of the random testing. The testing should take place as soon as possible after the determination of reasonable suspicion has been verified. The charge of the testing for those identified will be the responsibility of the District. Records

The superintendent or designee, in a separate file under lock and key, will maintain all records

concerning chemical abuse testing. The records will not be kept in a student's regular file. Only the superintendent or his designee will have access to the files. The files on each student will be destroyed upon graduation or two years after termination of enrollment. A student and the student's custodial parents/legal guardians may obtain a copy of their chemical abuse testing records upon written request

Academic Requirements Grading System

1. The grading system used in the Kirby School District for grades seven (7) through twelve (12) shall be as follows: A, B, C, D, F, and I. The percentage scale to arrive at the above grades is:

A- 90 thru 100

B- 80 thru 89

C- 70 thru 79

D- 60 thru 69

F- 59 and below

I- Incomplete work which may be completed for a grade, at such time the "I" will be changed to the appropriate grade.

For the purpose of determining grade point averages, the numeric value of each letter grade shall be: A= 4 points B = 3 points C = 2 points D = 1 point F = 0 points

2. The grade point values for Advanced Placement (AP), International Baccalaureate (IB), and approved honor courses shall be one point greater than for regular courses with the exception that an F shall still be worth 0 points.

3. The semester grade will be computed by counting the individual nine weeks' grades as 40% each and the semester exam as 20%.

4. There will be a semester exam given in each class.

5. Students who meet the following conditions will be exempt from semester exams. This applies to both the fall and spring semesters:

• No in-school, out of school suspension, or Saturday school during the current semester

• No unexcused absences

• Have an A in the class with no more than five (5) parent contact absences

• Have a B in the class with no more than three (3) parent contact absences

o Have a C in the class with no more than one (1) parent contact absences

6. Factors affecting promotion or graduation may be, but are not limited to, absences, academic performance, standardized tests and earned grades during the school year. Grades shall be based on educational objectives only.

7. The Kirby School Board feels there is a definite need for a grading system. Reasons include:

a. To inform parents of the progress of their children.

b. To help administrators evaluate the effectiveness of the school program.

c. To furnish information for pupil guidance and counseling.

d. To assist in promotion, retention, transfer and grade placement.

e. To show the achievement of pupils in relation to others.

Homework

Homework is considered to be part of the educational program of the District. Assignments shall be an extension of the teaching learning experience that promotes each student's educational development. As an extension of the classroom, homework must be planned and organized and should be viewed by the students as purposeful. Teachers should be aware of the potential problem students may have completing assignments from multiple teachers and vary the amount of homework they give from day to day. Students in grades 6-8 should have no more than 20 minutes of homework per subject per night. Homework is not to be confused with unfinished class work.

Entrance into the GT Program

A. Be Nominated

a. Students may be nominated by teachers, parents, counselors, peers or themselves.

b. A nomination form and a questionnaire will be given to the person nominating. The questionnaire will be analyzed by the G/T coordinator to discover if the student truly displays gifted characteristics.

c. A form will be sent home with the student to be signed by the parent /guardian for permission to test. The G/T enrollment cannot proceed without this form.

B. Be Tested

a. Each nominated student will be administered the Naglieri Non-Verbal Ability Test in the fourth grade (or as soon as possible) and once every three years afterward. b. Each nominated student will also be administered the William's Creativity Test. This is a test of creativity.

C. Be Observed

a. The G/T coordinator will observe the nominee during regular classroom hours and record a summary of observed gifted characteristics.

b. The nominee's teacher(s) will be given a rating scale to be completed for the consideration by the G/T advisory committee. This is a rating as to gifted behavior characteristics.

D. Be Graded

a. G/T students should display school achievement as a consideration of placement. A grade point average (GPA) of 3.0 or better is considered the norm.

b. Data collection is from a variety of sources. Data collection may include current standardized test scores, the Naglieri Non-verbal Ability Test, William's Creativity Test, Grade point average, Teacher Checklist, enrichment portfolio evaluation, and the Kingor Observation Inventory (KOI) used for grades K-3.

E. Be Rated

a. Once all appropriate data has been collected, analyzed and put in a matrix, the data will be presented to

the placement/screening committee for that school. The committee will consist of the G/T coordinator, the school principal, the school counselor and two teachers. The committee will make placement decisions in a professional manner keeping what is best for the students at the forefront of its, decisions.

b. Parents will be notified of the committee's decision in a timely manner. A form will be sent home for permission of placement if the student is selected. c. Instructional, useful information about individual students obtained during the identification process will be communicated to the instructional staff regardless of final placement decisions.

Exit from the GT Program

A student may be removed from the gifted program through a parent, teacher, or student request. The final decision of exiting the GT program will be determined by the identification committee of 5 educational professionals chaired by the GT Coordinator. Due process for removal shall include the following:

1. In the event of a parent request removal, the reasons of removal must be filed in writing with the

Coordinator of the Gifted Program

2. In the event of a student request for removal, parental permission must be obtained.

3. Prior to teacher request for removal from the program, the GT Coordinator will notify the parents of the concern and request a conference with the parents.

4. If it is determined by the identification committee, a copy of the removal request and reasons for removal will be filed and concerned school personnel will be notified.

5. Parents will be notified in writing when a student is dropped and advised of appeal procedures and re-entrance procedures.

6. Parents may appeal a removal decision by requesting a review of the reasons for removal by the Appeals Committee that will consist of 5 educational professionals, chaired by the GT Coordinator. At that time, the committee shall hear the appeal and make a decision in private at the end of the appeals process.

7. Students removed from the program may request re-entrance at the next program change. If students desire to re-enter, the Identification Committee will review the circumstances and reasons surrounding their removal and the student will be considered for replacement. Update 07/16/17

Additional Promotion Requirements

1. Pupils who satisfactorily complete a course of study prescribed for their grade level in the Kirby Elementary and Middle schools will be promoted to the next grade level at the end of the school year.

2. Promotion/Retention Policy for sixth (6) seventh (7) and eighth (8) grades:

a. Any 7-8 grade student earning an "F" grade for the year in two or more core courses (math, English, science, social studies) will not be promoted to the next grade. Yearly grades will be determined by averaging of the two semester grades. b. Any 7-8 grade student having eight (8) or more failing semester grades for the entire year, including electives will not be promoted to the next grade.

3. Students in grades 7-8 shall not be retained more than one year. After having been retained for one

year, they will be evaluated for an appropriate educational program.

4. It will be the responsibility of the teacher to notify parents of possible failures and to arrange conferences with parents before the child is given a failing grade on a year's work.

5. Students in the ninth (9th) grade must choose a career focus to help determine course scheduling for their high school careers.

6. Academic Improvement Plans (AIPs) shall be developed for students who score less than proficient on a state-mandated assessment.

Requirements for Honor Graduates

To be considered an honor student at Kirby High School, students are to meet the following conditions:

1. Meet all requirements for graduation.

2. Have a 3.5 grade point average or better.

3. Earn credit in the following courses: Algebra I, Algebra II, Geometry, Pre-Calculus, Chemistry, Physics or Anatomy & Physiology, 2 units of Foreign Language or an additional AP course (for a total of 3), and 3 units of Social Studies to include American History, World History, Government, at least 2 AP courses, and an elective which is not a Practical Art.

4. Advanced placement (AP) courses will be weighted on a 5.0 point scale:

a.

A=5.0;

B=4.0;

C=3.0;

D=2.0;

F=0.0

b. Students must be enrolled in the class for the year, take the AP exam, and the teacher must have the appropriate training in order to receive weighted credit.

5. Beginning with Class of 2020

Honor Students will be distinguished in the following manner: a. Cum Laude- Students who completes two (2) Advanced Placement Courses/Concurrent College Credit Courses and have a GPA 3.50-3.75 b. Magna Cum Laude- Students who complete four (4) Advanced Placement Courses/Concurrent College Credit Courses and have a GPA 3.76-3.99 c. Summa Cum Laude- Students who completes five (5) Advanced Placement Courses/Concurrent College Courses and have a GPA 4.0 and above

Credit through Correspondence Study and Concurrent Credit

1. Correspondence courses may not be used in lieu of regular courses offered by Kirby High School to meet the requirements for graduation before the student has completed six (6) semesters. Any student may then apply for correspondence study through the office of the principal. Approval for correspondence study will be based on the following:

a. The course must be one of the required courses for graduation which the student has failed.

b. No more than one (1) course may be taken at a time.

c. Credit will be awarded only on courses taken to meet the minimum graduation requirements.

2. According to A.C.A. 6-18-223, "a student who enrolls in and successfully completes a course or courses offered by an institution of higher education shall be entitled to receive appropriate academic credit in both the institution of higher education and the public school in which such student is enrolled at the rate of one-half (1/2) credit for each three (3) semester hours of college credit, which credit shall be applicable to graduation requirements." To ensure proper credit all concurrent courses must be pre-approved by the principal or counselor to determine unit placement. Unless approved by the school principal or counselor, prior to enrolling for the course, the concurrent credit shall be applied toward the student's graduation requirements as an elective. Students are responsible for having the transcript for the concurrent credit courses they have taken sent to their school in order to receive credit for the courses. Credit for concurrent credit courses will not be given until a transcript is received. Transcripts for students who take concurrent credit courses as partial fulfillment of the required full day of class for students in grades 9-12 are to be received by the school by the same time grades are due for regularly scheduled high school students. Students will retain credit applied toward a course required for high school graduation from a previously attended, accredited, public school. Any and all costs of higher education courses taken for concurrent credit are the student's responsibility.

Network Acceptable Use

The Kirby School District makes computers and/or computer Internet access available to students, to permit students to perform research and to allow students to learn how to use computer technology. Use of district computers is for educational and/or instructional purposes only. It is the policy of this school district to equip each computer with Internet filtering software designed to prevent users from accessing material that is harmful to minors. For the purposes of this policy "harmful to minors" is defined as any picture, image, graphic image file, or other visual depiction that:

a. taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex, or excretion;

b. depicts, describes, or represents, in a patently offensive way with respect to what is suitable for minors, an actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals; and

c. taken as a whole, lacks serious literary, artistic, political, or scientific value as to minors. The purpose of the Kirby School District's network is to support learning and enhance educational opportunities. Through a partnership with the Arkansas Public School Computer Network, students and staff have access to the Internet, a "network of networks" of computer systems all over the globe. The Internet affords users virtually unlimited access to high quality research and the capacity to collaborate with students, teachers and experts in various fields of study throughout the world. The district recognizes that to insure that its substantial investment in technology is utilized to accomplish its educational goals, it is necessary that all users behave in a responsible, efficient, ethical and legal manner. The Board, therefore, expects that all students in the Kirby Public School District shall:

1. Use the network only with permission of a teacher and only after the appropriate permission document(s) is/are signed by the student and the student's parent or guardian and filed at the school.

Using the Internet for research requires a permission slip. Individual accounts, such as for electronic mail, require a letter which outlines specific procedures and regulations.

2. Use the network only for legitimate educational pursuits as directed by a teacher. Use of the network for recreational games, accessing inappropriate material such as that of a sexually explicit nature, or using the network for commercial purposes is prohibited.

3. Abide by all district, local, state, and federal regulations and laws, including but not limited to copyright laws.

4. Refrain from any activities which might cause damage to hardware, software or data files which are not the sole property of the student.

5. Refrain from using inordinate amounts of network time or materials.

6. Refrain from bringing personal software into the network environment.

7. If in doubt about how to do something on the computer or unsure if an action is appropriate, ask a teacher or system administrator.

8. Students must not disable or bypass security procedures, compromise, attempt to compromise, or defeat the district's technology network security or Internet filtering software, alter data without authorization, or disclose passwords to other students.

9. Students who misuse district-owned computers or internet access in any way, including using computers to violate any other policy or contrary to the computer use agreement, or using the computers to access or create sexually explicit or pornographic text or graphics, will face disciplinary action, as specified in the student handbook and or computer use agreement.

Kirby Public School District
Wireless Access Policy
2020-2021

1. Purpose

The purpose of this policy is to secure and protect the information assets owned by the Kirby Public School District. The Kirby School District utilizes computer devices, networks, and other electronic information systems to meet its mission, goals, and objectives. Kirby School District grants access to these resources according to an individual's role and must manage them responsibly to maintain the confidentiality, integrity, and availability of all information assets.

This policy specifies the conditions that wireless infrastructure devices must satisfy in order to connect to the Kirby School District network. Only those wireless infrastructure devices that meet the standards specified in this policy or are granted an exception by Superintendent, Pike Palmer and/or Technology Coordinator, Jessica Pinkerton are approved for connection to the network.

2. Scope

This policy addresses the requirements of Wireless deployments, Wireless usage, and Wireless airspace usage. All employees and students and others who use the network including all personnel

affiliated with third parties that maintain a wireless infrastructure devices on behalf of , must adhere to this policy.
This policy applies to all wireless infrastructure devices that connect to the network or reside at an Kirby School District owned, leased or rented site that provides wireless connectivity to endpoint devices including, but not limited to, laptops, desktops, cellular phones, and chromebooks. This includes any form of wireless Communication devices capable of transmitting packet data.

3. Policy

Wireless Deployments

Standards supported:
IEEE 802.11a/nlac (5GHz) is the preferred wireless networking standard. 802.11b/g/n (2.4GHz) will be available, where necessary. WPA2 with CCMP (AES) encryption will be the only secure standard used.

All configuration parameters (such as Service Set identifier (SSID), keys, passwords, etc) of Wi-Fi access points or bridges that can be changed from default manufacturer settings shall be changed from the default. Where applicable, the new security setting should be complex.

Services Set identifier (SSID)

There shall be no more than three SSID's broadcast by the wireless deployment.

1. TrojanHive will be used exclusively for student used devices. All students must sign the Kirby School District's acceptable use policy. **The passkey for this SSID will be pushed out to the devices with no one except the IT department knowing the passkey. Cellular devices are not allowed on this SSID and will be routed to a dead w-lan.**

2. **TrojanGuest1** will be available to teachers and staff once they have signed the district's acceptable use policy. As per the acceptable use policy, the passkey for TrojanGuest1 is understood not to be shared with anyone. TrojanGuest1 is monitored daily for unauthorized devices.

3. An optional 3rd SSID will become available as need for various needs of the technology department. Unless in use, the 3rd SSD will be disabled.

Wireless IP Addresses

DHCP is the standard addressing method for the IC wireless networks, and is expected to meet the majority of customer requirements. Wireless is a dynamic service. Due to the dynamic nature of wireless, IP space may change overtime due to capacity re-engineering. Restrictions policy requires that all deployments of wireless infrastructure be installed and maintained by approved T staff or consultants. Installing do-it-yourself Rogue wireless access points is prohibited to avoid possible interference and to minimize undue security risks. has a monitoring software inside our wireless deployment controller that allows to locate Rogue wireless access points that have been added to the network by unauthorized personnel. All Rogue devices, once identified, will be removed from the network.

Only users with Created accounts may have access to the network once an Acceptable Use Policy is signed. As stated in the Acceptable Use Policy, no usernames or passwords are to be shared among staff or students.

All wired devices including all financial computers on the network have an anti-virus and malware

software installed. All wired devices including all financial Computers have firewalls in place to protect against unwanted intrusion.

No open wireless networks without requiring authentication through a secure method will be allowed. Encrypted passkeys must be in place.

4. Wireless Airspace

All access points will be installed and configured in such a way as to Comply with all security features of the wireless network, including restrictions to provide connections only to those users who are entitled to access. Kirby School District reserves the right to remove, disconnect or electronically limit any access point not installed and configured by approved personnel or specifically covered by prior Written and/ or arrangement with the Technology Coordinator.

Student Discipline 7-12

Any conduct by a student at school or any school function found to be detrimental to the educational or extracurricular goal will be subject to disciplinary action.

BEHAVIOR NOT COVERED

Kirby School District reserves the right to punish any behavior that is not conducive to good order and discipline in the schools, even though such behavior is not specified in the preceding written rules.

The Kirby School Board recognizes the need for firmness in the dispensing with problems calling for disciplinary action in the classrooms and on the school premises. They further recognize that the principal and faculty of each school must always be in a position to take disciplinary action if the atmosphere for learning is to be maintained. All disciplinary action should contribute to the general welfare of the school or class as a whole and should be directed toward positive improvement of citizenship for the group or individual involved. Disciplinary actions may range from a minimum of a verbal warning to a maximum of recommendation of expulsion.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds. Teachers may remove from class and send to the principal or principal’s designee office a student whose behavior is so unruly, disruptive, or abusive that it seriously interferes with the teacher’s ability to teach the students, the class, or with the ability of the student’s classmates to learn. Students who refuse to leave the classroom voluntarily will be escorted from the classroom by the school administration.

Conduct at School Activities

Students will be expected to conduct themselves at school activities in the same manner as during school hours. The same disciplinary action will be taken for misconduct at school activities as would apply during school hours. All student complaints and/or grievances need to be handled and addressed in the proper order which is as follows:

1st- Teacher

2nd- Principal

3rd- Superintendent

Dress Code

Items	Description
Hats/beanies/hoodies/ bandanas	Will be permitted in the building (No Bandanas allowed). Teachers will decide if they can be worn on a classroom to classroom basis.
Pants	Sagging is not allowed at all. (specified in Arkansas Law, Act 835) Clothing with holes should not reveal inappropriate skin or expose undergarments.
Shirts **Shorts, Skirts, Dresses**	• Students are prohibited from wearing clothing that exposes underwear, buttocks, or breasts.. (State Law 835 of 2011) ***Prohibited Shirts:*** • Sleeveless shirts • Spaghetti Straps • Halter tops • Mesh tops, sheer blouses and see through shirts. (acceptable with undergarment coverage that meets dress code) • Low Cut armholes ***Rules for body exposure*** • No Cleavage • No revealing midriff (even when arms are raised) • No off the shoulder shirts. • Back must be covered • Shorts, Skirts, and Dresses are to be modest in length , appearance and fit. • No Spandex unless covered by another garment that provides front and back coverage.
Offensive Clothing	<u>No clothing, hats, or backpacks:</u> • That advertise or depict alcohol, drugs, tobacco or tobacco products, violence, hate themes, racial/gender degradation, sexually explicit or suggestive wording or pictures, gang affiliation, gang related tattoos, or gang monikers, subject matter/group that promotes illegal activity or clothing likely to cause disruption within the school environment

EVERY EFFORT MUST BE MADE TO CORRECT THE ATTIRE IN QUESTION OR THE STUDENT WILL REMAIN IN ISS UNTIL THE ATTIRE CAN BE CORRECTED.
***Repeated offenses will result in further disciplinary action

The district dress code is established to teach grooming and hygiene, prevent disruptions, and minimize safety hazards. It is the campus administration responsibility to ensure enforcement of this policy is done in a consistent manner with respect to the community standards and age appropriateness. While it is inevitable that there are differences of opinion regarding the appropriateness of a student's attire, **the final decision lies with the building administrator or his/her designee.**

In-School Suspension (ISS)

ISS is designed as a disciplinary measure to avoid students being suspended from school. Students who are assigned ISS will be isolated from their peers for the length of the assignment, but they will be furnished with the regular classroom assignments as well as other assignments that may be deemed appropriate. In-school suspension shall be treated as if the student was present at school. The student shall neither attend nor participate in any extracurricular activities on any day of an imposed in-school suspension until the end of the last school day wherein the student is serving.

Suspensions see Rule 4.30 Expulsions see Rule 4.31 Discipline for Disabled

1. Disabled students who engage in misbehavior are subject to normal school disciplinary rules and procedures so long as such treatment does not abridge the right to a free, appropriate public education.

2. The individualized education program (IEP) team for a disabled student should consider whether particular discipline procedures should be adopted for that student and included in the IEP.

3. Handicapped students may be excluded from school only in emergencies and only for the duration of the emergency. In no case should a disabled student be excluded from school for more than ten days in a school year.

4. After an emergency suspension is imposed on a disabled student, an immediate meeting of the student's IEP team should be held to determine the cause and effect of the suspension with a view toward assessing the effectiveness and appropriateness of the student's placement and toward minimizing the harm resulting for the exclusion.

5. The suspended student should be offered alternate educational programming for the duration of the exclusion.

6. The school counselor is the person designated as the grievance officer for Act 504 - Arkansas law.

Offenses - Category I

Category one offenses are considered minor in nature and should be dealt with exclusively by the principal and building staff and in consultation with the student's parents/guardians. Normally, disciplinary actions for category one offenses will become progressively more severe if minor rule

infractions persist. However, the administrator may choose the most severe penalty at any time based on the student's past disciplinary record. For category one violations, the principal may choose from a minimum of student/staff/administrator/parent conference to a maximum of 3-10 day suspension: Updated 07/14/16

1. Student/staff/administrator/parent conference

2. In-school suspension

3. Detention hall

4. Corporal punishment

5. Saturday school

6. 3-10 day out of school suspension

Rule 1: Academic Dishonesty

1. Cheating on tests

2. Copying the work of another student

3. Allowing another student to copy one's own work 4. Plagiarism—The unauthorized use or close imitation of the language and thoughts of another author and the representation of them as one's own original work. Example—to copy and paste passages and writings from the Internet or other digital sources into one's own assignment without the use of proper works cited. For all offenses involving academic assessments, the students will receive a zero on the assessment or test. Updated June 13, 2011

Rule 2: Insubordination

Failure to follow reasonable directives of the school staff and/or school rules and regulations. Failure to obey reasonable instructions from teachers, administrators, instructional aides, bus drivers, or any other authorized school district employee.

Rule 3: Minor Altercations

Engaging in a physical struggle having the potential of producing bodily harm. All participants in an altercation will be disciplined according to the degree of involvement of each student.

Rule 4: Harassment/Bullying

Behavior or actions that violate a person's right to privacy.

1. Annoyance—To "pick at or tease" on a continual basis

2. Communications—Non-solicited oral or written communication offensive to the recipient.

3. Sexual—To violate another person by using sexually explicit language or gestures as described in 4.27.

4. Bullying as described in 4.43

Rule 5: Tardies

A student is tardy if he/she is not in his/her classroom or assigned location at a time indicated by the assigned teacher. In the morning, students will be counted absent from their first period class if they have not arrived prior to 8:15 a.m. Teachers will record the number of times a student is tardy for class.

The following actions will be taken in response to continued tardiness:

a. Third (3rd) tardy— Teacher will notify the office by sending an office referral and the student will be charged 1 unexcused absence for that class.

b. Fourth (4th) tardy— Student will be assigned one day of ISS.

c. Fifth (5th) tardy— Student will be assigned two days of ISS.

d. All subsequent tardies may result in consequences ranging from ISS to out of school suspension.

Rule 6: Displays of Affection

Any type of conduct this is suggestive in nature including kissing, hugging, holding hands, etc.

Rule 7: Possession of Inappropriate Materials

Students should not be in possession of any materials detrimental or disruptive to the educational climate, including radios, cell phones, electronic games, pocket knives, pepper spray, laser pointers, and any items that resemble weapons.

Students are responsible for conducting themselves in a manner that respects the rights of others. Possession and use of any electronic device, whether district or student owned, that interferes with a positive, orderly classroom environment does not respect the rights of others and is expressly forbidden.

Electronic devices may be used during the school day with the exception of class time. During class time, electronic devices may only be used for educational purposes at the discretion of the teacher. As used in this policy, "electronic devices" means anything that can be used to transmit or capture images, sound, or data.

Misuse of electronic devices includes, but is not limited to:

1. Using electronic devices during class time in any manner other than specifically permitted by the classroom instructor;

2. Permitting any audible sound to come from the device when not being used for reason #1 above;

3. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, or wrongfully obtaining test copies or scores;

4. Using the device to take photographs, videos, or audio recordings unless expressly permitted by school personnel;

5. Creating, sending, sharing, viewing, receiving, or possessing an indecent visual depiction of oneself or another person.

Use of an electronic device is permitted to the extent it is approved in a student's individualized education program (IEP) or it is needed in an emergency that threatens the safety of students, staff, or other individuals. Before and after normal school hours, possession of electronic devices is permitted on the school campus. The use of such devices at school sponsored functions outside the regular school day is permitted to the extent and within the limitations allowed by the event or activity the student is attending.

The student and/or the student's parents or guardians expressly assume any risk associated with students owning or possessing electronic devices. Students misusing electronic devices shall have them

confiscated. Confiscated devices may be picked up at the school's administration office by the student's parents or guardians. Students have no right of privacy as to the content contained on any electronic devices that have been confiscated.

Students who use a school-issued cell phones and/or computers for non-school purposes, except as permitted by the district's Internet/computer use policy, shall be subject to discipline up to and including suspension or expulsion. Students are forbidden from using school-issued cell phones while driving any vehicle at any time. Violation may result in disciplinary action up to and including expulsion.

Offenses - Category II

Generally, disciplinary actions for violations of Category Two Offenses will move progressively through a defined schedule at each rule violation. However, the administration may move to the most severe penalty at any time based on the circumstances involved in the particular incident.

Rule 8: Failure to Serve a Punishment

Failure to serve a punishment when directed to do so by school administration.

Minimum—ISS , Maximum—out of school suspension

Rule 9: Leaving School Grounds without Permission

Leaving the school campus after arrival without being checked out by a parent or without the approval of the school administrator.

Minimum—ISS , Maximum—out of school suspension

Rule 10: Use of Electronic Devices or Cell Phones

The use of these devices without the teacher's permission prior to use is prohibited.

Minimum—phone taken Maximum—ISS

Rule 11: Skipping Class

Failure to attend regularly-scheduled class without the express permission of the assigned teacher.

Minimum—ISS/corporal punishment Maximum—reported to prosecuting attorney

Rule 12: Possession of Pornographic Materials

Possessing, displaying, or otherwise showing pornographic photographs, videos, etc.

Minimum—ISS/corporal punishment Maximum—out of school suspension

Rule 13: Using Verbally Abusive Language, Obscene Gestures, or "Fighting Words" Profanity,

inflammatory, or verbally-abusive language or obscene gestures.

Minimum—ISS Maximum—out of school suspension

Rule 14: Use or Possession of Tobacco Products, Alcohol, or Inhalants

The use or possession of a tobacco product, alcoholic beverage, or inhalant of any kind on school district property or at a school-related event.

Minimum— in school suspension Maximum—expulsion recommendation

Rule 15: Assault

A threat to harm another person physically or an unsuccessful attempt to do so with "blows." A violent attack with words, profanities, etc. in an attempt to promote or incite physical violence.

Minimum—10 days out of school suspension Maximum—expulsion recommendation

Rule 16: Battery

Repeated beating or striking of another person either directly or with an object producing bodily harm.
Minimum—10 days out of school suspension Maximum—expulsion recommendation

Rule 17: Theft

1. Burglary and or Larceny- to steal school property or property belonging to another person.

Minimum—in school suspension Maximum—expulsion recommendation

2. Robbery- the violent taking of any goods, money, or other valuable items from another by force or threats.

Minimum—expulsion recommendation

3. Possession of Stolen Property- an individual has bought, been given, or acquired stolen goods some other way (other than having stolen the items himself/herself).

Minimum—ISS/Corporal Punishment Maximum—expulsion recommendation

Rule 18: Gambling

Playing a game of chance for something of value.

Minimum—3 days out of school suspension Maximum—expulsion recommendation

Rule 19: Fighting

Mutual combat in which participants inflict intentional and bodily injury to any person. All participants in a fight will be disciplined according to the degree of involvement by the participants.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 20: Use of Profanity Directed toward a Staff Person

To direct profanity in a non-threatening manner to a school staff member.

Minimum—2 days out of school suspension Maximum—expulsion recommendation

Rule 21: Loitering

Lingering on the ground of a school or within 100 feet of the school without permission of a school administrator. No suspended and/or expelled student is allowed on school district property for any purpose while serving the suspension/expulsion.

Minimum—3 days out of school suspension Maximum—expulsion recommendation

Rule 22: Vandalism

To intentionally destroy, cut, deface, damage, or alter property belonging to another person or belonging

to the school district. The parent/guardian shall be responsible for all damages to property caused by his/her child. Full restitution will be required for all damaged property including all labor costs associated with the repairs.

Minimum—3 days out of school suspension Maximum—expulsion recommendation

Rule 23: Disorderly Conduct

1. Inappropriate behavior that substantially disrupts or interferes with or is likely to disrupt or interfere with any school function, activity, or school program.

2. The use of violent, abusive, obscene, or profane language or gestures directed at another person or to the public in general.

3. Habitual or repeated violations of school rules and regulations:

a. Violation of single rule - two or more times in a semester.

b. Violation of a combination of rules four times in a semester.

Minimum—3 days out of school suspension Maximum—expulsion recommendation

Rule 24: Harassing Communications

Use of telephone, text, social media, e-mail, or any other form of communication to annoy, cause alarm to, or to threaten to harm another person, or to willingly allow another person to use a telephone or other electronic device under your control for such a purpose.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 25: Forgery or Falsification of Information

Falsifying teacher signatures or information on official school records.

Minimum—corporal punishment/ISS, Maximum—expulsion recommendation

Rule 26: Use of Inappropriate Devices/Materials

The use of inappropriate items including, but not limited to, pocket knives and pepper spray.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 27: Possession of Weapons and Chemical Agents

The possession, without permission from a school official of a dirk, brass knuckle, martial arts implement, razor, ice pick, knife, unauthorized tool, blackjack, chemical agent, mace, and/or other devices generally considered to be a weapon or dangerous objects of no reasonable use to the student at school which may cause bodily harm.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 28: Possession of Fireworks

The possession of fireworks on a school campus or at a school-related activity.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 29: Possession and/or Use of Alcoholic Beverages

The possession or use of alcoholic beverages or the use of unauthorized inhalants on a school campus or at a school-related activity.

Minimum—out of school suspension Maximum—expulsion recommendation

Rule 30: Misuse of Medical Supplies and/or Medication

Sharing, diverting, transferring, applying to others (such as needles or lancets), or in any way misusing medication or any medical supplies in their possession.

Minimum—out of school suspension Maximum—out of school suspension Updated 07/14/17

Offenses - Category III

Students found guilty of these offenses can receive an expulsion recommendation, and the sheriff's department may be notified.

Rule 31: **Use and/or Possession of a Controlled Substances or Unauthorized Drugs or Substances**

The possession or use of non-prescribed narcotic drugs, hallucinogens, marijuana, any unauthorized drug or substance, or drug paraphernalia as defined by Arkansas Code is a violation of district policy. In addition to suspension, students must show proof of having enrolled in an approved drug/alcohol counseling program prior to reinstatement.

Rule 32: **Sexual Misconduct**

To deliberately show the sex organs in a public place or to engage in or attempt to engage in a sexual act with another person or to touch in a sexually-offensive manner on school district property or at a school-related activity.

Rule 33: **False Alarm**

To turn in an alarm of fire, bomb threat, or other emergency without a lawful purpose

Rule 34: **Arson**

The willful and deliberate burning of or attempt to burn school property.

Rule 35: **Drug/Alcohol Use, Sale, or Distribution**

The sale, attempt to sell, purchase, or attempt to purchase, or distribution of alcohol, marijuana, non-prescribed/prescribed drugs, hallucinogens, or similar substances, students expelled for this violation shall be required to submit proof of the successful completion of drug/alcohol counseling and/or treatment program prior to petitioning the board for reinstatement.

Rule 36: **Physical Assault on Staff Striking, pushing, hitting or attempting to strike, push, or hit a teacher or other school personnel.**

Rule 37: Verbal Abuse of Staff

The use of violent, abusive, or obscene language or gestures addressed to a teacher or staff person in a threatening manner.

Rule 38: Possession of a Firearm

State and federal law (Gun-Free School Act of 1994) requires expulsion for students for a period of not less than one year for possession of any firearm or other weapon prohibited upon school campus by law; however, the superintendent shall have discretion to modify such expulsion requirements for a student on a case-by-case basis.

Rule 39: Use of Weapon or Likeness of Weapon

The act of using a weapon, or likeness of a weapon, or firearm to cause injury or threaten injury to another person.

Rule 40: **Possession or Use of Explosives**

The possession, use, or threat to use any explosives or other such devices capable of inflicting bodily harm.

41: Extortion

Obtaining or attempting to obtain money or property from an individual by force or threat of force.

Rule 42: Unlawful Assembly

When three or more students gather with the intent to commit an unlawful act.

Rule 43: Inciting a Riot

An act or conduct which results in a riot or which urges others to commit acts of force and violence or participation in a gang fight or similar disturbance at school or at school related activities.

Rule 44: Membership in Prohibited Clubs, Gangs, or Similar Organizations and Hazing

Participating in secret societies or organizations of any kind while on school property, at school-sponsored activities, or while on the way to or from school. Gangs or similar groups, whether organized in the community or in other settings, are prohibited on school grounds or at any school-sponsored activity.

School Organizations and Activities

Student Council Constitution

ARTICLE I: Title:

The title of this organization shall be the Student Council of Kirby High School.

ARTICLE II: Purpose:

The student council shall function primarily by promoting student betterment. This may be achieved through creating student awareness, providing improved social atmosphere, offering the organization as a place where student opinions are represented, or by other means recognizable as beneficial to the Kirby student.

ARTICLE III: Membership and Organization

Section I: The student council shall consist of representatives elected by each homeroom, (one from each class), the elected officers and members at large. The electorate shall be the student in grades seven (7) through twelve (12).

Section II: The Executive Committee shall consist of the President, Vice-President, Secretary, Treasurer, Reporter, and the six Senators.

Section III: The Legislative Committee shall consist of all the council members.

Section IV: One faculty sponsors, whose duty shall be to advise the student council, shall be responsible for the council annually. The sponsors will be appointed by the principal.

Section V: Elections shall be held according to the established standards subject to yearly review prior to the election.

Section VI: All council members shall serve for a term of one year. The constitution shall not prohibit a qualified student from serving more than one term should he/she be duly elected.

Section VII: Regular meetings shall be held during school hours. The day and time of these meetings shall be planned by the school schedule. In case of special needs, the student council may meet either in legislative or executive session when a resolution to do so is passed by 2/3 of the entire body. The executive committee shall meet once per month to plan for future legislative meetings.

Section VIII: All officers and member shall be elected by secret ballot. A plurality vote shall constitute an election.

Section IX: A vacancy in the office of president of the council shall be filled by the succession to the presidency of the vice president. All other elected positions shall be filled by another election unless prohibiting conditions such as time preventing a proper election from being held arise. In such cases, a council vote shall be sufficient.

ARTICLE IV: Qualifications of Officers and Members

Section I: The president shall be a member of the senior class with at least one year of previous council experience.

Section II: The vice president shall be a member of either the senior or junior class.

Section III: The secretary, treasurer, and reporter shall be elected from the junior or senior class.

Section IV: Senatorial candidates require no previous council experience.

Section V: Student Council positions may be filled by any student who has maintained a 2.00 GPA for the previous semester of academic work.

Section VI: Any council member must maintain a 2.00 GPA each nine weeks in order to serve as an active member. Under extenuating circumstances, a student may remain on the council in a probationary capacity if he/she fails to maintain a 2.00 GPA

Section VII: In the event of unusual circumstances which have prohibited a person from attaining the necessary requirements for seeking a position, the council may review the case in the resume committee and then upon recommendation of the committee, bring the matter to a vote in the legislative session.

ARTICLE V: Duties of Officers and Members:

President:

1. Shall preside over all meetings

2. Shall appoint all committees and duties subject to the approval of the legislative council.

3. Shall vote only in case of a tie.

4. Shall preside over assemblies and introduce speakers.

5. Shall not have veto power

Vice President:

1. Shall take the place of the president when he/she is absent.

2. Shall assist the president in all of his/her duties

3. Shall succeed to the office of president in case of his/her resignation or suspension.

4. Shall be responsible to take the roll call of the legislature and bring to account all absent members.

Secretary:

1. Shall take minutes of all meetings.

2. Carry on correspondence of the council.

3. Shall keep notes on all executive meetings.

Treasurer:

1. Take charge of all council funds.

2. Shall make deposits and disbursements.

3. Shall render a financial report at regular intervals.

4. Shall keep all financial records of the council.

Reporter:

1. Shall write all articles to appear in publication regarding council work.

2. Shall be responsible for keeping the council scrapbook.

Senators:

1. Shall function as a link between members and officers at officers meetings.

2. Shall represent the opinion of and the interest of the grade that they represent.

3. Shall perform as a working member of the executive committee.

Members:

1. Shall attend all meetings.

2. Shall do all assigned work on the council activities.

ARTICLE VI: Standing Committees and Duties: Executive Committee:

1. The executive committee shall have the principal as an ex-officio member for the purpose of coordinating the work of the council with the policies of the school.

2. It shall be the duty of this committee to review or propose legislation to be voted on by the legislature.

3. The president shall cause all proposed measures to be voted on by the committee with recommendations for passage to be voted on by the legislature. If a majority of the quorum vote in favor of the proposed measure, it shall be enacted.

Resume Committee:

1. The resume committee shall have five members appointed by the president. This committee shall be charged with the duty of reviewing any case deemed unusual by the executive committee. (Example: qualifications of officer candidates who do not meet constitutional requirements.)

2. The committee shall make recommendations to the legislature regarding the case in question.

ARTICLE VII: Bylaws:

All persons vested in the student council are represented by the administration and most directly the principal. As such the council activities are subject to administration approval and scrutiny. This should not deter the council from taking an unpopular course if the will of the student body is represented. The student council is student representation and should be expressed as such. A reasonable course often may be arbitrarily worked out to each side's satisfaction and more often than not proposals of the council will have full administration approval and confidence.

1. To guarantee representation at all times a member must be aware of council functions; therefore compulsory attendance of scheduled meetings is required. Any student missing two meetings without excuse is on probation and is subject to have a case brought before the resume committee to determine expulsion.

2. Members must abide by a code of standards which each council shall draw up and enact at the earliest date possible. Violations of these standards shall be cause for review by the resume committee and if warranted, expulsion from the council shall be recommended.

3. Responsibility of duty is pre-eminent and only very trying conditions shall give the resume committee reason not to expel a member if he/she fails to perform an assigned task.

4. Any member, officer, or senator, is at all times representative of the council and as such Kirby High School student body. Proper conduct is always expected. This is not to impose on individual freedoms, which the council supports as necessary to norm social function, but rather to encourage the development of leaders by their own design and choosing.

AMENDMENTS:

1. The grade levels for Kirby High School Student Council shall include sixth through twelfth grades thus enlarging the number of senators and representatives to seven for each.

2. Elections for all Student Council positions shall be held in the spring semester beginning with elections for the 2006-2007 school year.

3. Changes for election procedures shall be as follows:

a. Election for sixth grade representative and senator will be held within that grade level only.

b. Election for representatives of grades seventh through twelfth shall be by grade only.

c. The student body, sixth through twelfth, as a whole shall make election of Council Officers.

d. Election of seventh, eighth, and ninth grade senators shall be by those grades only and election of tenth, eleventh, and twelfth grade senators shall be by those grades only.

Athletics

Joining, Quitting, and/or Removal from a Team

a. A student athlete may go out for a team at any time provided that student has not been participating in another sport and the coach has no objection.

b. If a student athlete is participating in one sport, he/she cannot quit that sport and go to another sport if he/she is still a member of the squad two weeks before the first regular scheduled game. If an athlete notifies the coach he/she is quitting the squad two weeks before the date of the first game, that student may select another sport.

b. Students who quit after the deadline (first regularly-scheduled game) will be enrolled in a study hall or class and cannot participate in another sport until the last playing date of the activity they quit. An exception to this may involve an athlete with a certain type of injury which would prohibit activity in one sport, but not in another. To be allowed to go from one activity to another under these circumstances would require approval of both coaches and principals involved.

c. Quitting or being removed from a team a second time in the same school year will prevent the student from competing in any other athletic team in that same school year.

d. Students who quit or are removed from a team will turn in all of their equipment within one week and notify their coach and parents of their decision to quit or their removal.

e. Alcohol, drug, and tobacco policies are followed as stated in the student handbook.

ISS/Detention Hall

a. ISS/Detention Hall may result in extra conditioning and/or loss of playing time determined to be appropriate by the coach.

b. Out of school suspension will result in a game suspension of or equal to 10% of the total games.

All athletes are expected to attend all practices. Coaches should be notified ahead of time if an athlete is going to miss. Missed practices may result in extra conditioning. An absence may also result in other disciplinary action based on the reason for the absence and the number of absences. Conduct and Sportsmanship Athletes, coaches, and fans are expected to follow the guidelines established by the AAA. The effective secondary school must support both an academic program and an activities program. We believe that these programs must do more than merely exist – they must be integrated and support each other in "different" arenas. The concept of "sportsmanship" must be taught, modeled, expected, and reinforced in the classroom and in all competitive activities. Therefore all AAA member schools stand together in support of the following Sportsmanship Policy. Activities are an important aspect of the total education process in our schools. They provide the arena for participants to grow, to excel, to understand, and to value the concepts of sportsmanship and teamwork. They are an opportunity for coaches and school staff to teach and model sportsmanship, to build school pride, and to increase student/community involvement. This ultimately translates into improved academic performance. Activities are also an

opportunity for the community to demonstrate its support for the participants and the school, and to model the concepts of sportsmanship for our youth as respected representatives of society. Sportsmanship is good citizenship in action. Fans are not at a ball game to intimidate or ridicule the other team or its fans but to support and yell for their team and to enjoy watching skill and competition.

ARTICLE I: General Regulation (see Article 11, Section 1, Rules 1 through 2, Pages 14-16 AAA Handbook)

Section I: Sportsmanship is a general way of thinking and behaving. Good sportsmanship includes the following:

• Be courteous to all (participants coaches, officials, staff, fans spirits groups)

• Know the rules, abide by and respect the officials' decisions.

• Win with character and lose with dignity.

• Display appreciation for good performance regardless of the team.

• Exercise self-control and reflect positively upon yourself, team and school.

• Permit only positive behavior to reflect on your school and its activities.

Section II: Specific Prohibitions

• Students who wear extreme or unusual clothing to the game or who paint their faces will not be allowed in the gym. (Examples: Togas, bandanas, cowboy hats, gang colors, etc.)

• Negative, derogatory or obscene yells will not be permitted in any athletic event.

• Students will not be allowed to turn their backs or hold up newspapers while teams are being introduced, or when teams, cheerleaders, or drill teams are performing. Turning in Equipment The day following the last game, each athlete is expected to turn in all equipment to his/her coach. If any of the equipment is lost, the athlete will pay for the unreturned equipment. If any equipment is not turned in immediately, that person will not be allowed to continue in athletics until all of his/her equipment is completely turned in. Lettering athletes will be at the discretion of each coach's policy in that particular sport.

•Off-Season

Athletes must participate in off-season workouts in the semester or summer before playing in a sport. An exception is made to students making up graduation requirements that conflict with off-season scheduling and students participating in other sports that conflict with offseason scheduling.

o Bus Riding

All athletes are required to ride the bus to the game, but if given written notice signed by the parent to the head coach, the athlete may ride home with the parents or his or her designee.

o Attendance

In order to participate in a game, the athlete must be in school at least a half day and have it approved by his/her head coach. Athletes are expected to be with their respective teams on game day. Any athlete missing a game will be subject to dismissal from that team and possible future consideration of playing on any other athletic team during that school year will be evaluated by the coaching staff.

Cheerleading ARTICLE I: Elections

Section I:

In the spring up to sixteen (16) cheerleaders shall be selected from the freshman, sophomore, and junior classes as varsity cheerleaders for the senior high and up to sixteen (16) cheerleaders (from grades six through eight for the junior high). All candidates must have a 2.0 GPA to be eligible to tryout. In order to be selected for the varsity squad, candidates must receive a minimum score of 2.75; the top fifteen varsity candidates receiving the minimum score will be selected. For the junior high squad, there will be no minimum score required; the top sixteen (16) junior high candidates will be selected for the squad. One alternate will be eligible for the junior high and varsity squads should a cheerleader quit or be removed from the squad prior to the first day of the school year. The alternate will be the cheer candidate with the highest tryout score but did not make the team due to that score being lower than the 16 qualifying candidates. The alternate will be named at the time of a squad vacancy.

Section II:

In the event of a temporary physical restriction or disability of a cheer candidate the alternative tryout procedure shall be used. The procedure is as follows:

• A medical restriction with details must be obtained from the attending physician.

• The candidate will be required to attend cheer tryout practices as outlined in the policy.

• The candidate will be required to perform all tryout skills that are not restricted by the medical order. Restricted skill performances will be scored based on the previous year's tryout score and/or video of skill/ performance from the past 12 months. Acceptance of video depends on the quality of the recording and will be at the coach's discretion. The score sheets will have the restricted skills highlighted that are not to be scored during the tryout. Judges will not be given access to the previous year's score sheet as to not influence other areas of scoring. Previous years scores will be placed on the score sheet after current judging is complete. Judges will use the videos provided to establish their own scoring of skills in areas that are recorded. Modifications to the above policy will be at the discretion of the cheer coach, athletic director and administration.

Section III:

The selection of cheerleaders shall be held at any convenient time following the close of basketball season. A minimum of six (6) practices and a mock tryout will be held prior to the tryout date. Each candidate must attend at least five (5) of the practices and mock tryouts to be eligible to tryout. All students must attend school on the day of tryouts. The order in which individual tryouts are held will be determined by a random drawing. Tryouts will begin at 4:00 with the junior high starting first.

Section IV:

All candidates shall have written permission from parents or guardians in order to try out.

Section V:

There will be a screening committee for all candidates consisting of the cheer coach and the candidates' fall semester teachers. The purpose of the committee is to screen candidates on the basis of grades (candidate must have at least a 2.0 GPA) for the previous semester, character, and ability to perform the duties of cheerleader. This score counts as twenty-five (25) percent of the total tryout score.

Section VI:

The cheer coach, with the approval of the principal, shall select a panel of judges. This panel shall judge the candidates and select the junior high and varsity cheerleaders.

Section VII:

All score sheets from the tryout will be kept on file until the next year's tryout. A copy of the judges' score sheets only may be provided for an individual candidate; these will be provided upon written request by the parent or guardian.

Section VIII:

Each candidate for cheerleader will wear solid colored gym shorts and a solid colored t-shirt with sleeves for tryouts. The clothing (including socks) may not have any logos or words printed on them. The candidate may select the color.

Section IX:

Any student who has quit or been removed from a Kirby cheerleading squad will not be eligible to tryout for cheerleader during that school year.

ARTICLE II: Grade Requirements

Grade requirements for cheerleaders will be the same as those required by the Arkansas Activities Association.

ARTICLE III: Captains

A captain and co-captain will be appointed for each squad. This appointment will be based on the following:

• 1st- Cheerleading tryout total score

• 2nd- cheerleading experience

• 3rd- grade level Freshmen who are trying out for the senior high squad are not eligible for varsity captain/co-captain. Any cheerleader chosen as captain/co-captain will be removed from that position should she receive fifteen (15) or more demerits. If a cheerleader does not complete a season, that year's experience does not count.

ARTICLE IV: Uniforms

Section I:

The Kirby School District **will not** furnish, for the cheerleading squads, any uniform items. Uniform designs will be approved by the administration prior to any ordering. All cheerleaders will pay in full for their uniform before the uniform is ordered.

Section II:

Uniforms for the cheerleading squads and for cheerleading camp will be selected by the coach. These uniforms will be approved by the administration before ordering.

Section III:

Inspection of uniform, make-up, hair, and shoes will be held before any performance. This will be done by the coach and will meet all AAA requirements.

ARTICLE V: Duties and Responsibilities

Section I:

Cheerleaders will be responsible for the following: all home basketball games, selected basketball tournaments, all scheduled pep rallies, cheer competitions, and any other games deemed appropriate by the principal and coach.

Section II:

Cheerleader practices must be held regularly as planned by the coach, and cheerleaders must attend each practice unless excused by the coach. The coach is in charge of all practice sessions. Cheerleaders must provide an acceptable written excuse from a parent or guardian upon failure to attend a scheduled practice. The sponsor must be notified a day prior to the scheduled practice if the cheerleader cannot be present at a practice. If not notified, demerits will be given.

Section III:

Cheerleaders must cheer at all games and performances unless excused by the coach. Examples of acceptable excuses for missing a game or performance are illness or emergency. Cheerleaders must cheer for the entire game; a short break will be allowed at the beginning of third quarter if necessary due to half-time performances.

Section IV:

Transportation to and from the away games and performances shall be arranged by the coach. Permission to ride home with a parent or guardian may be granted by the coach if the cheerleader has been signed out on the sign out sheet at the game or if the cheerleader has provided written permission. The sign out sheet and/or written permission must be signed by a parent or guardian.

ARTICLE VI – Dismissal and Demerit System

Section I:

A dismissal committee shall consist of the principal, dean of students, and cheerleader coach.

Section II:

Automatic dismissal will be the result of the following:

1. Use of drugs or possession of drugs

2. Use of alcohol or possession of alcohol

3. Use of tobacco

4. Failure to meet academic requirements (see Article II)

5. Suspension from school, assignment to alternative school, or assignment to alternative

6. Suspension served either in ISS or alternative school

7. Becoming pregnant

8. Unsporting behavior of any kind at any time

9. Conduct which casts doubt as to the personal morality or which impugns the integrity of the cheerleader or behavior that casts the cheerleading squad or Kirby High School in an undesirable position.

Section III:

The dismissal procedure will follow these steps:

1. Fifteen (15) demerits – benched for one game ("benched" is defined as a cheerleader, in uniform, sitting with the coach at the selected event.)

2. Thirty (30) demerits – hearing before the dismissal committee

Section IV:

Demerits will be given for the following reasons:

a. 30 – missing a game or pep rally without proper excuse

b. 10 – "F" on a report card

c. 15 – missing a practice or meeting without notifying the coach

d. 5 – forgetting necessary equipment

e. 10 – attitude not becoming a cheerleader (This will be decided at the discretion of the coach and/or principal.)

f. 10 – tardy more than 10 minutes from any practice or activity

g. 5 – receiving detention hall h. 15 – receiving In-School Suspension

Section V:

Demerits for minor infractions (such as D, F, and G listed above) may be worked off at the cheerleader's request and the discretion of the coach. This may include extra weekly jobs or extra conditioning.

Section VI:

The demerit system will begin immediately following tryouts and will continue through the next school year. Demerits may be given before, during, and/or after the actual cheerleading season.

Graduation

Graduation will be scheduled by the high school principal in consultation with the senior class sponsors. All students who meet the graduation requirements will be allowed to participate in graduation ceremonies. Students are not allowed to decorate their caps.

Ushers- A minimum of 2 ushers will be required. Ushers will be chosen based on a combination of grade point average and the students' honor graduate preparedness.

Dress Requirements- Formal dress is required for all participants in graduation. Failure to follow the dress guidelines may result in a student not being allowed to participate in the graduation ceremony.

Boys will wear collared shirts, dress pants, dress shoes or polished boots.

Girls will wear a dress or dress pants and dress shoes. No flip flops, casual sandals, jeans, or tennis shoes are allowed.

High School Dances and Parties (grades 9-12)

1. All school-sponsored dances and parties must be concluded by midnight.

2. Only officially-enrolled students of Kirby High School and their approved guests will be admitted.

3. All guests must be approved by the principal prior to the dance or party.

4. A student bringing an approved guest will be responsible for the conduct of this guest while on school premises.

5. The school organization sponsoring the dance or party will be expected to clean up the facility and put everything back in order before classes resume.

Junior/Senior Prom

School sponsorship of junior/senior prom activities will end at the conclusion of the dance. Any activities after the conclusion of the dance will be the responsibility of the parents and students. The location of the junior/senior prom will be determined by Kirby High School Principal. The final decision must be approved by the principal and superintendent. Invited guests to the prom will include

1. Faculty members of Kirby High School

2. Superintendent

3. Principals

All students and guests who attend prom must be in at least the tenth grade but less than 21 years of age. Any non-Kirby student must be approved by the Kirby High School Principal prior to their attendance. They must also present a copy of a driver's license or photo ID prior to the date of the prom. Students who invite a guest who is not a Kirby High School student must accompany their guests at all times while on school property.

Transportation and Safety Procedures

Parking Permits and Regulations

1. Students are to abide by all state, city, and school regulations pertaining to the operation of motor vehicles.

2. Students are required to provide a copy of their driver's license and proof of insurance to the High School Principal.

3. Students are to park their vehicles in the designated areas when arriving at school.

4. Students will not be allowed to drive their vehicles during the school day unless they have permission from the principal.

5. Students shall not loiter in or around vehicles for any reason during the school day.

6. Violation of any parking regulation will result in the following disciplinary actions:

First offense – Warning

Second offense – ISS and/or loss of parking privileges

Third offense – Loss of driving privileges for the remainder of the semester.

Fourth offense -- Loss of driving privileges for the remainder of the school year.

Accidents and Illness at School

Accidents to students on school premises are to be reported to the school nurse. If necessary, the family physician may be called. When students are injured or become ill, their parents should be notified and, if serious enough, they should be taken home. The school assumes no responsibility for financial obligations involved in treatment.

Fire Drills

The fire alarm is a modulating tone and strobe lights which can be heard and seen throughout the building and grounds. Students will move quickly and quietly into designated areas outside the building. Students are to remain outside until the all clear bell has been sounded.

Fire drills will be conducted monthly and are required by the Arkansas Department of Education. Students who ride school buses shall also participate in emergency evacuation drills at least twice each school year.

Tornado Drills

The tornado alarm is a distinct tone sounded through the school bell system. Students are to proceed to the designated areas.

Danger Alert

The danger alert is a distinct tone sounded through the school bell system. Students are to remain in the classroom away from all doors and windows. The school building will be locked down and no one will be allowed to enter or exit until the all clear signal is sounded.

Policies not covered in this handbook

The superintendent has authority to temporarily enact any policy that is needed but not

printed in this handbook. The temporary period of duration will be until the school board meets in regular session.

HOMECOMING POLICIES & PROCEDURES:

The purpose of all homecoming activities is to foster pride and loyalty in Kirby High School. Every student should show pride, loyalty, and support to the school and its programs. Those selected to participate hold a position of responsibility as well as honor. They represent all the students and therefore, each participant should strive to carry out their obligations with the highest dignity.

A student must be enrolled as a 7th-12th grader at Kirby High School by the first day of school and must have a 2.0 GPA to be eligible for nomination to the Homecoming Court. All participants in Homecoming ceremonies must meet the same eligibility requirements as any other school activity.

There will be a homecoming ceremony observed during the basketball season. One during the day for the entire school and one in the evening before a scheduled game for the public. The homecoming court will be announced at least four weeks prior to the scheduled night of the homecoming during a pep rally prepared for the school by your cheer teams & class spirit leaders. The Queen voted on will choose the color(s) of the year's homecoming.

Court will be voted on as follows:

Junior High Homecoming:

-Two maids & escorts each from each grade: one maid & escort will be chosen by their class (any eligible class member including basketball players), one maid & escort will be chosen by Jr. High basketball teams (any eligible class member can be chosen, basketball player or not). Two additional maids & escorts from the 9th grade class will be chosen: one voted on from class, one from basketball teams. The 7th-9th grade student body will then vote out of the four maid candidates for their princess and runner up will be maid of honor.

-If you are a maid or escort your 7th grade year, you are not eligible for your 8th grade year.

-All positions in the 9th grade are open to any eligible 9th grader.

Senior High Homecoming

-Two maids & escorts each from each grade: one maid & escort will be chosen by their class (any eligible class member including basketball players), one maid & escort will be chosen by Sr. High basketball teams (any eligible class member can be chosen, basketball player or not). Two additional maids & escorts from the 12th grade class will be chosen: one voted on from class, one from basketball teams. The 10th-12th grade student body will then vote out of the four maid candidates for their queen and runner up will be maid of honor.

-If you are a maid or escort your 10th grade year, you are not eligible your 11th grade year.

-All positions in the 12th grade are open to any eligible 12th grader.

Captains

Junior High Captain(s) and Senior High Captain(s) will be chosen by the basketball coaches in the way they see fit. All rules and eligibility requirements still remain.

Attendants
The Queen and Senior HIgh Captains will get first choice of attendants. The Princess and Junior High Captains will get second choice. They may choose any boy and any girl to be their attendants out of the Kindergarten class(es).

Homecoming is considered an extracurricular activity. This means it is not a school requirement and you can choose to have yourself removed from the Homecoming court. If you choose to do so, the committee must be notified within one week of the announcement so replacement can be made. No member of court should be under major disciplinary actions. All decisions made to have a student removed are made by the Homecoming Committee. If you are removed from Homecoming, replacements are made by the next highest votes.

Along with being chosen into Homecoming comes expenses. Girls will be responsible for a dress of the chosen color, shoes, mum and a **$20 Homecoming fee.** Boys will be responsible for a tux, shoes and **$20 Homecoming fee.** The tiaras and boutonnieres will be paid for out of this money. Fees will be expected in a week within the announcement so that we can start ordering.

It is an honor to be chosen to be in Trojan Homecoming. All chosen participants are expected to follow the guidelines in the Parent and Student Handbook. Participants should understand that the decisions made are final, and should respect the decisions made.

Please sign below that you understand the guidelines and are willing to follow all rules.

_____
Participant Signature

_____
Parent Signature

All questions/concerns are to be addressed directly to Homecoming Committee

Homecoming Committee

Laura Kay Mack	Kayla Caldwell	Jaime Johnson
Robert Tucker	Carrie Jo Cook	Kelli Mount
Brandi Tolleson	Amy Bailey	

Student Privacy Opt Out

Throughout the year, we take opportunities to recognize our students and the success that they have. We want to share with the public the great things that our students, your children, do on a daily basis. We do this by publicizing their achievements on social media sites such as Twitter and Facebook, through videos on our district YouTube channel, and through the local and statewide papers. We also request the right to use the said formats for nonprofit purposes including their use in print and/or video, on the Internet, and through all other forms of media.

At the same time, we understand that safety and privacy are critical. If you wish for your child's image to NOT appear in these publications or videos, please complete the following section and return it to the appropriate school principal. The district cannot guarantee that a student's image and/or name will not be published in print or digital media when involved in inherently public activities including athletic events, band concerts, award assemblies, etc.

By not returning the section below, your consent is assumed, and your child's image may appear in the various media outlets.

As the parent of _____, I do not grant permission for the Kirby School District to use my child's image in any capacity.

_____ _____

Parent Signature Date